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THREE HISTORIOGRAPHICAL PROBLEMS IN THE ANCIENT SOURCES FOR THE REIGN OF CONSTANTIUS II (337-361)

Fordham University PH.D. 1982

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THREE HISTORIOGRAPHICAL PROBLEMS IN THE ANCIENT SOURCES FOR THE REIGN OF CONSTANTIUS II (337-361)

BY

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This dissertation prepared under my direction by

Kelly Del Tredici

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M Pavelle

(Faculty Adviser)

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PREFACE

By way of introductory remarks, I chose to work in the reign of Constantius for the simple reason that it has been neglected to date by students of the Late Roman Empire, its obvious length (i.e., 337-361) notwithstanding. A glance through a card catalogue under the entries "Constantius II" and "Iulianus, Apostata" (361-363), for example, will serve to confirm this comparative dearth of modern scholarship devoted to Constantius and to the era of the sons of Constantine. My primary task, therefore, has been to keep the focus as much as possible on the emperor Constantius. Secondly, with the exception of his impact on the orthodox church as the empire's first Arian sovereign, which I have not discussed, the topics treated in each of the three chapters which follow emerged from my research as the major unresolved issues of Constantius' reign. Taken separately, they are independent entities, although the whole investigation in general may be said to be loosely unified by a common theme, namely, the problem of determining the imperial succession in a consistent, inviolable manner. In an attempt to strike a balance between the demand for thoroughness and the restrictions imposed on me by the need for selectivity I have limited myself to the literary evidence from the fourth to the sixth centuries, that is, to the authors beginning with Eusebius Pamphili and concluding with the last pagan historian of note from antiquity, Zosimus. Not included are numismatic or epigraphical source materials. Finally, wherever I have quoted a Greek writer at

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length in the body of the dissertation, I have supplied a corresponding English translation in appendix B, although the reader should be aware that I reserve the right to make whatever editorial changes I deemed necessary in order to bring the modern translation used into line with the edition of the given authority cited, either for stylistic purposes or for the sake of accuracy.

Personal thanks are due to the many who have taught me, but to none more than Professor Robert J. Penella, of Fordham University, for his patient and painstaking guidance.

I dedicate this work in gratitude to my parents and to the memory of my friend Margaret Longobardi.

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CHAPTER I

THE SUCCESSION CRISIS OF 337/38

It is only equitable to admit from the outset that the problems involved in a critical study of the succession crisis and massacre which marked the commencement of Constantius' imperial tenure may well be insoluble. In the works of ancient and modern authors alike the chronology, specifically the sequence of events from Constantine I's decease at Ancyrona, a suburb of Nicomedia, on 22 May 337 until September of that same year and shortly thereafter (early 338), is hopelessly incomplete; moreover, where such facts as have come down to us are certain their exact meaning is obscure.[1] The confusion, however, surrounding the events antecedent to, including, and immediately subsequent to the violent deaths of virtually the entire "branches collatérales de la maison

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[1]See Henry Melvill Gwatkin, Studies of Arianism (Cambridge: Deighton, Bell, & Co., 1882), n. 4, pp. 108-9; Ernest Stein, Histoire du Bas-Empire, trans. by Jean-Remy Palanque, vol. 1: De l'État Romain à l'État Byzantin (284-476) (Paris: Desclée De Brouwer, 1959), pp. 131-32; Carlo Di Spigno, "Appunti per una lettura del libro XIV di Ammiano Marcellino," Orpheus 7(1960), especially pp. 133-34; Arnold Hugh Martin Jones, The Later Roman Empire, 284-602: A Social, Economic, and Administrative Survey, vol. 1 (Norman: University of Oklahoma Press, 1964), pp. 84-85, 112, 115; François Paschoud, ed., Zosime: Histoire Nouvelle, vol. 1, Collection Budé (Paris: Société d'Édition "Les Belles Lettres," 1971), n. 52, p. 245; André Piganiol, L'Empire Chrétien (325-395) (2nd ed.; Paris: Presses Universitaires de France, 1972), pp. 81-82; Diana Bowder, The Age of Constantine and Julian (London: Elek Books, 1978), p. 42; Joe W. Leedom, "Constantius II: Three Revisions," Byzantion 48(1978), 132-45.

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constantinienne en ligne masculine"[2] descended from Constantius Chlorus and his second royal consort Theodora, together with those of the patrician Optatus, Ablabius the recently retired praetorian prefect (329-337) of the Orient, and, according to Jerome's Chronicle A.D. 338 (p. 234 [Helm]), countless other high-placed persons from the former regime, i.e., multi nobilium occisi, extends back in time at least as far as the year 335.[3]

Today the general consensus of scholarly opinion is that perhaps prior to the summer of 335 Constantine, aged sixty-three, either out of foresight or because of failing health undertook arrangements for the partitioning of the Roman Empire among his heirs apparent, namely his three sons by Fausta: Constantine II (b. 2 February 317 and Caesar, with Crispus and Licinius since March of the same year), Constantius II (b. 8 August 317 or 318 and Caesar since 11 November 324), and Constans (b. 320

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[2]Stein-Palanque, p. 131. None escaped (or were spared) save Gallus, Julian, and Nepotianus. See Gwatkin, Studies, p. 108 and n. 2, ibid. See also Joseph Vogt, "Pagans and Christians in the Family of Constantine the Great," in The Conflict Between Paganism and Christianity in the Fourth Century, ed. by Arnaldo Momigliano (Oxford: Clarendon Press, 1963), pp. 50-51; Paschoud, 1, n. 52, p. 246; Robert Browning, The Emperor Julian (London: Weidenfeld & Nicolson, 1975), p. 31; and Glen Warren Bowersock, Julian the Apostate (Cambridge, Mass.: Harvard University Press, 1978), p. 22.

[3]For the stemma of the Constantinian dynasty, see A.H.M. Jones, J.R. Martindale, and J. Morris, The Prosopography of the Later Roman Empire, vol. 1: A.D. 260-395 (Cambridge: University Press, 1971), p. 1129, photostatically reproduced in appendix A on p. 134. Optatus: the spouse of Constantine's sister (by Theodora) Anastasia (the widow of Bassianus), Fl. Optatus had been the first, along with Julius Constantius (see n. 6 below), to be granted the honorary title of patrician revived by Constantine I. According to PLRE, 1, p. 650, Optatus was formerly a schoolmaster who taught the son of Licinius. Ablabius: like Optatus, he was related to the house of Constantine by marriage, i.e., his daughter Olympias was affianced with the emperor's youngest son, Constans. See Vogt, pp. 50-51; PLRE, 1, pp. 3-4; and Piganiol, p. 81. Jerome: the word multi is disconcerting; does it mean six or sixty persons?

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or 323 and Caesar since 333). Latecomers, but likewise included in the "réorganisation territoriale de 335,"[4] were two of the emperor's nephews (sons, therefore, of his half-brother Fl. Dalmatius the Elder and cousins of Constantius): Dalmatius (or Delmatius) the Younger (elevated to the rank of Caesar on 9 September 335) and Hannibalianus the Younger (henceforth to be called Rex regum Ponticarum and nobilissimus).[5]

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[4]X. Lucien-Brun, "Constance II et le massacre des princes," BAGB 32 (1973), p. 586. See also Jules Bidez, La vie de l'Empereur Julien, Collection Budé (Paris: Société d'Édition "Les Belles Lettres," 1930), p. 12; J. Moreau, "Constantius I, Constantinus II, Constantius II, Constans," JbAC 2(1959), p. 179; R.C. Blockley, "Constantius Gallus and Julian as Caesars of Constantius II," Latomus 21(1972), p. 459; Piganiol, pp. 61 and 82; and Leedom, pp. 132-33. Constantine II and Constantius II: believed by Moreau, p. 164, and Paschoud, 1, n. 30, pp. 211-12, to have been the legitimate offspring of Constantine and Fausta, although Piganiol, n. 1, p. 82, and Browning, p. 39, think Constantine II was a bastard. See also PLRE, 1, p. 223. For the summer of 335 and the accession of Constantine's sons, together with Dalmatius, to the rank of Caesar, see Eusebius' Laus Constantini (also called Oratio de laudibus Constantini or τριακονταετηρικός), 3.1-4; according to H.A. Drake, In Praise of Constantine: A Historical Study and New Translation of Eusebius' Tricennial Orations, University of California Publications: Classical Studies, vol. 15 (Berkeley: University of California Press, 1976), pp. 43 and 45, the first ten chapters of the address can be dated to July of 336 at Constantinople. See also Aur. Victor Caes. 41.8-15 (Pichlmayr). Crispus: Constantine's eldest (and only) son by his first consort, Minervina, he was eliminated in the midst of a brilliant military career just prior to 18 July 326 at Pola, unexpectedly and at his father's orders, en route to the emperor's Vicennalia celebration at Rome. See Vogt, pp. 48-49; P. Guthrie, "The Execution of Crispus," Phoenix 20(1966), 325-31; PLRE, 1, p. 233; Paschoud, 1, n. 39, p. 221; and Blockley, "Gallus and Julian," p. 457 and n. 5, ibid.

[5]Rex regum et Ponticarum: see Anon. Val. 6.35. See also H.M. Gwatkin and J.P. Whitney, eds., The Cambridge Medieval History, vol. 1: The Christian Roman Empire and the Foundation of the Teutonic Kingdoms (Cambridge: University Press, 1957), p. 22. Constantine's half-brothers, Julius Constantius (the elder of the two, b. 292/93) and Dalmatius the Elder, were omitted from this settlement which was confined to the next generation. Julius Constantius had been recalled ca. 324 to court (where he married Julian's mother Basilina ca. 330), was appointed consul for the year 335, and, together with Fl. Optatus (see n. 4 above) was granted the honorary title of patrician. Similarly, Dalmatius the Elder was made consul in 335 and received, around the same time, the rank and title of censor prior to being placed in charge of the investigation, in 336, of the

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Scholars are not nearly so unanimous, however, in their views regarding the actual nature and geographical extent of each of the four Caesars' jurisdiction. The issue is complicated further by historians' very imperfect knowledge of the exact number and composition of the prefectures and dioceses into which the Roman Empire had been sub-divided under Diocletian for administrative purposes, and whose names and boundaries were subject to periodic shifts until the final division of the empire in 395.[6] As far as I am able to determine, it was Constantine's intention in 335 that two of his four Caesars designate govern four dioceses apiece, and one of them three: Constantine II the two Gauls, Spain, and Britain; Constans the dioceses comprising both Italies, Africa, and Pannonia; and Dalmatius Dacia and Macedonia (i.e., Moesia, including what

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case against Athanasius, bishop of Alexandria from 328-373. See W. Enslin, "Dalmatius Censor," RhM 78(1929), 205 ff. From 334/35 he held a military command in the East, where he suppressed the usurper Calocaerus in Cyprus. Although assigned smaller shares than Constantine's sons, whom the project of 335 clearly favored, it is clear that the younger Dalmatius, certainly, and Hannibalianus, recently crowned king of Armenia, were earmarked by their uncle the emperor to participate in the succession. See Ausonius, Prof. 17.9-10 (illic [i.e., Narbo] Dalmatio genitos, fatalia regum/nomina, tum pueros [Pretei]). Finally, the entire arrangement was cemented by dynastic marriages, i.e., the daughter of Julius Constantius by a previous union wed Constantius II in 335, while the younger Hannibalianus espoused Constantine's daughter by Fausta, Constantina (also mistakenly called Constantia and Constantiniana). See PLRE, 1, pp. 240-41 and 407. See also Bidez, pp. 7 and 12; Moreau, p. 164; Stein-Palanque, p. 131; Vogt, pp. 50-51; Paschoud, 1, n. 52, pp. 245-46; Piganiol, pp. 60-61 and 82; and Bowder, p. 43.

[6]Geographical distribution: see Georg Wissowa, ed., Pauly's Real-Encyclopädie der classischen Altertumswissenschaft, vol. 4 (Stuttgart: J.B. Metzlerscher Verlag, 1901), 1046; hereafter referred to simply as PW; Moreau, p. 179; Stein-Palanque, pp. 131-32; LRE, 1, pp. 85 and 112; Paschoud, 1, n. 54, p. 247; Piganiol, p. 61 and n. 3, p. 83; Leedom, n. 7, p. 133; and Bowder, p. 43. See also Stein-Palanque, "L'Empire romain en 309" (map) photostatically reproduced in appendix A on p. 135. Dioceses and prefectures: see Stein-Palanque, p. 132, J.M. Hussey, The Byzantine World (New York: Harper & Row, Publishers, 1961), p. 13; and LRE, 1, pp. 370 and 373. See also n. 9 below.

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is often loosely termed the ripa Gothica), as well as Thrace. Constantius, by contrast, was to exercise sovereignty over only two dioceses, the Orient and Asia, but these constituted the wealthiest and most desirable pieces of real estate, which Constantine "formerly had thought best reserved for himself." (See Julian, Or. 3.94a-b [Bidez, 11]).[7] To Hannibalianus fell the diocese of Pontus, the smallest of the four shares to be sure, but doubtless with the greatest potential for expansion if ever a Romanized Persian Empire should become a reality.[8] Three further points can be clarified at this juncture: first, the breakdown described here does not correspond to the four (or even three) imperial prefectures enumerated in the Notitia Dignitatum; next, it seems that Constans (who would have been only twelve or fifteen years old in 335) together with his dominions were entrusted to the direction of Constantine II until the former should come of age; finally, under the present arrangement neither Rome nor Constantinople fell to the eldest or elder two brothers. That is, although Constantius was to rule the East, its capital city was located in the diocese of Thrace and so belonged to Dalmatius Caesar under whose jurisdiction Thrace had been placed. Similarly, while Constantine II controlled eight dioceses in the West by virtue of a certain primacy

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[7]Moesia: it seems that Constantine partitioned Diocletian's diocese of Moesia into a Dacian and Macedonian diocese respectively at some time prior to 327. See Stein-Palanque, n. 1, p. 484 and Piganiol, p. 13. Ripa Gothica: probably signifying the region of the lower Danube, see Bidez, p. 12; LRE, 1, pp. 85 and 99. Pannonia: also called Illyricum, see Stein-Palanque, p. 230 and also N.G.L. Hammond and H.H. Scullard, eds., Oxford Classical Dictionary (2nd ed.; Oxford: Clarendon Press, 1970), p. 541.

[8]Pontus: some scholars assign this diocese to Constantius, but this is untenable if one recalls that Hannibalianus had received the title of Rex regum et Ponticarum. Romanized Persian Empire: see Bidez, p. 12 and especially CMH, 1, pp. 22-23. See also PW 4(1901), 1046.

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over his younger brother, it was Constans, in theory, who eventually was to govern Italy and with it the capital city of Rome.[9]

Having provided for the succession, Constantine attempted to anticipate potential contingencies. In 336, for instance, he reduced to slave status by law (Cod. Th. IV.6.2, dated 29 April and IV.6.3, dated 21 July [Meyer and Mommsen]) and executed by year's end the illegitimate son of his former co-Augustus Licinius, one Licinianus, whom the emperor had spared in 324 subsequent to Licinius' defeat at Adrianople and Chrysopolis.[10] Constantine I must have died in the happy expectation that all would function smoothly after he had gone to his eternal reward. Sed dis aliter visum--which brings us back to the year 337 and the death of the emperor near Nicomedia.

The ancient sources provide little detailed information for the interim period following Constantine's decease, but on the basis of the

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[9]Notitia Dignitatum: dated by LRE, 2, p. 1451 to ca. 408, with later revisions down to the year 423 in the West. See also ibid., p. 1417f. According to the Notitia, Thrace belonged to the prefecture of the East, whereas in 335 it was linked with the dioceses of Dacia and Macedonia which, normally, taken with Pannonia, Italy, and Africa, comprised the prefecture of Illyricum (also called the prefecture of Italy). See CMH, 1, p. 22 and Stein-Palanque, p. 132. Leedom's analysis (p. 133) of the prefectural breakdown is faulty. Subordinate role of Constans: only Paschoud, 1, n. 52, p. 245 and n. 53, p. 247, writes as if Constantine II's guardianship over Constans existed from the very start. I find it difficult to believe that such a relationship was instituted only subsequent to the massacre and a new re-apportionment of the empire among the survivors. But see PW 4(1901), 1047; CMH, 1, p. 56; Moreau, p. 179; and Piganiol, p. 83. Constantinople and Rome: see Gwatkin, Studies, p. 108 and Leedom, p. 132. Were all or only some of the Caesars to become Augusti following Constantine's death? See Stein-Palanque, p. 131.

[10]See The Theodosian Code and Novels and the Sirmondian Constitutions, trans., by Clyde Pharr (New York: Greenwood Press, Publishers, 1961), p. 86. See also PW 13.1(1926), 231 and Piganiol, p. 61. So much for Lucien-Brun's theory (p. 586) that Constantine planned the succession in a haphazard manner!

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facts that we do possess most modern historians agree on the following hypothetical sequence of events:[11] (1) from Constantine's death on 22 May 337 approximately a three-month interregnum (see Cod. Th. XIII.4.2 [Meyer and Mommsen] issued on 2 August 337 in the deceased's name) during which a purge took place at Constantinople. Among its victims were the elder and younger Dalmatius, Hannibalianus the Younger, Julius Constantius, a nameless older brother of the future emperor Julian, together with Optatus and Ablabius; (2) Constantine II, Constantius, and Constans declare themselves Augusti on 9 September 337 (this date based on the testimony of Idatius) at an unspecified location, and are recognized as such by the Roman Senate; (3) on 12 June 338 (utilizing Cod. Th. X.10.4 [Meyer and Mommsen], addressed by Constantius [or possibly Constantine II] to the praetorian prefect Celsinus), the three brothers meet at Viminacium in Pannonia to re-partition the empire--Constantine II almost certainly is to exercise tutelage over Constans (to whom had been awarded almost the whole of the younger Dalmatius' former portion), and so in fact controls ten out of the fourteen dioceses.[12]

The preceding schema represents the majority opinion regarding the succession crisis controversy, but four additional schemata have been advanced as follows: first, (1) from 22 May 337 an interregnum in the course of which a massacre occurred at Constantinople; (2) a new division

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[11]See Gwatkin, Studies, p. 108 and n. 4, pp. 108-9; PW 4(1901), 1046-47; CMH, p. 55; Moreau, p. 164; Stein-Palanque, pp. 131-32; and LRE, 1, pp. 112-13.

[12]Fourteen dioceses: see pp. 4-5 above. Interregnum and Cod. Th. XIII.4.2: see Bidez, p. 4 and n. 9, p. 359. See also Stein-Palanque, "L'Empire romain en 309" (map) photostatically reproduced in appendix A on p. 136. Constantius settled for the diocese of Thrace and Hannibalianus' kingdom. See Gwatkin, Studies, p. 108; PW 4(1901), 1047; CMH, 1, Stein-Palanque, p. 132 and n. 6, p. 485; Paschoud, 1, n. 52, p. 245 and n. 53, p. 246; Piganiol, p. 83; and Bowder, p. 44.

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of the empire at Viminacium (not, however, identical with that of 12 June 338 above); (3) on 9 September 337 the three sons of Constantine declare themselves Augusti at an unspecified location and are recognized by the Senate of Rome.[13] Secondly, (1) from 22 May 337 an interregnum; (2) Constantine II, Constantius, and Constans declare themselves Augusti on 9 September 337 (perhaps at Viminacium) and are recognized by the Roman Senate; (3) the massacre at Constantinople--there is no mention of a re-division of the empire unless the reader is to assume that it took place on 9 September 337 at Viminacium in (2) here.[14] Thirdly, (1) from 22 May 337 an interregnum; (2) on 9 Semptember 337 the three brothers are declared Augusti at an unspecified location, followed by (3) the purge at Constantinople and (4) a re-partitioning of the dioceses at Sirmium in Pannonia on 27 September 338 (this date based on Cod. Th. XV.1.5 [Meyer and Mommsen], addressed by Constantius and Constans to one Catullinus. Finally, (1) from 22 May 337 an interregnum in the midst of which the brothers re-divided the empire among themselves in conference at Viminacium (once again, not to be confused with that of 12 June 338, but possibly occurring around the same time as Athanasius' visit with Constantius on

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[13] See Paschoud, 1, nn. 52-53, pp. 245-246.

[14] See Bidez, pp. 14-15 and n. 9, p. 359, and Giuseppe Ricciotti, Julian the Apostate, trans. from the original L'imperatore Giuliano l' Apostata (2nd ed.; 1958) by M. Joseph Costelloe (Milwaukee: Bruce Publishing Co., 1960), p. 7. Only Bowder, pp. 43-44, explicitly makes the connection between 9 September 337 and the congress at Viminacium as perhaps intend Henric Nordberg, Athanasius and the Emperor, Societas Scientiarum Fennica, Commentationes Humanarum Litterarum, vol. 30 (Helsinki: Helsingfors, 1963), pp. 33-34; Piganiol, pp. 82-83; Browning, pp. 34-35; and Leedom, pp. 133-35.

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his way back to Alexandria where he arrived from exile on 23 November 337);[15] (2) the brothers' declaration at an unspecified location as Augusti on 9 September 337, followed by their recognition by the Roman Senate; and (3) the massacre at Constantinople.[16]

Upon closer analysis, all of the reconstructions above present a serious difficulty. In particular, a careful reading of the ancient sources reveals that not a single one explicity situates the extermination of Julius Constantius, Julian's unnamed older brother, Dalmatius the Elder together with his two sons, or Optatus at Constantinople. In fact, of all the victims it seems that only Julius Constantius and his family were living there at the time and had been permanent residents of the city since 330.[17] Perhaps the assassins' orders merely originated

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[15]See Athan. Apol. Const. 601b (Szymusiak) and the Chronicon praevium 6b (PG 26, 1353). See also Archibald Robertson, ed., Select Writings and Letters of Athanasius, Bishop of Alexandria, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 4 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., 1953), n. 13, p. 503 and Nordberg, p. 33. See also Theod. HE 2.4 (Parmentier). On the date of Athanasius' return from exile, see Gwatkin, Studies, pp. 108-9 and Robertson, NPFC, 4, pp. 495-96.

[16]See Piganiol, pp. 82-83, especially n. 4, p. 82. Piganiol's application of the evidence from Athanasius does not prove the major point that he wishes to stress here, namely, that the massacre necessarily took place subsequent to 9 September 337; rather, it would seem to me to indicate only that the meeting at Viminacium occurred prior to 23 November 337 and not on 12 June 338 as the authors cited in n. 11 above have suggested who identify this same meeting of the three brothers in Pannonia with the conference alluded to in Cod. Th. X.10.4. As Piganiol's argument stands, his asseveration that the massacre must have occurred after 9 September 337 sometime is groundless unless it can be determined that the purge came about (as Piganiol, p. 83, goes on to suggest) in anticipation of an equally violent reaction by the younger Dalmatius, Hannibalianus, and their partisans to their exclusion from the succession arranged by Constantine in 335.

[17]See Bidez, p. 8. Moreau, p. 164, believes that Hannibalianus, who lived in Cappadocia, died at Caesarea, but he cites no ancient authority to substantiate his claim. See also Piganiol, p. 63.

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at the capital; such was the case with Ablabius, who Eunapius of Sardis (V. Soph. 6.3.13 [Giangrande]) gloatingly recounts for us was "hacked to pieces like some animal cut up at a public feast"[18] on his retirement estate in Bithynia. On the other hand, definitive proof that the massacre did come to pass at Constantinople might provide scholars with the evidence they require to pinpoint the date of the violence more accurately. The solemn inauguration of Constantine's New Rome on 11 May 330 notwithstanding, we know today that the imperial family and court did not reside there continuously or permanently until the reign of Theodosius I (379-395).[19] Presumably, the only occasion on which all six known victims would have appeared on the scene simultaneously at Constantinople would have been for the duration of the mourning period following the emperor's decease, which included the disposition of his last will and testament, his lying-in-state, funeral, and interment (Eus. V. Const. 4.64-70 [Heikel, 11]).[20] On the assumption that this may have been the case, we can situate the massacre of the relatives within the time frame of the three-month interregnum, i.e., soon after 22 May 337 but prior to the date 9 September 337.

A further problem is posed by the second and fifth schemata which fail to specify precise dates for the congress in Pannonia: this being the case, one wonders whether the correct sequence of events should

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[18]Wilmer Cave Wright, ed., Philostratus and Eunapius: The Lives of the Sophists, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1952).

[19]Imperial residence at Constantinople: see LRE, 1, p. 366 and Gilbert Dagron, Naissance d'une capitale: Constantinople et ses institutions de 330 à 451 (Paris: Presses Universitaires de France, 1974), p. 86 and see also pp. 79-85.

[20]But cf. Philostorgius' Ecclesiastical History 2.16 (Bidez) and p. 19 ff. below.

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entail Viminacium (or Sirmium) followed by the proclamation as Augusti on 9 September 337, or vice versa. Moreover, even where supposedly firm dates for the meeting (or meetings?) of the three brothers in Pannonia have been supplied with the aid of the Codex Theodosianus, e.g., 12 June 338 and 27 September 338, how can we be certain that these dates will align with the events presently in question?

Finally, there is the "indispensable but aggravating"[21] testimony of Jerome (Chronicle A.D. 338 [p. 234] Helm), who informs us that Ablabius, many members of the nobility, and Dalmatius Caesar were slain in 338. These data not only argue against the thesis I have just proposed above (p. 10), but against those of all five schemata as well--unless, of course, there was more than one spate of killings.[22] Admittedly, the most appealing solution would be one that takes into account, at the very least, the three major objections I have raised here (pp. 9-11).

More important than a resolution of the chronology problem, however, and an alternate means of untangling the conflicting sequences of events is an examination of the ancient texts to determine whom the writers hold responsible for the murders, their alleged motivation, and their actual consequences. The oldest version is the one which dates back to the

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[21]Ernest Cushing Richardson, ed., NPFC, 1 (1952), p. 447.

[22]This last does not seem at all improbable in my estimation; see n. 3 above. The so-called "massacre" may not have been an altogether one-time "fell-swoop" operation. Instead, it initially may have involved the emperor's half-brothers and nephew, and then gradually have spread to engulf the likes of Ablabius, Optatus, and the multi nobilium (although the first two individuals, clearly, were related to the house of Constantine by marriage). See also the tantalizing scrap of information volunteered by Athan. Chronicon praevium 6c (PG 26, 1353) for the year 338/39, although the reference may be to ecclesiastical affairs: Hoc anno multis concitatis tumultis.

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emperor Constantine's contemporary and confidant, Eusebius Pamphili, bishop of Caesarea from 313 until his death ca. 340.[23] Published between the emperor's death and the year 340, his Vita Constantini (especially 4.63-70 [Heikel, 1]) represents the earliest source in Greek or Latin to claim that a zealous military, upon hearing the news of Constantine's decease, took matters into its own hands:

> καὶ οἴδε μὲν τάδ' ἔπραττον, ὅσπερ δὲ ἐξ ἐπιπνοίας κρείττονος τὰ πανταχοῦ πάντα στρατόπεδα τὸν βασιλέως πυθόμενα θάνατον μιᾶς ἐκράτει γνώμης, ὡσανεὶ ζῶντος αὐτοῖς τοῦ μεγάλου βασιλέως μηδένα γνωρίζειν ἕτερον ἢ μόνους τοὺς αὐτοῦ παῖδας Ῥωμαίων αὐτοκράτορας. οὐκ εἰς μακρὸν δ' ἠξίουν μὴ καίσαρας ἐντεῦθεν δ' ἤδη τοὺς ἅπαντας χρηματίζειν αὐγούστους, ὃ δὴ πράτιστον καὶ μέγιστον τῆς ἀνωτάτω βασιλείας γίγνοιτ' ἂν σύμβολον. οἱ μὲν οὖν ταῦτ' ἔπραττον, τὰς οἰκείας ψήφους τε καὶ φωνὰς διὰ γραφῆς ἀλλήλοις διαγγέλλοντες, ὑπὸ μίαν τε καιροῦ ῥοπὴν τοῖς ἁπανταχοῦ πᾶσιν ἐγνωρίζετο ἡ τῶν στρατοπέδων συμφωνία. (4.68.1-10 [Heikel, 1])

In V. Const. 4.69.21-23, Eusebius relates how the senate and people of Rome "declared his [i.e., Constantine's] sons alone to be emperors and Augusti," adding at 4.70, "the second of his sons, . . . who had by this time arrived, proceeded to celebrate his father's funeral in the city which bears his name, himself heading the procession."[24] The V. Const. piously concludes, never mentioning a word about the younger Dalmatius, Hannibalianus, or dynastic bloodshed at Constantinople. As far as Eusebius is concerned, then, the army was the driving force behind the proclamation of the new Augusti, Constantius was at Constantinople for the emperor's funeral which he conducted alone (where were brothers Constantine II and Constans?), and finally, there was no massacre. Eusebius' silence on

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[23]See Hans Von Campenhausen, The Fathers of the Greek Church, trans. from the original Griechische Kirchenväter (1955) by Stanley Godman (New York: Pantheon Books, 1959), p. 63.

[24]See Richardson, NPFC, 1 (1952).

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this last point is galling. One is forced to conclude either that no violence occurred (or at least not immediately after Constantine's death), or else that Eusebius was ignorant of the assassinations of his former sovereign's nephews (which is unlikely), or that his failure to advert to the murders was intentional. Given the bishop's proximity in time and place in 337/38 to the events and persons at court, this omission on his part presumably is wilful.[25]

Another fourth century source to mention the army in connection with Constantine's passing and, this time, the succession crisis as well is Aurelius Victor, whose Liber de Caesaribus perhaps was published ca. 361, the same year in which the emperor Julian promoted him to the governorship of Pannonia Secunda (see Amm. 21.10.6 [Seyfarth, 13). Writing approximately twenty years after Eusebius, Victor recalls (at 41.15) how in 335 Constantine elevated Dalmatius the Younger to the rank of Caesar, i.e., Caesarem iussit obsistentibus valide militaribus (Pichlmayr) -- "despite bitter resistance on the part of the soldiery." After relating the circumstances surrounding Constantine's death and funeral at Constantinople (41.16-17), Victor resumes: Igitur confestim Dalmatius, incertum quo suasore [Constantius?], interficitur" (41.22). It is tempting to credit the army with Dalmatius' undoing after Constantine's death on 22 May 337 since earlier it had exerted negative pressure on the emperor in his nephews' regard even during his lifetime, but Victor does not go that far. Still, his Liber de Caesaribus does not overlook the historical

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[25] In a similar vein, Eusebius neglected to report in his V. Const. the execution of Constantine's eldest son, Crispus.

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reality of Dalmatius' murder.[26]

Two authors who accuse the military outright of a revolt immediately following Constantine's decease, and one in which leading citizens were killed, are the epitomator Eutropius and a contemporary of Aurelius Victor, Gregory Nazianzen, in his Or. 4.21 or Invectiva contra Iulianum written shortly after Julian's death in 363. According to Gregory: ἠνίκα τὸ στρατιωτικὸν ἐξωπλίσθη κατὰ τῶν ἐν τέλει, καινοτομοῦν φόβῳ καινοτομίας. καὶ διὰ νέων προστατῶν καθίσταται τὰ βασίλεια· (PG 35, 549).[27] Similar charges are leveled against the army by Eutropius ca. 363 or 369 in his Breviarium ab urbe condita 10.9.[28] But if Gregory's narrative is the first to indict openly the military for foul play, Eutropius' is the first to implicate Constantius:

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[26]For the date of publication and comments on Victor's assessment of the reign of Constantius, see Charles Edwin Vandervord Nixon, An Historiographical Study of the Caesares of Sextus Aurelius Victor (Ann Arbor: University Microfilms International, 1978), pp. 9-10 and Robert J. Penella, "A Lowly Born Historian of the Late Roman Empire: Some Observations on Aurelius Victor and His De Caesaribus," Thought 55(1980), 122-31. According to Nixon, p. 10: "It is clear that Victor, if not actually dealing with officially approved information, is at least offering an orthodox version of recent events from the viewpoint of the Constantinian house." Julian was, afterall, the last surviving male directly descended from Constantine.

[27]For the date of the fourth oration, see Rosemary Radford Ruether, Gregory of Nazianzus: Rhetor and Philosopher (Oxford: Clarendon Press, 1969), p. 178. The army alone is faulted at 4.21, but in another speech, Or. 21.26, entitled In laudem Athanasii (dated 2 May 379), Gregory changes his tune from τοῦ μεγάλου Κωνσταντίου to Τρία γὰρ ταῦτά οἱ συνεγνωκέναι καὶ καὶ τῆς ἑαυτοῦ βασιλείας ἀνάξια, τὸν τοῦ γένους φόνον, i.e., prior to his death Constantius repented of the many "unworthy evils of his reign, and above all the murder of his kindred" (PG 35, 1112). According to Lucien-Brun, p. 593, in the earlier of the two speeches (Or. 4), Gregory's hatred of Julian "fait qu'il oublie la foi arienne de l'ennemi du persécuté." See also Von Campenhausen, p. 98.

[28]See PW 61(1907), 1522 and Piganiol, n. 1, p. 123.

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> Is [i.e., Constantinus] successores filios tres reliquit atque unum fratris filium. verum Dalmatius Caesar prosperrima indole neque patruo absimilis haud multo post oppressus est factione militari et Constantio, patrueli suo, sinente potius quam iubente. (Santini)

Eutropius' Breviarium was known to both Jerome and Orosius, and ca. 380 it was translated into Greek by a friend of Libanius, one Paionius.[29] During this same period (i.e., 378-381 [Gratianus, qui nunc imperator est, nascitur] Chron. A.D. 357 [p. 241] Helm), Gregory Nazianzen's friend Jerome was compiling a translation and continuation (from the year 325/26) of Eusebius' Chronicle;[30] unlike the Chronicle of his learned predecessor, however, Jerome leaves very little to the imagination on the topic of the succession crisis. The pertinent entries read as follows:

> 337 - Constantinus cum bellum pararet in Persas . . . moritur anno aetatis·LXVI·. Post quem tres liberi eius ex Caesaribus Augusti appellantur.
>
> 338 - Ablabius praefectus praetorio et multi nobilium occisi.
>
> 338 - Dalmatius Caesar, quem patruus Constantinus consortem regni filiis dereliqueret, factione Constantii patruelis et tumultu militari interimitur. (Helm)

The author of the Epitome de Caesaribus 41.17-18, writing in the closing years of the fourth century (i.e., after 395) and at the outset of the fifth, adds no new data: Corpus [Constantini] sepultum in Byzantio, Constantinopoli dicta. Quo mortuo, Delmatius militum vi necatur (Pichlmayr).[31] As in the case of Eutropius and Jerome, the problem here is to

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[29] See PW 61(1907), 1524-25 and see also PW 8.2(1913), 1574.

[30] See PW 8.2(1913), 1566 and 1569-70.

[31] There follows immediately in 41.19-20 what appears to be an anachronism in the text since the same Delmatius (i.e., Dalmatius the Younger) is now mentioned as inheriting from Constantine the dioceses of Thrace, Macedonia, and Achaia: Ita ad tres orbis Romani redacta est, Constantinum et Constantium ac Constantem, filios Constantini. Hi singuli

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determine whether the genre constrained the anonymous epitomator to be highly selective (hence the lack of fuller details and/or personal commentary), or if he suppressed information which was potentially, or even explicitly, damaging to Constantius, or whether he was just plain careless. At any rate, owing largely to Eutropius and Jerome there emerged in the Latin West a pronounced tradition linking Constantius and the military with the extermination of his co-heir and cousin Dalmatius.[32]

In the fifth century, the trend which began with Aurelius Victor and took a new turn with Eutropius re-surfaces in the Historiarum adversus paganos libri VII of Paulus Orosius (more correctly an historical epitome undertaken at Augustine's request [7.43 (Zangemeister)] sometime after 416/17), who generally is agreed to have utilized as source material, among others, Jerome's revised Eusebian Chronicle, Eutropius, and Aurelius Victor.[33] At 7.29 Orosius comments in passing: fuit inter successores Constantini et Dalmatius Caesar frater filius, sed continuo militari factione decerptus est (Zangemeister).

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has partes regendas habuerunt: Constantinus iunior cuncta trans Alpes Constantius a freto Propontidis Asiam atque Orientem, Constans Illyricum Italiamque et Africam, Delmatius Thraciam Macedoniamque et Achaiam, Annibalianus, Delmatii Caesaris consanguineus, Armeniam nationesque circumsocias. (Pichlmayr)

[32]Oddly enough, neither Jerome nor Aurelius Victor lists Hannibalianus among the victims, whereas Victor, Eutropius, Jerome, the Epitome, and Orosius all mention Dalmatius by name. Eutropius alone alludes to Hannibalianus' elimination, and Paionius' Greek translation may account for Zosimus' inclusion of him in his early sixth century version of the massacre, although to my knowledge no one has suggested a link between these last two.

[33]One cannot exclude a common font for all four such as the so-called Kaisergeschichte (composed after 337) or else a pool of information which was available to Christian and pagan writers alike. See Timothy David Barnes, The Sources of the "Historia Augusta," Collection Latomus, vol. 155 (Brussels: Latomus Revue d'Études Latines, 1978), pp. 91-92. Orosius almost completely overlooks, either through ignorance (Lib. apol. 3.6) or apathy, eastern sources apart from Justin and Josephus. In this respect he resembles his mentor Augustine.

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Other fifth century authorities are the Greek ecclesiastical historians whose works are conditioned accordingly. The layman Socrates Scholasticus, a native and lifelong resident of Constantinople (5.24), who completed his work between 438 and 443, not only exhibits a thoroughgoing familiarity with the Eusebian and Eutropian versions of the events surrounding the succession after Constantine's decease,[34] but incorporates the strands of a third rendition which in turn may go back to that of a slightly earlier contemporary of his, the Arian historian Philostorgius (fl. ca. 433).[35] It is for this reason that the text of Socrates is quoted

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[34]Cf., for example, Laud. Const. 3.1-4 with Soc. 1.38-39, and for the V. Const. cf. 4.63-65 with Soc. 1.39-40. See also Soc. 1.8. Then, cf. Eutrop. 10.9 with Soc. 2.25 and 3.1, and Eutrop. 10.7-8 with Soc. 1.38. Socrates knew Latin, for he informs us (at 2.1) that he revised the first two books of his history, abandoning Rufinus in his second edition wherever the latter conflicted with better authorities. Geographically, Socrates' focus is limited to the East; the western church is noted only insofar as it enters into relations (or conflict) with its eastern counterpart. For example, Socrates makes no mention of Augustine, or even of the Donatist controversy in spite of the extreme likelihood that he was aware of it. Moreover, our writer's division of his narrative into seven books is determined by the imperial succession for the eastern half of the Roman Empire. Socrates confines himself primarily to ecclesiastical affairs, but he frequently intersperses his narrative with some record of concurrent political events as well. He enumerates his reasons for doing so in his introduction to the fifth book: first, his reading audience will require a change of pace from the "perpetual squabblings of bishops"; secondly, secular matters of import ought to be known by all; finally, the two spheres overlap: "By a sort of sympathy the church participates in the disturbances of the state," and "since the emperors became Christians, the affairs of the church have become dependent on them, and the greatest synods have been held and are held at their bidding." See A.C. Zenos, NPFC, 2 (1952). For the date of Socrates' history, see Glenn F. Chesnut, The First Christian Histories: Eusebius, Socrates, Sozomen, Theodoret, and Evagrius, Théologie Historique, vol. 46 (Paris: Éditions Beauchesne, 1977), pp. 167-68.

[35]For the date of Philostorgius' Ecclesiastical History, see Joseph Bidez, Philostorgius, Kirchengeschichte, GCS, 21, p. CXXXIII.

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at considerable length below:

(1) Εὐθυμός τε ἐπὶ τούτῳ γενόμενος διαθήκας ποιεῖται, ἐν αἷς τοὺς μὲν τρεῖς υἱοὺς κληρονόμους τῆς βασιλείας ἐνίσταται, καθὰ καὶ ζῶν αὐτοῖς τοὺς κλήρους διένειμε. . . . τῷ πρεσβυτέρῳ δι' ὃν περ Ἄρειος ἀνακέκληται, οὗ καὶ μικρὸν ἔμπροσθεν πεποιήμεθα μνήμην· ἐντειλάμενος μηδενὶ ἑτέρῳ ἢ τῷ υἱῷ τῷ τῆς ἀνατολῆς ἄρχοντι Κωνσταντίῳ εἰς τὰς χεῖρας βαλεῖν. . . . τῶν μέντοι υἱῶν αὐτοῦ ἐπὶ τῇ τελευτῇ παρῆν οὐδείς· πέμπεται οὖν εὐθὺς πρὸς τὴν ἑᾶαν ὁ Κωνσταντίῳ μηνύσων τὴν τελευτήν. (1.39 [Hussey, 1])

(2) Τὸ δὲ σῶμα τοῦ βασιλέως οἱ ἐπιτήδειοι χρυσῇ ἐνθέμενοι λάρνακι ἐπὶ τὴν Κωνσταντίνου πόλιν διεκόμισαν· . . . καὶ τοῦτο ἐποίουν ἕως τις τῶν υἱῶν αὐτοῦ παραγένηται. Μετὰ δὲ ταῦτα ἐκ τῶν ἀνατολικῶν μερῶν ἐπιστάντος Κωνσταντίου, κηδείας τῆς βασιλικῆς ἠξιοῦτο . . . (1.40 [Hussey, 1])[36]

Another church historian writing at Constantinople, Sozomenus of Gaza, whose unfinished work dates to the years between 443 and 447/48,[37] seems consciously to have patterned his version of the succession very closely on Socrates' without actually naming him as an authority (the corresponding passage in Sozomen to the one just cited is 2.34), so that the paired accounts have four features in common:[38] first, near death, Constantine confirmed or implemented his succession plan of 335, the sole participants mentioned being his sons. Secondly, the emperor entrusted

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[36]Cf. Julian Or. 2.34a: " . . . and as he [Constantine] had nothing to reproach him [i.e., Constantius] with, he made his affection for him evident. And a proof of his feeling is, . . . that when he was at the point of death he passed over his eldest and youngest sons, though they were at leisure, and summoned Constantius, who was not at leisure, and entrusted him with the whole government" (Wilmer Cave Wright, ed., The Works of the Emperor Julian, vol. 1, The Loeb Classical Library [Cambridge, Mass.: Harvard University Press, 1962]).

[37]See Chesnut, n. 1, p. 167 and pp. 193 and 199.

[38]Socrates Scholasticus is in fact Sozomen's leading unnamed source, although impugning Sozomen's information-gathering techniques and editorial honesty is not a major consideration here. See Chesnut, pp. 197-98.

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his written last will and testament to a cleric of the Arian persuasion, with specific instructions that the document be delivered to Constantius alone.[39] Thirdly, none of Constantine's sons was present at his death, although Constantius arrived first and conducted the obsequies. Lastly, there is no mention of a purge or military uprising in Soz. 2.34.

Whatever its roots, the story of Constantine's will (the contents of which Socrates and Sozomen do not divulge) confided to Constantius by the medium of an Arian presbyter finds its rather bizarre and almost sinister counterpart in the fragments of Philostorgius. Preserved to us in excerpts by the patriarch Photius, Philostorgius' Ecclesiastical History antedates Socrates' narrative by perhaps six years:

> "Οτι τὸ τριακοστὸν δεύτερον ἔτος ἐπιβαίνοντος τῆς βασιλείας αὐτοῦ Κωνσταντίνου, ἐν Νικομηδείᾳ φαρμάκοις ὑπὸ τῶν ἀδελφῶν τεθνάναι γράφει· ἐγγὺς δὲ τοῦ τέλους γεγονότα καὶ αἰσθόμενον τῆς ἐπιβουλῆς, διαθήκας τε γράψαι τιμαρίαν ἀπαιτούσας τοὺς ἀνελόντας καὶ ταύτην εἰσπράξασθαι τὸν προκαταλαβόντα τῶν παίδων κελεῦσαι, δέει τοῦ μή τι κἀκείνους ὑπ'αὐτῶν ὅμοιον ὑποστῆναι, δοῦναί τε τὰς διαθήκας Εὐσεβίῳ τῷ Νικομηδείας. τὸν δὲ ὑφορώμενον τοὺς τοῦ βασιλέως ἀδελφοὺς μή ποτε ζητήσειαν αὐτὰς καὶ ἀναμαθεῖν τὰ γεγραμμένα βουληθεῖεν, ἐνθεῖναι τῇ χειρὶ τοῦ

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[39]See Jerome's Chronicle (Helm) for the year 337: Constantinus extremo vitae suae tempore ab Eusebio Nicomedensi episcopo baptizatus in Arrianum dogma declinat. See also Theod. HE 2.3: Constantine's half-sister Constantia, wife of Licinius, was "intimately acquainted with a certain priest who had imbibed the doctrines of Arius." She cleverly introduced him to her brother the emperor, although "he did not venture to reveal his corrupt principles, for he observed the firmness with which the emperor adhered to the truth." On his deathbed, since none of his sons was present, Constantine entrusted this same priest with his will and "desired him to give it to Constantius, who, being at a shorter distance from the spot than his brothers, was expected to arrive first. Constantius allegedly welcomed the priest as an intimate friend of his father's with disastrous results, according to Theodoret, for "perceiving the weakness of Constantius, whose mind was like reeds driven to and fro by the wind, he became emboldened to declare war against the doctrines of the gospel. . . . He calumniated Athanasius and all who coincided in his opinions, and formed designs for their destruction" (Blomfield Jackson, ed., The Ecclesiastical History, Dialogues, and Letters of Theodoret, NPFC, 3 [1953]).

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νεκροῦ τὸ βιβλίον καὶ παραβῶσαι τοῖς ἱματιοῖς. ἐπιζητησάντων δ' ὡς ὑπενόει, λαβεῖν μὲν φάναι, ἀντιπαραδοῦναι δὲ πάλιν εἰς χεῖρας ὁμολογῆσαι. εἶτα μετὰ ταῦτα ἀνελόμενον, Κωνσταντίῳ τῷ αὐτοῦ παιδὶ ἐγχειρίσαι τὸ γράμμα προφθάσαντι τοὺς ἄλλους· τὸν δὲ μετ' οὐ πολὺ κατὰ τὰ προστάγματα τοῦ πατρὸς διαπράξασθαι. (2.16 [Bidez])

Modern scholars[40] dismiss as purely ficticnal this piece of Arian propaganda designed to exonerate Constantius from his alleged active and leading role in the dynastic murders that ensued almost immediately after Constantine's death; still, in the fragments of Philostorgius we possess evidence for a variant partisan tradition, a remnant of which may exist in a filtered or toned down (perhaps even edited) version by the orthodox historians Socrates, Sozomen, and Theodoret, which far from denying Constantius' slaughter of Julius Constantius and Dalmatius the Elder seeks only to excuse the degree of involvement and/or ultimate responsibility on his part through the vehicle of Constantine's will. Philostorgius portrays Constantius as his father's dutiful son, simultaneously a victim of circumstance and the instrument of retributive justice.

The Arian version of the succession crisis based upon Constantine's last will and testament evolved no further in the Christian histories of Socrates, Sozomen, and Theodoret.[41] In fact, Socrates' final verdict on the topic (2.25 [Hussey, 1]) reverts to the familiar and more widely-accepted version (see p. 16 above): "Ον [τὸν νέον Δαλμάτιον] . . . οἱ στρατιῶται ἀνεῖλον οὐ κελεύοντος . . . Κωνσταντίου τὴν σφαγήν, ἀλλὰ μὴ

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[40]See Bidez, p. 14; Ricciotti, p. 8; Browning, pp. 34-35; and Bowersock, p. 23.

[41]In response to the possible objection that Socrates was distracted from the Arian version by other important events, one might point out that had he wanted to pursue the issue further there was every opportunity to do so in his revised (see Soc. 2.1) edition of the first two books.

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κωλύοντος . . . (a rendition, by the way, which translates word for word Eutropius' phrase of 10.9 [Santini]: Dalmatius Caesar . . . oppressus est factione militari et Constantio, . . . sinente potius quam iubente).

Before proceeding to yet a fourth (and final) version of the succession in 337/38, it may be helpful to review our findings thus far: (1) One account, the earliest, goes back to Eusebius (337-340), who probably suppressed information by ignoring the massacre altogether and who severely restricted the army's involvment at the time to the proclamation of the new Augusti. (2) Three roughly contemporary authors (all ca. 361-369), Aurelius Victor, Gregory Nazianzen, and Eutropius, as well as Jerome in his Chronicle (ca. 378-381) name or allude to relatives and/or leading citizens as having been victims of a violent military sedition, although Eutropius and Jerome are by far the most pointed in their insistence on Constantius' and the military's shared responsibility in the extermination of the younger Dalmatius. The unknown post-Theodosian author of the Epitome[42] together with Orosius (after 416/17) belong to this second category as well--at least insofar as their views on the execution of Dalmatius by the army are concerned. Finally, Socrates (after 439) and Sozomen (between 443 and 447/48), apart from what seems to have been a narrow brush with the Arian tradition for the massacre preserved in Philostorgius, reiterate the by now standard versions of Eutropius and the anonymous Epitome (or else Orosius) respectively. (3) An alternative tradition which occurs only in Philostorgius (ca. 433) tells of a purge under Constantius, but attempts to palliate his role in the affair by falling back

[42]For the date see Blockley, "Gallus and Julian," pp. 458-459.

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on the story about a rumored last will and testament of Constantine, the threads of which version are discernible still in the narratives of Socrates, Sozomen, and Theodoret.

A fourth version can be found in the polemical Historia Arianorum ad Monachos of Athanasius which belongs to the year 358, thus making him the originator of a tradition which rivals in antiquity that of Aurelius Victor.[43] Unlike his predecessor Eusebius and his contemporary Victor, however, Athanasius stands at the head of a long line of writers, including Zosimus in the early sixth century, who adamantly accuse Constantius of having coldly masterminded the executions of his kinsmen--this owing to the authors' intense personal, political, and/or religious animosity for the emperor. Athanasius, for example, sustained three periods of exile at the hands of the powerful Arianizing party during the reigns of Constantine I and Constantius, and so he had his own ax to grind with Constantius in particular:[44]

> Τί δὲ θαυμαστόν, εἰ πλανηθεὶς εἰς ἀσέβειαν οὕτω κατὰ τῶν ἐπισκόπων ἔστιν ὡμός, ὅπου γε οὐδὲ τῆς ἰδίας συγγενείας ὡς ἀνθρωπος ἐφείσατο; τοὺς μὲν γὰρ θείους κατέσφαξε καὶ τοὺς ἀνεψίους ἀνεῖλε, καὶ πενθερὸν μέν, ἔτι τὴν θυγατέρα γαμῶν αὐτοῦ, συγγενεῖς δὲ πάσχοντας οὐκ ἠλέησεν, ἀλλὰ καὶ ὄρκων ἀεὶ πρὸς πάντας παραβάτης γέγονεν. (Hist. Ar. 69.1 [Opitz, 3.11])

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[43] For the date see Johannes Quasten, Patrology, vol. 3 (Westminster, Maryland: Newman Press, 1960), p. 27.

[44] See Jerome's Chronicle for the year 339: Ex hoc loco impietas Arriana Constantii regis fulta praesidio exiliis carceribus et variis adflictionum modis primum Athanasium, deinde omnes non suae partis episcopos persecuta est. (Helm)

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Athanasius is followed in time and sentiment by Constantius' younger cousin Julian. Apart from two deliberately ambiguous references to the massacre in Or. 1, entitled ἐγκώμιον εἰς τὸν αὐτοκράτορα Κωνσταντίον,[45] and written near the close of 356,[46] Julian, who was seven or eight at the time of the dynastic troubles in 337/38, repeatedly designates the Augustus as the ruthless killer of his family; however, in the first oration (and the ensuing observation is in no way meant to excuse his appalling flattery of the emperor in this panegyric and elsewhere, e.g., Or. 2), Julian was hardly in a position to speak out against the older man. By October of 361 in Illyricum, on the other hand, Julian was far less laconic. In his Epistle to the Athenians, intended to justify his open break with Constantius, the dissident Caesar assails his cousin directly in three separate passages, each of which appears below:

(1) Καὶ ὅτι μὲν τὰ πρὸς πατρὸς ἡμῖν ἐντεῦθεν ὥδεμπερ καὶ Κωνσταντίῳ τὰ πρὸς πατρὸς ᾤρμηται, φανερόν· τῷ γὰρ ἡμετέρῳ πατέρε γεγόνατον ἀδελφῷ πατρόθεν. Οὕτω δὲ πλησίον ἡμᾶς ὄντας συγγενεῖς ὁ φιλανθρωπότατος οὗτος βασιλεὺς ἃ εἰργάσατο, ἐξ μὲν ἀνεψιοὺς ἐμοῦ τε καὶ ἑαυτοῦ, πατέρα δὲ ἐμόν, ἑαυτοῦ δὲ θεῖον, καὶ προέτι κοινὸν τὸν ἕτερον πρὸς πατρὸς θεῖον ἀδελφόν τε ἐμὸν τὸν πρεσβύτατον ἀφρίτους κτείνας, ἐμὲ δὲ καὶ ἕτερον ἀδελφὸν ἐμὸν ἐθελήσας μὲν κτεῖναι, τέλος δὲ ἐπιβαλὼν φυγήν, . . . τί με δεῖ νῦν ὥσπερ ἐκ τραγῳδίας τὰ ἄρρητα ἀναμετρεῖσθαι; "Μετεμέλησε γὰρ αὐτῷ", φασί, "καὶ ἐδήχθη δεινῶς, ἀπαιδίαν τε ἐντεῦθεν

[45]"In your dealings with your brothers, your subjects, your father's friends, and your armies you showed justice and moderation; but in some cases, constrained as you were by the critical state of affairs, you could not, in spite of your own intentions, prevent others from wrongdoing" (17a [Bidez, l.ll]). See also 43c-d: "Indeed, some kings have believed that the wealth of their friends gave more grounds for suspicion and fear than their enemies' resources, while other rulers were jealous of the aristocracy, and therefore persecuted them in every way possible, or even obliterated their houses, and so were responsible for the ruin of their cities and, in private life, for the most heinous crimes." At 44a, Julian (ironically?) poses the question: "Who . . . has ever dared so much as to mention such conduct in your [i.e., Constantius'] case?"

[46]See Bidez, l.l, p. 3 and Bowersock, p. 37.

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νομίζει δυστυχεῖν, τά τε ἐς τοὺς πολεμίους τοὺς Πέρσας οὐκ εὐτυχῶς πράττειν ἐκ τούτων ὑπολαμβάνει". Ταῦτα ἐθρύλλουν οἱ περὶ τὴν αὐλὴν τότε καὶ τὸν μακαρίτην ἀδελφὸν ἐμὸν Γάλλον, τοῦτο νῦν πρῶτον ἀκούοντα ὄνομα· . . . Ὅπερ οὖν ἔφην, ἔλεγον τοσαῦτα καὶ δὴ καὶ ἔπειθον ἡμᾶς ὅτι τὰ μὲν ἀπαιτηθεῖς εἰργάσατο, τὰ δὲ βίᾳ καὶ παρακαῖς εἴξας ἀτάκτου καὶ παραχώδους στρατεύματος. (270c-d and 271a-b [Bidez, l.11)

(2) Μικρὸν δὲ ὕστερον ἐπελθόντος τούτου (καὶ γάρ τοι καὶ τὰ περὶ Σιλουανὸν ἐπέπρακτο), λοιπὸν εἴσοδός τε εἰς τὴν αὐλὴν δίδοται, καὶ τὸ λεγόμενον ἡ Θετταλικὴ περιβάλλεται πειθανάγκη. . . . Ἀλλ' ἐνταῦθα χρὴ μὴ παραλείπειν ἐκεῖνα, πῶς ἐγὼ συνεχάρησα, πῶς δὲ εἰλόμην ὁμορόφιος ἐκείνοις γενέσθαι, οὓς ἡπιστάμην παντὶ μέν μου λυμηναμένους τῷ γένει, ὑπάπτευον δὲ οὐκ εἰς μακρὰν ἐπιβουλεύσοντας καὶ ἐμοί. . . . πολλοὶ τῶν παρ' ὑμῖν ἐωρακότες εἰσί μοι μάρτυρες, αὐτὴ δὲ ἡ θεὸς πρὸ τῶν ἄλλων, ὅτι καὶ θάνατον ἠτησάμην παρ' αὐτῆς Ἀθήνησι πρὸ τῆς τότε ὁδοῦ. (274b-c and 274d-275a [Bidez, l.11)

(3) ὁ γὰρ χαλεπαίνων ὑπὲρ τῶν προσηκόντων μηδέν, ἄρ' οὐκ ὀνειδίζει μοι καὶ καταγελᾷ τῆς μωρίας, ὅτι τὸν φονέα πατρός, ἀδελφῶν, ἀνεψιῶν, ἀπάσης ὡς ἔπος εἰπεῖν τῆς κοινῆς ἡμῶν ἑστίας καὶ συγγενείας τὸν δήμιον εἰς τοῦτο ἐθεράπευσα; (281b [Bidez, l.11)

Judging from Julian's tone and stance above, one senses not only the bitter frankness which has replaced the diplomatic demeanor of 356, but also how Julian is determined to find everywhere underlying Constantius' actions evil intentions. For instance, in the first passage Julian would totally reject as Constantian propaganda the versions of his contemporaries Aurelius Victor, Gregory, and Eutropius, who, perhaps unwittingly, ascribed to Julian's cousin feasible extenuating circumstances in the form of a military sedition over which Constantius purportedly exercised very little direct control. Of course, Julian's interpretation might well be the correct one, and the fact that he so vehemently denounces Constantius as the murderer of his father (not to mention brothers, an uncle, et al.) could then be explained in that light. Moreover, the version of Athanasius and Julian, which places all the blame for the massacre squarely on Constantius' shoulders, emerged out of sources close to the

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imperial court even in the emperor's own lifetime (e.g., Athanasius himself, Julian, and, to a much lesser extent, perhaps Ammianus Marcellinus), and therefore must be accorded considerable weight. Eventually, when Constantius, virtually from his deathbed, will have appointed Julian his legal heir, the younger man continues elsewhere to abuse his memory, but to a considerably lesser (and less vocal) extent, heaping official responsibility instead on a coterie of insidious informers.[47] Julian, then, unfortunately was not entirely consistent in his treatment of Constantius, and this fact causes us to question, in the first place, the Caesar's own motivation, and then his judgment (if not honesty) in turn. Whether justifiably or no, the Julianic perspective is a jaundiced one and it continues intact down to the age of Zosimus. There are the ever-present vitriolic accusations exacerbated by feelings of resentment and personal dislike, but one never encounters a careful, objective attempt at achieving a balanced commentary or continuous narrative which includes a detailed progression of events following Constantine's death accompanied by the pertinent dates, locales, and names of leading participants in the succession crisis.

The earliest reference to the massacre in the speeches of Libanius, and a vague one at that, can be found in Or. 13.21 which was written in July of 362.[48] The professor of rhetoric was Julian's senior by seventeen years (i.e., b. 314 at Antioch and d. ca. 393) and barely shy of the apex of his career during the closing years of Constantius' reign when he was

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[47] See especially Misopogon 357a-c (Lacombrade) in February of 363; Or. 7.232d-233a (Rochefort) ca. 363; and from Julian's private correspondence, Ep. 33.389d-390a (Bidez, 1.2) ca. December of 361. See also Kronia 336a-b (Lacombrade) in December of 362.

[48] See PW 12.2(1925), 2501.

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recalled by the emperor to teach at Constantinople:[49]

> οὕτω δὴ καὶ σὲ μετὰ μὲν τοῦ τρίβωνος Ἀθήνηθεν ἀνέστησαν, ἐν δὲ τῇ κρατούσῃ κατὰ νόμον ἐσθῆτι ταχέως ἔδειξαν ἀπιστεῖν τε τοῦ διδόντος ἀναγκαζομένου καὶ πειθομένου πιστεύειν καὶ νῦν μὲν ἀνειργομένου, νῦν δὲ παρακαλουμένου, τὸ μὲν ἐξ ὧν αὐτῷ συνήδει πεπονθότος, τὸ δὲ ἐκ τῆς σῆς φύσεως δεχομένου, πολλάκις ἑφ' ἑκάτερον μεταπίπτοντος, ἕως ὁ φόβος ὑπεχώρησε τῇ πίστει. (Foerster, 2)[50]

The funeral oration over Julian (Or. 18, composed in 365)[51] quoted below contains Libanius' only clear-cut statement about Constantius' role in the succession crisis, although he does fail to list among its victims the elder or younger Dalmatius and Hannibalianus:

> (1) Κωνσταντῖνος μὲν οὖν τετελευτήκει νόσῳ, τὸ ξίφος δὲ μικροῦ διὰ παντὸς ἐχώρει τοῦ γένους ὁμοίως πατέρων καὶ παίδων. οὗτος δὲ καὶ πρεσβύτερος ἀδελφὸς ὁμοπάτριος τὸν πολὺν διαφεύγουσι φόνον, τὸν μὲν νόσου δυσαμένης, ἢ πρὸς θάνατον ἀποχρήσειν ἔδόκει, τὸν δὲ τῆς ἡλικίας, ἄρτι γὰρ ἀπήλλακτο γάλακτος. (18.10 [Foerster, 2])[52]
>
> (2) . . . καλεῖται πρὸς ἀρχὴν ὁ φιλοσοφῶν Ἀθήνησιν ἐξ αὐτοῦ τοῦ φιλοσοφεῖν παρέχων θαρρεῖν τῷ πλεῖστα ἠδικηκότι. καὶ γὰρ εἰ φονεὺς ἐγεγόνει πατρός τε καὶ ἀδελφῶν, τῶν μὲν πάλαι, τοῦ δὲ ἐναγχος, ἀλλ' ἤλπιζέ γε τὰς πίστεις ἐν βεβαίῳ κείσεσθαι καὶ τὸν ἐκείνου τρόπον κρείττω τῶν ἐγκλημάτων ἔσεσθαι. (18.31 [Foerster, 2])

After Athanasius, Julian, and Libanius, the next fourth century source (and the first Latin writer) to link Constantius' name with a

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[49] See PLRE, 1, p. 505.

[50] This text also could contain a reference to Gallus. See also Or. 12.35 (Foerster, 2), dated 1 January 363: "The crisis [owing to the revolts of Magnentius and Vetranio in 350-353, and Silvanus in 354] demanded a colleague on the throne. So Constantius disregarded the rest and chose the one he had wronged, not unmindful of the blood that he had spilled but placing more reliance on his potential accuser than on those under obligation to him." For the date of Or. 12, see PW 12.2(1925), 2501.

[51] See PW 12.2(1925), 2502.

[52] Soc. 3.1.168 echoes the narrative of Libanius here, with its exaggerated stress on Julian's extreme youthfulness.

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dynastic purge is Ammianus Marcellinus (b. ca. 325-330 at Antioch; d. ca. 396) in his History, books 14-22 of which probably were written at Rome between the years ca. 385 and 390.[53] Ammianus served on the eastern frontier and in Gaul with his commander-in-chief and friend Ursicinus under Constantius from 353-360, and under Julian on the latter's fateful Persian campaign in 363.[54] At 21.16.8, Ammianus concludes his assessment of the reign of the long-dead Constantius on the following note: . . . quorum [i.e., Caligulae et Domitiani et Commodi] aemulatus saevitiam inter imperandi exordia cunctos sanguine et genere se contingentes stirpitus interemit (Seyfarth, 1). This rendition of the massacre hardly flatters Constantius when measured against any yardstick. Ammianus goes far beyond the remarks of his possible acquaintance Aurelius Victor (see Caes. 42.22 on p. 13 above),[55] and Eutropius' perhaps unintentional innuendo Constantio, . . . sinente potius quam iubente pales alongside of Ammianus' matter-of-fact comparison of Constantius with three of Rome's most psychotic emperors. Unfortunately, Ammianus' doubtless more detailed accounts of the succession plan of 335 together with Constantine's death, the declaration of the new Augusti, and the first half of Constantius' reign, including the massacre and the nature of Constantius' involvement in it, have vanished along with the bulk of the first thirteen books of his History, and

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[53]Ammianus at Rome: see E.A. Thompson, The Historical Work of Ammianus Marcellinus (Cambridge: University Press, 1947), pp. 14-18 and 26. For Ammianus' vita see ibid., pp. 1-19 and PLRE, 1, pp. 547-48. For one view on the much-disputed dates of composition, see Édouard Galletier and Jacques Fontaine, eds., Ammien Marcellin Histoire, vol. 1, Collection Budé (Paris: Société d'Édition "Les Belles Lettres," 1968), p. 19.

[54]See Thompson, Historical Work, pp. 3-11. Ursicinus: see PLRE, 1, pp. 985-86.

[55]See Amm. 21.10.6 on Aurelius Victor.

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so we cannot utilize these as a corrective for Eutropius and Jerome, nor can we amplify or deny Ammianus' account of 21.16.8. Arguing on the basis of the evidence that we do possess, however (e.g., Ammianus' treatment of Gallus Caesar's demise in 354 at Constantius' hands coupled with the historian's own devotion to Ursicinus and Julian),[56] one reasonably may conclude that Ammianus' views on the massacre would have been conditioned, i.e., biased in Julian's favor, accordingly, and that Constantius did not (and could not) win a positive endorsement in Ammianus' History in general. Admittedly, the accuracy of Ammianus Marcellinus' historical work as a whole has never been challenged seriously; still, one must bear in mind that it is a chronicle of the author's own era, the emphasis and focus of which are largely those proceedings in which Ammianus himself was a participant, and as such he was immune to neither his own personal prejudices nor those of his colleagues and sources.[57]

Our final fourth century source is a very late one, Eunapius of Sardis, whose Vitae Sophistarum dates to after 396.[58] At V. Soph. 6.3.7-13 (Giangrande), in the course of a digression in his life of Aedesius, Eunapius writes about Ablabius, the powerful praetorian prefect of the Orient from 329-338 and consul under Constantine in 331, whom he holds responsible for the murder of the esteemed Neo-platonic thinker Sopater

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[56]Gallus: see ch. 2, pp. 57-61 below. Partiality toward Ursicinus and Julian: see Thompson, Historical Work, pp. 3-5, 42-55, and 72-73. See also n. 47 in ch. 2 below.

[57]See Thompson, Historical Work, pp. 39, 41, and 127-30; Galletier, 1, pp. 38-40; and R.C. Blockley, Ammianus Marcellinus: A Study of His Historiography and Political Thought, Collection Latomus, vol. 141 (Brussels: Latomus Revue d'Études Latines, 1975), pp. 17, 27, 39, 41, and 137.

[58]The date is disputed. See V. Soph. 7.3.4-5. See also PLRE, 1, p. 296 and OCD, p. 416.

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of Apamea in 331[59] (see V. Soph. 6.2. [Giangrande]) because Ablabius envied the sophist's friendship and influence with the emperor:

> Κωνσταντῖνος μὲν οὖν καὶ Ἀβλάβιον τιμῶν ἐκολάζετο, καὶ ὅπως γε ἐτελεύτα ἐν τοῖς περὶ ἐκείνου γέγραπται. Ἀβλαβίῳ δὲ τὸν παῖδα κατέλιπε Κωνστάντιον, συμβασιλεύσαντα μὲν αὐτῷ, διαδεξάμενον δὲ τὴν ἀρχὴν τοῦ πατρὸς οὐν Κωνσταντίνῳ καὶ Κώνσταντι τοῖς ἀδελφοῖς. ἐν δὲ τοῖς κατὰ τὸν θειότατον Ἰουλιανὸν ἀφιρβέστερον ταῦτα εἰρηται. διαδεξάμενος δὲ ὁ Κωνστάντιος τὴν βασιλείαν καὶ κληρωθεὶς ὅσα γε ἐκληρώθη, ταῦτα δὲ ἦν τὰ ἐξ Ἰλλυριῶν εἰς τὴν ἑᾶν καθήκοντα, τὸν μὲν Ἀβλάβιον αὐτίκα παραλύει τῆς ἀρχῆς, ἄλλο δὲ περὶ αὐτὸν ἑταιρικὸν συνέστησε. καὶ ὁ μὲν Ἀβλάβιος τὰ περὶ Βιθυνίαν χωρία πάλαι παρεσκευασμένος, βασιλικάς τε καταφυγὰς καὶ ῥᾳθυμίας ἔχοντα, διέτριβεν ἐν ἀφθόνοις, πάντων ἀνθρώπων θαυμαζόντων ὅτι βασιλεύειν οὐ βούλεται. ὁ δὲ Κωνστάντιος ἐγγύθεν ἐκ τῆς τοῦ πατρὸς πόλεως ξιφηφόρους τινὰς ἐπ' αὐτὸν ἐκπέμψας οὐκ ὀλίγους, τοῖς μὲν πρώτοις ἐκέλευσεν ἀποδιδόναι γράμματα καὶ προσενύπαδν γε αὐτόν, ὥσπερ νομίζουσιν Ῥωμαῖοι βασιλέα προσκυνεῖν, οἱ τὰ γράμματα ἐγχειρίζοντες· καὶ ὃς μάλα σοβαρῶς δεξάμενος τὰ γράμματα καὶ παντὸς ἀπολυθεὶς φόβου, τήν τε ἀλουργίδα τοὺς ἐλδόντας ἀπήτει, βαρύτερος ἤδη γινόμενος, καὶ φοβερὸν ἦν τοῖς ὁρωμένοις. οἱ δὲ ἔφασαν πρὸς αὐτόν, αὐτοῖ μὲν τὰ γράμματα κομίζειν, πρὸ θυρῶν δὲ εἶναι τοὺς ταῦτα πεπιστευμένους. καὶ ὁ μὲν ἐκείνους ἐκάλει μέγα φρονῶν καὶ τῇ γνώμῃ διηρμένος· οἱ δὲ συγχωρηθέντες εἰσελθεῖν πλῆθός τε ἦσαν καὶ ξιφηφόροι πάντες, καὶ ἀντὶ τῆς ἀλουργίδος ἐπῆγον αὐτῷ "τὸν πορφύρεον θάνατον," κρεουργηδόν, ὥσπερ τι τῶν ἐν ταῖς εὐωχίαις ζῷον, κατακόψαντες. καὶ ταῦτα ἔτισε Σωπάτρῳ δίκην ὁ πάντα εὐδαίμων Ἀβλάβιος. (6.3.8-13 [Giangrande])

Eunapius reports only the execution of Ablabius as having been perpetrated at the instigation of Constantius. Does this mean that Eunapius was unaware of the murders of Dalmatius the Younger, Julius Constantius, or the multi nobilium? Such an explanation is hardly a satisfactory one in my estimation. More likely than not Eunapius deliberately passed over the massacre of the other members of Constantine's family, preferring to describe instead the prefect's humiliating end which resulted from his alleged worldly behavior and imperial aspirations, because of the stated (and in Eunapius' mind, obvious) parallel between the fates of the two martyr-philosophers Socrates and Sopater (see V. Soph. 6.3.7). In so doing,

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[59]See Soz. 1.5. See also PLRE, 1, p. 846.

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Eunapius not only succeeded in getting off a vicious shot in V. Soph. 6.2-3 at two Christian emperors whom he detested (namely, Constantine and Constantius), while at the same time preventing the digression on Ablabius from straying outside the subject-matter at hand, but he also has supplied us with valuable information about the succession crisis of 337/38.[60]

When Constantine died in 337, Constantine II was twenty years old and had resided at Treves in Gaul since 328, from which vantage point he governed the West.[61] Constans was fourteen or seventeen years of age and was espoused to Ablabius' daughter Olympias; we do not know where he was living prior to or during the so-called dynastic troubles.[62] Constantius, aged nineteen years, was ruling the East and had resided since 333 at Antioch where he seems temporarily to have been accompanied by, or, according to Eunapius, in close contact with Ablabius.[63] What then is the likelihood of the influential praetorian prefect's having engineered the executions of Constantius' relatives? Several modern authors hypothesize that the older and more experienced Ablabius may have been the pivotal figure behind the events of 337/38 either by virtue of his having collaborated with the other three praetorian prefects and/or one (and perhaps

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[60]Ablabius: Eunapius (V. Soph. 6.3.6) relates the following anecdote about the prefect's birth: "Go, woman, tell the mother that she has given birth to one only second to an emperor." Eusebius (V. Const. 4.54-55) refers to Ablabius as the "unworthy favorite." See also PW 3.A1(1927), 1006-7; Paschoud, 1, n. 53, pp. 247-48; Piganiol, p. 57; and Lucien-Brun, pp. 590-91 and 593. See also n. 3 above.

[61]See Piganiol, p. 50.

[62]Ibid., pp. 81-82.

[63]Ibid., p. 63.

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even all) of Constantine's sons (although Constantius is especially suspect because of his proximity to Constantinople), or, in the second place, by having plotted against the same together with the younger Dalmatius and Hannibalianus.[64] In the latter instance, the elimination of Ablabius, Dalmatius, and Hannibalianus might then have represented a "justifiable reaction by the sons of Constantine to an attempted coup."[65] In the first instance, Ablabius, for all of his expertise at court, would have awakened one morning in 338 (using Jerome's chronology) to discover that following the initial round of bloodletting he had worn out his welcome in the estimation of the new regime. In either case one cannot discount altogether the possibility that Ablabius himself had designs on the purple and was, therefore, hastily and expediently eliminated for treason by Constantius. There is a third possible interpretation which up until now has gone unnoticed by modern scholars, yet it is one that the text of Eunapius V. Soph. 6.3.8 (Giangrande) quoted already on p. 29 above will sustain:

> Κωνσταντῖνος μὲν οὖν καὶ Ἀβλάβιον τιμῶν ἐκολάζετο καὶ ὅπως γε ἐτελεύτα ἐν τοῖς περὶ ἐκείνου γέγραπται. Ἀβλαβίῳ δὲ τὸν παῖδα κατέλιπε Κωνστάντιον, συμβασιλεύσαντα μὲν αὐτῷ διαδεξάμενον δὲ τὴν ἀρχὴν τοῦ πατρὸς σὺν Κωνσταντίνῳ καὶ Κώνσταντι τοῖς ἀδελφοῖς.

Now how could Constantine better have been "punished for the honor that he paid to Ablabius" than to discover that his trusted prefect was

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[64] For the names of the other praetorian prefects, see Piganiol, pp. 81-82 and n. 3, p. 82. See also Norman H. Baynes, "Three Notes on the Reforms of Diocletian and Constantine," JRS 15(1925), p. 205 and Jean-Remy Palanque, "Les préfets du prétoire sous les fils de Constantin," Historia 4(1955), 257-63. Ernest Stein, "A propos d'un livre récent sur la liste des préfets du prétoire," Byzantion 9(1934), p. 329, however, disavows their involvement.

[65] Leedom, p. 136.

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involved with Julius Constantius et al. in the poisoning plot against the emperor Constantine mentioned by the Arian historian Philostorgius 2.16 (see p. 19 above)? Ablabius and the multi nobilium who perhaps aspired to the throne (see Jerome's Chronicle A.D. 338 [p. 234] Helm) would then have paid with their lives for their ambitious attempts as soon as Constantius was in a sufficiently firm position to fulfill the directives contained in his father's will.

Although the foregoing are attractive solutions, they cannot be substantiated with evidence from the ancient texts--unless a vague allusion in a speech of Gregory of Nazianzen (Or. 4.21 cited earlier on p. 14) can be construed as pointing to Ablabius' involvement in the massacre: ἡνίκα τὸ στρατιωτικὸν ἐξωπλίσθη κατὰ τῶν ἐν τέλει, καινοτομοῦν φόβῳ καινοτομίας. καὶ διὰ νέων προστατῶν καθίστατο τὰ βασίλεια.[66] The problem, of course, is that the Greek διὰ νέων προστατῶν may or may not refer specifically to the office of the praetorian prefecture, and even if it does in this context one must rule out the veteran Ablabius because of the adjective νέων. In spite of modern critics who argue to the contrary, it seems Ablabius' connection with the massacre was remote since, in addition to a hostile source's (i.e., Eunapius') failure to document any crime of his beyond Sopater's murder, one would expect at least one pro-Constantian source, Philostorgius for example, simply to have indicted Ablabius for the dynastic purge from the outset, thereby dispensing with the need for the Arian

[66]See also Gwatkin, Studies, n. 4, pp. 108-9.

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story of Constantine's will and its sequel altogether.[67]

From the middle of the fifth century, we possess only the bald remark of the bishop (since 423) of Cyrus, Theodoret, who wrote his Ecclesiastical History in five books sometime between 441/42 and the year 449:[68] δείσας [sc. Ἰουλιανὸς] δὲ τὸν Κωνστάντιον (τοὺς γὰρ γένει προσήκοντας ἀνήρει δειμαίνων τὰς τυραννίδας) τοῦ τῶν ἀναγνωστῶν ἠξιώθη χοροῦ καὶ τὰς ἱερὰς βίβλους ἐν τοῖς ἐκκλησιαστικοῖς συλλόγοις ὑπανεγίνωσκε τῷ λαῷ (3.2.10-13 [Parmentier]). As is characteristic of the ecclesiastical writers, Theodoret supplies no further information beyond his initial statement that Constantius put to death (or else caused to be put to death) his kinsmen.

Zosimus, who wrote books one to three of his Νέα ἔκδοσις perhaps at Constantinople (see 2.30 [Paschoud, 1]) in the early sixth century between 498 and 518,[69] not only blames Constantius for the massacre of his relatives but furnishes a fairly complete list of the better-known victims:

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[67] Eunapius perhaps alludes to the will and its contents in the statement . . . Κωνσταντῖνος μὲν οὖν καὶ Ἀβλάβιον τιμῶν ἐκολάζετο, καὶ ὅπως γε ἐτελεύτα ἐν τοῖς περὶ ἐκείνου γέγραπται. That is, the prefect could have been one of the conspirators who poisoned the emperor. Still, overall Eunapius' account suggests that Ablabius was a victim rather than a perpetrator of the purge.

[68] See Chesnut, pp. 200-1.

[69] The date of Zosimus' work is hotly disputed. See Franz Rühl, "Wan schrieb Zosimos?," RhM 46(1891), 146-47; Alan Cameron, "The Date of Zosimus' 'New History'," Philologus 113(1969), 106-10, who opts for the year 501; and Walter Goffart, "Zosimus, the First Historian of Rome's Fall," Am. Hist. Rev. 76(1971), nn. 49 and 53 on pp. 422-23 respectively, who favors 504. See also Lellia Cracco Ruggini, "Pubblicistica e storiografia bizantine di fronte alla crisi dell'Impero romano (A proposito di un libro recente)" Athenaeum 51, 1-2(1973), p. 169, who argues for a date of composition later than 507. Paschoud, 1, pp. xii-xvii, settles for the period spanning 498-518.

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Ἀλλὰ τῆς ἀρχῆς οὕτως ἐκάστῳ νεμηθείσης, Κωνστάντιος ὥσπερ ἐξεπίτηδες μὴ κατόπιν γενέσθαι τῆς τοῦ πατρὸς ἀσεβείας ἔσπουδακώς, ἀφ' ἑστίας ἀρξάμενος αἷμα συγγενὲς ἀνδρείου τρόπου δεῖγμα παρασχεῖν ἅπασιν ἠβουλήθη. Καὶ πρῶτον μὲν Κωνσταντίῳ πατρὸς ἀδελφῷ διὰ τῶν στρατιωτῶν καταπράττεται θάνατον, ἔπειτα καὶ Δαλματίῳ τῷ Καίσαρι ῥάττει τὴν ὁμοίαν ἐπιβουλήν, συναναιρεθῆναι τούτῳ καὶ Ὀπτάτον παρασκευάσας, ὃς παρὰ Κωνσταντίνου τῆς ἀξίας τετυχήκει τοῦ πατρικίου, πρώτου ταύτην ἐπινοήσαντος τὴν τιμήν, καὶ προκαθῆσθαι τοὺς ταύτης ἠξιωμένους τῶν τῆς αὐλῆς ὑπάρχων νομοθετήσαντος. Ἀνῃρέθη δὲ τότε Ἀβλάβιος ὁ τῆς αὐλῆς ὕπαρχος, τῆς δίκης ἀξίαν αὐτῷ ποινὴν ἐπιθείσης ἀνδ' ὧν ἐπεβούλευσε θάνατον Σωπάτρῳ τῷ φιλοσόφῳ φθόνῳ τῆς Κωνσταντίνου πρὸς αὐτὸν οἰκειότητος· ὥσπερ δὲ κατὰ πάσης χαρᾶν τῆς συγγενείας, καὶ Ἀννιβαλλιανὸν τούτοις ἐπέθηκεν, ὑποθέμενος ἐκβοᾶν τοῖς στρατιώταις ὡς οὐκ ἂν ἄρχοντος ἑτέρου πλὴν τῶν Κωνσταντίνου παίδων ἀνάσχοιντο· ταῦτα μὲν οὕτω Κωνσταντίῳ διεπονήθη. (2.40 [Paschoud, 1])

Zosimus seems to have culled and absorbed features from both the Eusebian and pro-Julianic traditions: for example, (1) Eusebius' boast at V. Const. 4.68 that the soldiery wanted no sovereigns other than Constantine's sons; (2) vestiges of Eutropius' (or Socrates') military sedition (i.e., Dalmatius Caesar . . . oppressus est factione militari et Constantio, . . .); (3) Julian's Kronia (336b) wherein the identical expression αἷμα συγγενές occurs; and (4) Eunapius' version of Ablabius' allegedly merited undoing at the hands of Constantius. But Zosimus lends a much more negative cast to the Eusebian explanantion and to the Eutropian statement Constantio, . . . sinente potius quam iubente, by insisting that Constantius inspired the revolt and exploited the dissident troops, using them as his agents for the assassinations of Julius Constantius, Dalmatius Caesar, Hannibalianus, and probably Optatus and Ablabius as well. Zosimus' is likewise the earliest and only extant account to include Optatus (one of Jerome's nameless multi nobilium?) among the casualties, and it may well be

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that the source of this new piece of information is Eunapius' lost history.[70]

Finally, the confused sequence of events and chronology for the succession crisis of 337/38 receives no additional clarification from Zosimus. For instance, whereas with Jerome Zosimus reports the murders as if nearly all occurred in rapid progression and perhaps even simultaneously (although the younger Hannibalianus rather than Dalmatius is the last to succumb in Zosimus' version), still, Jerome's Chronicle lists Ablabius as having perished prior to Dalmatius the Younger, whereas this pattern is reversed in the Νέα ἔκδοσις. The point of the comparison is not that Zosimus necessarily consulted or misread Jerome; on the contrary, Zosimus' information about Ablabius almost surely derives from his leading anti-Christian source Eunapius (e.g., V. Soph. 6.3), just as his data concerning the younger Dalmatius theoretically could originate from either the Greek translation of Eutropius' Breviarium, the church histories of Socrates and Sozomen, or once again, the most likely candidate of all, Eunapius' Χρονικὴ ἱστορία which the Christian writers Philostorgius, Socrates, and Sozomen utilized, among other materials, for their research.[71] The point, rather, of the random and somewhat simplistic comparison with Jerome is that Zosimus' early sixth century pagan version of the massacre is a hybrid one whose data cannot be evaluated accurately or verified given the present condition of the available ancient sources, and that as a result the Νέα ἔκδοσις is every bit as unsatisfactory a witness to the circumstances surrounding the dynastic violence as Eusebius' contemporaneous account,

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[70]For evidence of Zosimus' use of Eunapius, see especially Eunap. FHG 1 and 8 (Müller) and Photius, Bibl. codd. 77 and 98. For a discussion of Zosimus' sources in general, see Paschoud, 1, pp. xxiv-lxiii.

[71]See PW 6.1(1907), 1126.

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in which the revered bishop attempted to suppress the affair altogether by sweeping it under the rug, as it were.

As was intimated earlier, the problem of chronology and the question of whom the various traditions (e.g., Eusebian, Eutropian, Arian, and pro-Julianic [or Athanasian]) hold responsible for the purge mesh closely with the complicated questions of motivation and consequences. If ancient and modern historians knew precisely when the new division of power and authority among the three sons of Constantine took place (i.e., on, before, or subsequent to 9 September 337), and whether or not the brothers' meeting occurred prior to or following the massacre, the process of determining the motives of each, leaving aside the military for the moment, might be greatly simplified. As the evidence stands, one is hardpressed to imagine Constans, at age fourteen (or even seventeen), as having been consulted by his elder siblings in their crucial joint decisions (hence the trusteeship system under Constantine II in the West), so that if a plot to eliminate the masculine collateral line of the house of Constantine originated with the emperor's sons at all, we are faced with the prospect of the two older brothers and/or the military as the instigators of the purge of 337/38. Therefore, if the re-distribution of lands and jurisdiction corresponds with or followed the conference on 9 September 337, and if these same events succeeded the massacre, then insofar as Constantine II ended up with the largest expanse of territory (i.e., his own and Constans' portions combined), Constantine II and then Constantius, in that order, gained (or stood to gain) the most materially from the executions of the other heirs. If, on the other hand, the sequence above is reversed and the political murders followed on the events of 9 September 337 (e.g., as in the supposed case of Ablabius and the multi

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nobilium), then while the immediate "benefits" to the two senior brothers would remain unaltered (i.e., acquisition of new lands and more far-ranging authority), the meeting of 9 September 337 would have served as a death warrant for the other ruling partners.[72] In either case, to be reckoned among the more negative and, doubtless, far-reaching consequences of the assassinations would have to be not only the commencement of the collapse of Constantine I's plans for a continued peaceful dynastic succession (Constantine II died violently in 340 and Constans in 350, both amidst civil strife), but also Julian's contempt for his imperial predecessor Constantius and the Christian faith which his uncle and cousins professed but failed to witness by their actions.[73]

Eusebius (V. Const. 4.70), Julian (Or. 2.94b), Philostorgius (2.16), Socrates (1.39-40), and Sozomen (2.34) are the only authorities who place Constantius anywhere in the vicinity of Constantinople shortly after 22 May 337.[74] It is probably for this reason and because, in the final analysis, Constantius managed to outlive his brothers that ancient and modern historians alike suspect or else openly accuse this "most gifted"[75] and, in time, powerful of Constantine's offspring of having been the sole

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[72]See Leedom, p. 136.

[73]Julian's hatred of Constantius: see Bowersock, p. 23.

[74]Philostorgius explicitly states that Constantine's brothers journeyed to Constantinople in search of his will, although Constantius' physical presence in that city need not have been a prerequisite for the purge to take place. It is equally possible that he was at his field headquarters in Antioch or Pannonia. See also p. 10 above.

[75]See Johannes Geffcken, The Last Days of Greco-Roman Paganism, trans. from the original 1929 rev. ed. of Der Ausgang des griechische-römischen Heidentums by Sabine MacCormack, Europe in the Middle Ages Selected Studies, vol. 8 (Amsterdam: North-Holland Publishing Co., 1978), p. 7. See also Bowder, p. 44 ("most capable") and Leedom, p. 132 ("most successful").

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instigator of the massacre. But Julian had to hold someone personally responsible for engineering or else failing to prevent the murders of his father and elder brother (not to mention Gallus), and who would constitute a more convenient and believable choice between 358 and 361 than his arch-rival Constantius?[76] In other words, one must ask whether or not Julian, for political reasons, would have accused, say, Constans in a similar set of circumstances if this youngest of the three brothers instead of Constantius had survived the longest and a showdown for supremacy were inevitable. Is it needful to posit only one leader of a conspiracy to eliminate Constantine's brothers and cousins, and to assume that Constantius was that leader? We know from Aurelius Victor Caes. 42.15 that the elevation of the younger Dalmatius to the rank of Caesar in 335 aroused the anger of the soldiery, and, according to Eusebius V. Const 4.68, that subsequently in 337 the army unilaterally protested that it would support none but the sons of Constantine I. Frustrated by the interregnum and the complicated succession scheme, perhaps it was a dissident military which triggered the purge, with or without the connivance of Constantine II and/or Constantius, by asserting its preference for a clear dynastic principle; afterall, as late as the year 350 the

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[76] In 359 Constantius requisitioned Julian for the cream of his Gallic and British troops for service in the East against the Persians. From his winter quarters at Paris it seems that Julian made a sincere, if unwilling, effort to co-operate with his superior, but some detachments of his men, who had enlisted on the condition that they not be required to campaign outside Gaul, upon learning of Constantius' demands, mutinied at Paris in February of 360 and proclaimed Julian Augustus. It is difficult to determine to what extent Constantius' demands were legitimate and to what extent they may have been calculated to weaken Julian, his potential competitor for the throne. See ch. 3, pp. 108-113.

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emperor Constantius won back the loyalty of his mutinous legions in Gaul by means of a harangue on his father's generosity toward his troops (see Zos. 2.44).[77] Could Constantius, or, for that matter, Constantine II along with him, singlehandedly have quelled a series of military riots?[78]

Finally, how enthusiastic in actual fact was Constantine regarding the succession plan which he devised in the summer of 335? Did he not foresee bitter contention between his children and his nephews? Had not the pious emperor himself already established a precedent for familial bloodshed by condemning to death his own son Crispus in 326, followed by the execution of his second wife Fausta in 328?[79] And if so, can one go so far as to say that he intended his remaining sons to dispose of their co-heirs? This line of argumentation surely takes the slight evidence we do possess for such a thesis much too far, particularly when one weighs against it the care exercised by the emperor to ensure an equitable division of land and powers among his eligible male successors.

The most plausible motives behind the army's and/or members of the royal family's impetus to dynastic violence and mass murder in 337/38 would have to be the mutual antipathy which existed between the two branches of Constantine's household coupled with their own as well as other highly-placed individuals' (e.g., the prefect Ablabius') ambitions to exert greater influence at court than that which was allowed to each

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[77] See Julian Or. 1.31c-d.

[78] See Leedom, pp. 134-35.

[79] See Lucien-Brun, p. 602: "Constantin n'a-t-il pas fourni à Constance, en lui permettant de se poser en défenseur de sa part d'héritage et de la dynastie, un prétexte commode et valable pour supprimer ces parents détestés?"

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by the original succession agreement of 335--an example might be Constantius' presumed pique at not having been awarded the capital city of Constantinople although he had received the diocese of Asia. But certain data do argue suasively for the opportunity, motives, and even culpability of Constantius as opposed to his elder brother Constantine II for having precipitated or acted as an accomplice to the bloodbath: first of all, there is Constantius' proximity to Constantinople where the assassinations seem to have occurred and whence issued the commands to kill Ablabius attested to by Eusebius (V. Const. 4.70), Philostorgius (2.16), Socrates (1.40), Sozomen (2.34), and Eunapius (V. Soph. 6.3). Secondly, in addition to the motivating factors just mentioned, there were "strategic reasons"[80] for wanting the younger Dalmatius and Hannibalianus dead, since if ever at some future date these two were to join forces against Constantius his domain would be virtually indefensible. Thirdly, we have Julian's testimony at Ep. ad Ath. 273b (Bidez, 1.1) which leaves one with the distinct impression that Constantius, adding insult to injury, legitimized and lent official sanction to the executions which his much-disputed "inertie calculée"[81] brought about by legally confiscating the victims' fortunes and property.[82] In other words, is fecit cui prodest.[83] Lastly, there is the Arian version of Philostorgius (2.16), the cornerstone of which is

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[80] See Leedom, p. 134.

[81] See Lucien-Brun, p. 600.

[82] See Andrew Alföldi, A Conflict of Ideas in the Late Roman Empire: The Clash between the Senate and Valentiniar I, trans. by Harold Mattingly (Oxford: Clarendon Press, 1952), p. 38; Stein-Palanque, p. 131; Paschoud, 1, n. 53, p. 247; and Lucien-Brun, p. 600.

[83] Ricciotti, p. 8. See also Lucien-Brun, p. 601.

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Constantine I's last will and testament: what other source from antiquity could be more damaging than this partisan author who narrates how Constantius fulfilled his father's dying wishes by murdering his own uncles, thereby assuming a leading role in the massacre? Nor can one rule out entirely the chance that Constantius may have experienced undue pressure from high-ranking military personnel (i.e., the so-called factio militaris referred to by Eutropius, Jerome, the anonymous writer of the Epitome, and Orosius) as well as civil officials and civilian members of the aristocracy (i.e., multi nobilium).[84] There remains only the unlikely and unsubstantiated hypothesis that Constantius acted as Constantine II's proxy in eastern affairs during the purge of 337/38.

Ought then Constantius to bear full responsibility for the bloody troubles which marked the outset of his reign and which more or less set the tone among the ancient writers for the remainder of his imperial tenure, or can one adduce attenuating circumstances to justify his conduct?[85]

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[84] Although as Lucien-Brun, p. 601, sees it: " . . . le fait demeure que Constance, fils et successeur de Constantin, est la tête et que hauts fonctionnaires, officiers supérieurs, courtisans, factions, etc. . . . ne sont que des bras, et Eutrope, qui nous montre le prince réfugié dans la neutralité, ne le décharge d'aucun poids." The same author goes on to explain (ibid.) how the Empire at large never considered an emperor " . . . fût-il un enfant, comme non responsable des actes de ceux qui agissent à sa place. . . . Les actes législatifs sont pris en son nom par des régents, gouverneurs, conseillers dont le nom n'est jamais mentionné, et les actes de gouvernement accomplis par eux lui sont attribués. Mais, en 337, personne ne peut prendre une décision de quelque importance sans que le prince en soit informé, et agir à son insu. Constance, rappelé d'Orient par l'Auguste lui-même, est effectivement le souverain, . . . On ne peut supposer l'armée et la cour agissant en dehors de lui."

[85] For two quite balanced, but diametrically opposed views, cf. Leedom, pp. 132-36 and 145 and Lucien-Brun, pp. 599-601. See also Browning, pp. 34-35 and Stein-Palanque, pp. 131-32 for very divergent interpretations and opinions.

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At the beginning of this chapter, I said that the problems surrounding the succession crisis of 337/38 were complicated and most likely insoluble owing to the uncertain chronology and unevenness of the evidence, although I believe the most realistic and fruitful approach to be the collection and re-evaluation of the ancient sources closest in time and ethos to the persons and events themselves. By way of conclusion, then, our analysis of these problems through the medium of the primary sources culminates in the following observations: (1) Judging from Eusebius' reticence on the subject of the massacre and Philostorgius' Arian version of the will, Constantius almost certainly was associated with the dynastic murders of 337/38, but the data are too piecemeal to reconstruct accurately the events surrounding the assassinations which perhaps transpired soon after Constantine's funeral, that is, prior to 9 September 337. (2) Anti-Constantian sentiment generally runs higher in the East than in the West; whereas the Latin authors with the exception of Ammianus Marcellinus, who was afterall an easterner by birth, attribute the purge to Constantius and the army, in the Greek-speaking East the tendency on the part of writers as a rule and as a group, apart from the church historians, is to condemn Constantius alone. (3) Constantius' detractors are numerically superior to favorable or neutral sources. Moreover, a member of his own family, Julian, is among his harshest critics. (4) There is a tendency on the part of both pagan authors who are hostile to Constantine and his entire family, and orthodox Christian writers opposed to the Arian emperor Constantius, to align on the issue of the massacre:[86] the version which blames Constantius for the extermination of his relatives emerges with

[86]See Paschoud, 1, n. 53, p. 246.

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Athanasius, is reiterated by the pagans Julian, Libanius, Ammianus Marcellinus, and Eunapius in the fourth century, and is taken up once more by Theodoret as well as the almost fanatical pagan Zosimus in the fifth and sixth centuries respectively. There seems to have been at least one controversial issue upon which pagans and Christians alike could agree during these troubled centuries.

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CHAPTER II

THE GALLUS AFFAIR OF 353/54

As in the preceding chapter, ancient opinion--this time regarding the events leading to the appointment of Constantius' eldest surviving male cousin, Flavius Claudius Constantius,[1] as Caesar for the eastern half of the empire, his recall in mid-career from Antioch, and summary execution at the age of twenty-nine (see Amm. 14.11.27 [Seyfarth, 1]) near Pola (Histria) in November of 354--is sharply divided.

Apart from the pardonable omission of the six-year internment period (341/42-347/48) of Gallus and his younger brother Julian by Constantius at Macellum in Cappadocia, Jerome's Chronicle (pp. 234-38 [Helm]) provides a superb thumbnail sketch of select pertinent events for the years 338 (i.e., from the aftermath of the massacre) to 351 and Gallus' elevation on 15 March at Sirmium:[2]

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[1]The official appellation after 15 March 351, although he is referred to simply as "Gallus" in the ancient sources, perhaps to distinguish him from Constantius II. See, for example, Aur. Victor Caes. 42.9 and Soc. 2.28 as well as 2.33-34. See also PW 4(1901), 1094; Bidez, p. 65; Stein-Palanque, p. 140; PLRE, 1, p. 224; and Paschoud, 1, n. 58, p. 252. According to PW 4(1901), 1094: "Wenn daneben vereinzelt 'Flavius Iulius Constantius' vorkommt . . . , dürfte dies auf einen Irrtum des Stempelschneiders zurückgehen."

[2]Internment or exile at Macellum: for the dates cited, see Bidez, pp. 22-23, 38, and n. 6, p. 363; Piganiol, p. 83 and n. 5, p. 125; and Bowersock, p. 23 and n. 9, p. 25. From 337-341 Gallus was at Ephesus, for the next six years (see Julian Ep. ad Ath. 271c) he was at Macellum, and from 348-351 he resided at Sirmium or Ephesus until his investment as Caesar on 15 March 351.

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338 - Sapor rex Persarum Mesopotamia vastata duobus ferme mensibus Nisibin obsedit.

340 - Constantinus [II] bellum fratri inferens iuxta Aquileiam Alsae occiditur.

346 - Rursum Sapor tribus mensibus obsedit Nisibin.

348 - Bellum Persicum nocturnum apud Singaram, in quo haud dubiam victoriam militum stoliditate perdidimus. Neque vero ullum Constantio ex VIII· gravissimis proeliis contra Persas bellum fuit [gravius]. nam ut alia omittam, Nisibis obsessa, Bizabde et Amida captae sunt.

350 - Magnentio apud Augustodunum arripiente imperium Constans haud longe ab Hispania in castro, cui Helenae nomen est, interficitur anno aetatis·XXX·, quam ob rem turbata re publica Vetranio Mursae, Nepotianus Romae imperatores facti.

350 - Nepotiani caput pilo per urbem circumlatum multaeque proscriptiones nobilium et caedes factae.

351 - Vetranioni apud Naissum a Constantio regium insigne detractum.

351 - Magnentius Mursae victus, in quo proelio Romanae vires conciderunt.

351 - Gallus, Constantii patruelis, Caesar factus.

At least seven other writers[3] mention Gallus' appointment either in connection with Constans' assassination and/or at least one of the western pretenders, i.e., Magnentius (from 18 January 350 in Gaul at Autun until 10 August 353 at Lyon), Vetranio (from 1 March 350 on the Danube frontier in Illyricum at Sirmium or Mursa until 25 December 353 at Naissus [Nish] or Sirmium),[4] or Nepotianus (from 3 May/June 350 for twenty-eight days

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[3]See Aur. Victor Caes. 42.6-11; Eutrop. 10.10-12; Orosius 7.29; Soc. 2.28.122; Soz. 4.4.4; Theod. HE 3.1; and Zos. 2.45. Zosimus claims that Constantius invested Gallus and dispatched him to withstand the Persians in order to eliminate him: εἴτε τοῖς Περσῶν πολέμοις ἀντιστησόμενον, εἴτε, ὅπερ ἦν ἀληθές, πρόφασιν τῆς αὐτοῦ βουλόμενος εὑρεῖν ἀναιρέσεως· (2.45.1 [Paschoud, 1]). Ammianus Marcellinus' remarks must be lost according to Blockley, "Gallus and Julian," pp. 438-39.

[4]Also mistakenly called "Veteranio" at Amm. 15.1.2.

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at Rome); or else in connection with the Persian conflict bequeathed by Constantine to his sons, which appears to have been an unresolved as well as uninterrupted source of external aggravation and distraction to Constantius from 338 until the early 350's. Thereafter, unrest in the north of Sapor's own kingdom compelled him to slacken the pressure on Roman Mesopotamia by means of a truce which, apart from sporadic Persian forays of slight consequence, endured down to the year 358.[5] Three additional authors (Lib. Or. 18.16, Philostorgius 3.25, and Soz. 4.4), all of them easterners, detect a link between both of the aforementioned items and Gallus' meteoric as well as unexpected (see Amm. 14.1.1) rise to power. In other words, while Sapor kept the emperor occupied with the crisis in the East and thereby rendered him all but defenseless against Constans following Constantine's decease in 340, the subsequent elimination of Constans in 350 by the usurper Magnentius required Constantius' energies and presence elsewhere (this time in the West) and caused him to leave his vulnerable eastern flank unprotected. Hence, in 351 Constantius well may have been "reduced to the necessity" (εἰς ἀνάγκην ἦκε [Bidez]) of taking a colleague, as Philostorgius 2.35 so bluntly claims. Moreover, as far as I can ascertain, not a shred of evidence exists in the primary literature which indicates that Constantius ever even considered as a candidate anyone save a blood relative to assist or succeed him; and the

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[5]Magnentius, Vetranio, Nepotianus: see Bidez, pp. 63-65; Moreau, pp. 165-66; Stein-Palanque, pp. 138-41; LRE, 1, pp. 112-13; and Piganiol, pp. 94 and 96. See also PLRE, 1, pp. 532, 624, and 954. War with Persia: see PW 4(1901), 1047-48 and 1061; Moreau, pp. 164-65; Stein-Palanque, pp. 137-38; LRE, 1, pp. 112-13; Paschoud, 1, n. 56, p. 250; Blockley, "Gallus and Julian," pp. 433 and 441-43; Piganiol, pp. 84-85; and Bowersock, p. 28. Both the Epit. Caes. 42.16-20 and Amm. 14.10.6 attest to Constantius' purportedly disastrous luck in foreign conflicts. Sapor: see PLRE, 1, p. 803.

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now twenty-five or twenty-six year old Gallus was virtually the only eligible male apart from his younger half-brother Julian to have survived the pogrom at Constantinople in 337.[6]

The data for the early years (i.e., 351/52-352/53) of Gallus' imperial stewardship are so pitifully meager that it is impossible for modern historians to evaluate that portion of his career--not so much accurately as at all. In fact, the only evidence we do possess amounts to a handful of scattered notices regarding (1) his marriage soon after 15 March 351, ostensibly for political purposes, to Constantia (sometimes called Constantina by mistake)[7] who was the Augustus' sister and for the past thirteen years the widow of Hannibalianus the Younger (see Epit. Caes. 42.1 and Zos. 2.45.1); (2) a meeting or meetings (denied ten years later by his half-brother at Ep. ad Ath. 273a) with the student Julian in the spring of 351 at Nicomedia (so Lib. Or. 18.17 and Soc. 3.1.169) and/or Constantinople (see Amm. 15.2.7-8); (3) the names and positions of three of his original ministers: Thalassius (praefectus praetorio praesens, i.e., per Orientem, Amm. 14.1.10), Barbatio (comes domesticorum, Amm. 14.11.19), and Lucillianus (magister militum, Zos. 2.45.2); (4) Gallus' suppression, if Jerome's Chronicle A.D. 352 (p. 238 [Helm]) is accurate, of a Jewish uprising in Palestine under one Patricius, in the course of which Diocaesarea, Tiberias, and Diospolis were torched (Aur. Vict. Caes. 42.11, Soc. 2.33.131, and Soz. 4.7.5); (5) an unsuccessful conspiracy, alluded to but never elaborated on by Amm. at 14.7.4, to assassinate the Caesar, perhaps

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[6]For the stemma of the Constantinian dynasty, see PLRE, 1, p. 1129, photostatically reproduced in appendix A on p. 134.

[7]See PLRE, 1, p. 222.

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engineered from the West by Magnentius in 352 in order to impede Constantius simultaneously on two fronts; and (6) the transference by Gallus in 351 or 352 of the remains of the Christian martyr and former bishop of Antioch, Babylas, to a nearby shrine of Apollo at Daphne in hopes of silencing the pagan oracle located there.[8]

For Gallus' disastrous final year at Antioch (353/54) there is abundant source material from antiquity, but as one modern author once cautioned so well: "Ammianus' account is by far the fullest extant, and this has obscured the fact that in ancient times there was a great diversity of attitude towards the Caesar."[9] Postponing temporarily any systematic investigation of the Latin historian's overwhelmingly negative portrayal of Gallus, let us see first what the Caesar's contemporaries had to say about him. In 358, Athanasius (Hist. Ar. 74.4 [Opitz, 3.11]), now in exile for the third time,[10] adverts to Gallus (albeit inaccurately) while fulminating against the Arian emperor Constantius whom he has just termed the Antichrist: καὶ γὰρ οὗτος τοὺς πρὸ αὐτοῦ νενίκηκεν ἐν καιρῷ καινὸν ἐπινοήσας τρόπον τοῦ διωγμοῦ. καὶ τρεῖς βασιλεῖς Βρετανίωνα καὶ Μαγνέντιον καὶ

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[8]Apropos of (2) see Ricciotti, p. 24 and Piganiol, pp. 94-96 and 125-26. Nicomedia: according to Libanius, the rendezvous would have taken place while Gallus was en route to his elevation at Sirmium, perhaps on the way from Ephesus where he had resided since 347/48, whereas Socrates claims the visit occurred on the newly-created Caesar's journey eastward from the court at Sirmium to Antioch. Apropos of (4) cf. Thompson, Historical Work, p. 58; Stein-Palanque, p. 141; and Blockley, "Gallus and Julian," pp. 439-40. Finally, apropos of (6) cf. Hippolyte Delehaye, Les Origines du Culte des Martyrs (Brussels: Bureaux de la Société des Bollandistes, 1912), pp. 69-70; Glanville Downey, Ancient Antioch (Princeton: Princeton University Press, 1963), pp. 152-53; and Geffcken, p. 123.

[9]Thompson, Historical Work, p. 56.

[10]See Robertson, NPFC, 4, p. lvii.

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Γάλλον καθελὼν εὐθὺς προέστη τῆς ἀσεβείας. Quite clearly the prelate's chief pre-occupation above is with the heretical Augustus and not with the sovereign's younger cousin; still it is curious to find Galled classed with the likes of two imperial pretenders.

Aurelius Victor, whose Liber de Caesaribus postdates the Athanasian tract by approximately three years, is somewhat more informative. In the course of his rapid survey of the civil war between Constantius and Magnentius (350-353) he writes:

> Sed iam antea cum externi motus suspectarentur, Magnentius fratri Decentio Gallias, Constantius Gallo, cuius nomen suo mutaverat, Orientem Caesaribus commiserant. Ipsi inter se acrioribus proeliis per triennium congressi; ad extremum Constantius fugientem in Galliam persecutus vario ambos supplicio semet adegit interficere. Et interea Iudaeorum seditio, qui Patricium nefarie in regni speciem sustulerant, oppressa. Neque multo post ob saevitiam atque animum trucem Gallus Augusti iussu interiit. Ita longo intervallo annum unum cura republicae. (42.9-14 [Pichlmayr])

So Constantius, one learns, executed Gallus in 354 "owing to his cruelty and savage dispostion." It is difficult to determine from the context, despite the presence of the adverb nefarie which indicates clear disapproval by the author of the rebel faction's aspirations, whether or not Victor intended to link, even implicitly, Gallus' possibly brutal suppression of the unsuccessful sedition organized by Patricius and the Caesar's own execution. At any rate, the Liber de Caesaribus is the earliest extant source in Greek or Latin to attribute Gallus' downfall to his alleged cruel and barbarous temperament--and this at the risk of offending Julian, the deceased Caesar's half-brother and ardent apologist (see Ep. ad Ath. 271d-273a [Bidez, l.11), who as Victor was writing was making his bid for the throne or else had newly come to power.[11]

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[11] See Penella, p. 130.

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A second Latin epitomator, Eutropius, also ventured an historical synopsis which covers roughly the same years (i.e. 350-354) as Aurelius Victor's work:

> Non multo post Magnentius apud Mursam profligatus acie est ac paene captus. ingentes Romani imperii vires ea dimicatione consumptae sunt, ad quaelibet bella externa idoneae, quae multum triumphorum possent securitatisque conferre. Orienti mox a Constantio Caesar est datus patrui filius Gallus, Magnentiusque diversis proeliis victus . . . Per haec tempora etiam a Constantio multis incivilibus gestis Gallus occisus est, vir natura ferus et ad tyrannidem pronior, si suo iure imperare licuisset. Silvanus quoque in Gallia res novas molitus ante diem tricesimum extinctus est, solusque imperio Romano eo tempore Constantius princeps et Augustus fuit. (10.12-13 [Santini])

Apart from the rather obvious fact of the author's having inverted the correct order of events (Gallus was made Caesar on 15 March 351 prior to the battle of Mursa on 28 September 351 and not the other way around as Eutropius reports it above), his version is similar to that of Victor's with one further possible exception: Gallus was killed by Constantius Augustus, we are told, because of "numerous unbecoming [i.e., subversive?] activities"; furthermore, Gallus was "a harsh [uncultivated] man by nature and [the following phrase would seem to lend support to my interpretation of the word incivilibus] much too inclined to despotic behavior had he been permitted to reign in his own right."[12] In Eutropius' Breviarium, Gallus is criticized for cruelty or harshness, but there may be overtones of treasonable activity as well if the word incivilibus will tolerate the meaning which I should like to give it here. Of course, what constituted laesa maiestas under the emperor Constantius is another matter altogether, and a separate discussion of this problem can be found in appendix C.

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[12] Incivilis can mean "subversive," that is, "an attitude or behavior unbefitting a loyal private citizen." See OLD and TLL s.v.

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This brings us next, in the Latin-speaking West, to Jerome (Gallus' junior by six years) and his Chronicle:

352 - Nonnulli nobilium Antiochiae a Gallo interfecti.

353 - Gallus Caesar sollicitatus a Constantio patrueli, cui in suspicionem ob egregiam indolem venerat, Histria occiditur. (pp. 238-39 [Helm])

Bearing in mind that Jerome's chronology for both entries lags behind the now generally accepted (i.e., Ammianan) timetable of events by six months to a year, the first remark might reasonably refer to either the treason trials in 353/54 which resulted from the divulgence of Magnentius' plot to overthrow Gallus Caesar at Antioch (see Amm. 14.7.4 and 8.1-9 [Seyfarth, 1]); the murders amidst mob violence of Theophilus, Eubulus, Domitianus, and Montius in that same year (i.e., 354 at Amm. 14.7.1-14); or else a combination of the first two. However, it is Gallus' death notice which is of primary interest to us here. Inasmuch as the majority of modern scholars have long acknowledged 354 to be the year of the Caesar's decease, the date 353 is somewhat problematic, but what is even more troubling is the alleged motivation of Constantius for undermining and, ultimately, killing his cousin--Gallus had become "suspect on account of his outstanding competence." We know that Jerome elsewhere utilized Eutropius for the compilation of his Chronicle as did Paulus Orosius.[13] Can it be that Jerome consulted the Breviarium here? Compare, for example, the manner in which the Silvanus episode of Eutrop. 10.13 is related (i.e., Silvanus quoque in Gallia res novas molitus ante diem tricesimum extinctus est [Santini]) with that of Chron. A.D. 353 (p. 239 [Helm]) where the wording

[13]Cf. Chron. A.D. 350 (p. 238): Nepotiani caput pilo per urbem circumlatum multaeque proscriptiones nobilium et caedes factae (Helm) with Eutrop. 10.11: caput eius [sc. Nepotiani] pilo per urbem circumlatum est gravissimaeque proscriptiones et nobilium caedes fuerunt (Santini).

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is very nearly identical: Silvanus in Gallia res novas molitus XXVIII· die extinctus est. If Jerome consulted Eutropius for information about Gallus, but differed so noticeably from the epitomator in his evaluation of the Caesar's character, at least one possible explanation for the otherwise incongruous recall and execution of an administrator of exceptional ability comes to mind, and that is treasonable behavior of some sort, whether real or imagined, on the part of Gallus Caesar. Furthermore, unlike Aurelius Victor and Eutropius, Jerome makes no mention of the Caesar's distinctive cruel streak, unless the reader is expected to infer its existence from the description of Gallus' reduction and unsympathetic treatment of the Jews in Palestine:

> 352 - Gallus Iudaeos, qui interfectis per noctem militibus arma ad rebellandum invaserant, oppressit caesis multis hominum milibus usque ad innoxiam aetatem [emphasis mine] et civitates eorum Diocaesariam, Tiberiadem et Diospolim plurimaque oppida igni tradidit. (p. 238 [Helm])

Chronologically, Ammianus Marcellinus follows Jerome in the Latin West. Written by a native Antiochene who accompanied his commanding officer Ursicinus to that city in 354 (14.9.1) for the treason trials initiated there by Gallus and his wife Constantia (14.9.3), Ammianus' testimony is invaluable because it comes from the pen of an eyewitness (15.1.1). But the author so overwhelms the reader at times with his store of data and sweeping commentary that one must isolate and analyze minutely the pertinent sections of Ammianus' narrative before drawing conclusions about his handling or treatment of Constantius' role in the downfall of Gallus. A schematic outline of books 14 and 15.1-3 (Seyfarth, 1) looks something like this:[14]

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[14]Seyfarth's Teubner edition of Ammianus Marcellinus is used throughout for references to the Latin text.

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14.1.1-10	GALLUS' AND CONSTANTIA'S MISRULE AT ANTIOCH
14.2.1-20	Digression on Isaurian Inroads; GALLUS MENTIONED ONLY IN 14.2.20
14.3.1-4	Digression on Persian Inroads
14.4.1-7	Digression on Saracen Inroads
14.5.1-9	Treason Trials of Constantius against Partisans of Magnentius
14.6.1-26	Digression on the Decline of SPQR
14.7.1-21	GALLUS' AND CONSTANTIA'S MISRULE AT ANTIOCH CONTINUED, INCLUDING TREASON TRIALS (see 14.7.4, 7.7, 7.18-21, and 9.3-9)
14.8.1-15	Digression on the Eastern Provinces
14.9.1-9	TREASON TRIALS OF GALLUS CONTINUED (see 14.9.3-9 and 14.7.18-21)
14.10.1-16	Constantius' Western Affairs; GALLUS MENTIONED ONLY AT 14.10.2 and 10.5
14.11.1-34	GALLUS' RECALL BY CONSTANTIUS, HIS TRIAL AND EXECUTION
15.1.1-4	CONSTANTIUS' REACTION TO NEWS OF GALLUS' DEATH
15.2.1-10	Treason Trials of Constantius against Ursicinus, Julian, and Gorgonius
15.3.1-10	Treason Trials of Constantius against both Partisans of GALLUS and Others

Out of fourteen consecutive chapters, four (i.e., 14.1, 7, 9, and 11) are devoted to Gallus' reign, five (or six, if we include 14.11) are devoted to Constantius (i.e., 14.5, 10, 15.1-3), and the remaining five consist of various digressions of a geographical, ethnological, or moralizing nature (i.e., 14.2-4, 6, and 8). This would appear to indicate that Ammianus was as much interested in Constantius and his role in the Gallus Affair as he was in the Caesar himself. There is, of course, the distinct possibility that we do not possess all that the historian wrote regarding Gallus'

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career. For example, while we know that Gallus was appointed Caesar in the year 351, the first extant book of Ammianus' History (which corresponds to our book 14) commences with Gallus at Antioch in the late summer or early autumn of 353 following Magnentius' death (see 14.1.1) and never looks backward. There is no formalized notice of Gallus' investiture, and not a word about his successful suppression of Patricius' revolt in Palestine, which is strange since it would have afforded Ammianus an excellent opportunity to decry Gallus' allegedly infamous saevitia. Finally, since it seems unlikely that Ammianus would have condensed the events of Gallus' three-year rule in the East into one book, the Caesar must have been discussed in some capacity in the lost books of the History, or else Ammianus elected, for his own purposes, to focus on only a few months of Gallus' entire career. In fact, one discovers upon closer observation that with the exception of 14.1 (which covers either the late summer or early autumn of 353 as well as an indeterminate period of time, possibly the summer, in 354), the remaining chapters on Gallus (i.e., 14.7, 9, and 11) probably embrace exclusively the summer months of the year 354, although by the time Gallus reached Adrianople on his way to Milan it was at least early winter, i.e., November (fessasque labore diebus duodecim recreans vires, comperit [sc. Gallus] Thebaeas legiones in vicinis oppidis hiemantes at 14.11.15). We may be lacking, therefore, a significant portion of the events at Antioch or elsewhere from the first half of 354 owing to Ammianus' selectivity.[15]

[15] On the extent of the contents of book 14, see Galletier, 1, p. 57 (with whose summary I differ somewhat). See also Thompson, Historical Work, pp. 56-58 and Blockley, "Gallus and Julian," pp. 437-39. November rather than December is the more likely month of Gallus' death since Julian (Ep. ad Ath. 272d [Bidez, 1.11]) complains of a seven-month period of virtual imprisonment and/or surveillance following Gallus' execution, which Carlo

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As in the shorter versions of Aurelius Victor and Eutropius, Gallus' predominant vice is his alleged savagery or cruelty which Ammianus stresses at every possible turn in the course of his narrative: dira facinora (14.1.1), asperitate nimia (ibid.), acerbitati (14.1.2), saevientis (ibid.), licentia crudelitati indulta (14.1.4), voluntatem . . . cruentem (ibid.), Caesaris implacabilitati (14.1.5), truculenti illius imperatoris rabiem (14.1.10), Caesar acrius efferatus (ibid.), efferatus (14.7.2), diritatis (14.7.3), turbidum saeviebat ingenium a veri consideratione detortum (14.7.21), imperio truci (14.9.3), Caesar . . . excarnificari praecepit (14.9.6), ferociens (14.9.9), truculentum (14.11.8), actus . . . crudeles (14.11.24), Galli ferocientis (15.3.1). Ammianus, in his final assessment of the Caesar's character, ranks him with the emperor Domitian: tantum a temperatis moribus Iuliani differens fratris, quantum inter Vespasiani filios fuit Domitianum et Titum (14.11.28).

Needless to say, Ammianus describes for his readers in 14.1 a reign of terror at Antioch under Gallus replete with widespread delation, exile, confiscations, and wholesale executions of innocent victims (Jerome's nonnulli nobilium at Chron. A.D. 352 [p. 238] Helm?) without recourse to due legal process (see 14.1.2-5 and 9). Gallus is accused, furthermore, of having exceeded the lawful limits of his authority (ultra terminos potestatis delatae procurrens, 14.1.1 and see 14.1.5), and of possessing a violent temperament (irrevocabili impetu, 14.1.10) coupled with monstrous cruelty. In these excesses the Caesar is depicted as having been under the

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Di Spigno, "Studi su Ammiano Marcellino. Il regno di Costanzo II," Helikon 2(1962), p. 448, dates from the close of November, 354 to the end of June, 355.

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sway of his detestable wife, the emperor's sister (uxor grave accesserat incentivum . . . Megaera quaedam mortalis, inflammatrix saevientis assidua, humani cruoris avida nihil mitius quam maritus, 14.1.2; stimulos admovente regina, 14.1.8; and cuius imperio truci stimulis reginae exsertantis ora subinde per aulaeum, 14.9.3).[16]

We are introduced to the Augustus for the first time at 14.5 where he resembles his Caesar in almost every respect, although on a larger and more terrifying scale. The evils of Constantius enumerated in 14.5.1-9 are remarkably reminiscent of Gallus' reign of terror in 14.1: confiscations and rampant delation (14.5.1, 5.3, 5.6-9); exile (14.5.1 and 5.3); imprisonment (14.5.3, 5.6, 5.9); torture (excarnificatum, 14.5.1 and 5.9); treason trials and capital punishment without the right of appeal of countless innocent persons (insontium caedibus, 14.5.2, 5.3, and 5.5-9).[17] Moreover, Constantius, like Gallus, is faulted for his cruelty (asperitati, 14.5.4; acerbum et implacabilem, 14.9.2; saepe cruentum, 14.11.16; and saevitiam, 21.16.8-9).[18] Behind these excesses there lurks, according to Ammianus, the influence of hordes of informers (e.g., Mercurius and Paulus the notarius at 15.3.4), as well as the narrow- and weakminded emperor's ambitious scheming courtiers (animus . . . angustus et tener, 14.5.2; mollis et penetrabilis, 15.3.9; angusti pectoris and minutus, 19.12.5; and

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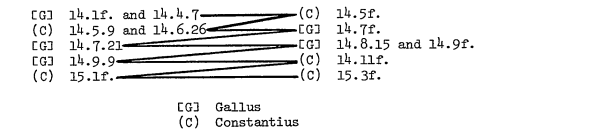
[16] See also 14.11.22.

[17] Confiscations: see also 15.3.1, 16.8.11-12, and 19.12.13. Delation: see also 15.2.2, 3.3-5, 3.7-9, 5.3-5ff., 6.1, 8.2, 16.8.9-10, 11.15, 18.3.3-4, 3.6, 4.2, 4.4, and 19.12.2. Imprisonment: see also 15.3.11 and 19.12.7. Torture: see also 15.3.2, 3.11, 16.8.6, 19.12.8, 12.12-13, 21.6.9, and 16.9.11. Trials and executions: see also 15.2.1, 2.5, 2.10, 3.1-2, 3.7, 6.1-4, 16.8.2-6, 8.8-9, 18.3.1-5, 19.12.1, 12.3-14, and 12.17-18.

[18] See also 14.5.5.

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see 14.5.4-6).[19] Finally, the similarities between the two cousins are underscored by means of a common theme which flows through books 14 and 15.1-3, namely the treason trials conducted at Antioch by Gallus Caesar and the hearings for laesa maiestas arranged by Constantius Augustus or his agents in various cities throughout the empire. A diagram of these same chapters involving prosecution for treason reveals a continuous process which looks something like this:



Recent studies, however, have expressed doubts about the accuracy and fairness of Ammianus' portrayal of Gallus, both on historical and literary grounds.[20] We have pointed out already, in the first instance, how the historian may well have ignored large blocks of time from the first two years of Gallus' rule, while limiting his narrative in the fourteenth book even further to the Caesar's final year (353/54) at Antioch. On purely structural grounds, one can see by comparing the contents of 14.1 with those of 14.7 how the author begins and ends both chapters by

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[19]Courtiers and sycophants: see also 14.10.2-4, 15.1.2-3, 5.37, 8.2, 16.2.2, 8.7, 12.69, 17.4.12, 11.1, 18.4.2-3, 19.11.7, 12.16, and 21.16.16. Constantius' reputation for being influenced easily is noted by Theod. HE 2.3-4 and 15. On Gallus' reputation for being too susceptible to the directives of his eunuch chamberlain Gorgonius, see Amm. 15.2.10. For his alleged cruelty, Constantius is compared by Ammianus with the emperors Nero (15.2.5), Domitian (15.3.35), Caligula, and Commodus (21.16.8). See also Eutrop. 10.15.

[20]See Thompson, Historical Work, pp. 56-71; Robert N. Mooney, "Gallus Caesar's Last Journey," CPh 53(1958), p. 175; Blockley, "Gallus and Julian," pp. 433-45; Browning, p. 59; and Bowder, pp. 60 and 62.

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means of "sweeping sentences of condemnation with literary rather than historical effect in each case."[21] The reader's initially negative impression of Gallus at 14.1.1 (Post emensos . . . asperitate nimia cuncta foedabat) and 14.7.1 (Latius iam disseminata licentia . . . nec honoratis parcens nec urbium primatibus nec plebeis) is vividly reaffirmed but only vaguely substantiated by Ammianus in his closing remarks both at 14.1.10 (Quibus mox Caesar acrius efferatus . . . instar rapidi fluminis irrevocabili impetu ferebatur) and 14.7.21 (Iamque lituis cladum concrepantibus internarum . . . carnifex rapinarum sequester et obductio capitum et bonorum ubique multatio versabatur per orientales provincias). This same deleterious technique is employed elsewhere by Ammianus to round out a third major section of text on Gallus at 14.9.9 (Post quorum necem nihilo lenius ferociens Gallus ut leo cadaveribus pastus multa huius modi scrutabatur). Once before (14.7.13), Ammianus likened Gallus to an animal--a hissing serpent with fangs exposed (ut serpens appetitus telo vel saxo . . . districta dentium acie stridens).

Such valid objections on the part of modern scholars by no means vitiate Gallus' evil-tempered or ruthless and sanguinary behavior (Julian, his own half-brother, admits to as much at Ep. ad Ath. 271c-273b [Bidez, 1.13]; yet, for all of Ammianus' generalizing remarks about treason trials (14.7.20-21 and 9.1-3), delation (14.7.4), torture (14.9.7-8), exiles, confiscations, and mass homicide (14.7.21, 11.17, 11.21) as if these activities were a routine matter at Antioch under Gallus' administration, only ten concrete examples can be found in the text. Of these, four were almost certainly innocent victims (i.e., Clematius of Alexandria [14.1.3];

[21] Thompson, Historical Work, p. 60.

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one Epigonus of Cilicia, a philosopher; Eusebius of Edessa, a rhetorician by profession [14.7.18 and 9.4-6]; and the deacon Maras [14.9.7], while the capital sentence meted out to the Antiochene curiales during the grain crisis was dropped (14.7.2). The remaining personages, with the exception of the Syrian governor Theophilus (14.7.5-6),[22] almost unquestionably were involved in a conspiracy against Gallus (alluded to by the phrase sed abditus [i.e., Domitianus] multa in eius moliebatur exitium, 14.7.10), for which all eventually paid with their lives. Three of the conspirators, i.e., the praetorian prefect Domitianus (14.7.9-17) and the two Apollinares (14.7.19-20 and 9.7-8), belonged to the same family, and the quaestor Montius (14.7.12-18) was, at the very least, a sympathizer: . . . cum quaestor [sc. Montius] non hos [i.e., Epigonum et Eusebium] sed tribunos fabricarum insimulasset promittentes armorum, si novae res agitari coepissent (14.7.18). It is only fair to say that while not entirely omitting the "uncomfortable facts"[23] of the unsuccessful conspiracy or of the resultant proceedings against the guilty parties, Ammianus is wilfully misleading insofar as he manages to leave us with the distinct impression (particularly at 14.11.17 and 15.1.3) that Gallus Caesar masterminded the lynchings of Domitianus and Montius--this in spite of evidence to the contrary. First, there is Gallus' statement at the time of Domitianus' arrest that his intention was to imprison, not execute, the prefect in an effort to teach

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[22] According to Thompson, ibid., p. 62: "Constantius sent out a commissioner, Strategius Musonianus, to inquire into the circumstances surrounding Theophilus' death, but gave him instructions to deal with the matter mildly--proof that even the central government took a lenient view of the incident." See Amm. 15.13.2 and Lib. Or. 19.47. Libanius (Or. 1. 103 [Martin]) witnessed some of the civil tumult associated with Theophilus' murder. See also PLRE, 1, p. 907.

[23] Blockley, "Gallus and Julian," p. 434.

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him a lesson (i.e., formidine tenus iusserim custodiri, 14.7.14), and secondly, the curator urbis Luscus is blamed explicity by Ammianus for the ensuing mob-violence, although the historian sandwiches this bit of information at 14.7.17 between the two more sensational descriptions of Domitianus' and Montius' horrific mutilation. Thirdly, there is the related episode of the Apollinares on whom, we are informed in 14.9.8, Gallus imposed the sanction of exile through his puppet chief justice Ursicinus (14.9.1 and 9.3). Although it is possible that Gallus publicly allowed banishment while secretly having provided for the Apollinares' assassinations, Ammianus, without naming names, concludes the two conspirators' story on a much more sinister note than necessary by means of an ambiguous insinuation designed to cast Gallus in a gratuitously cruel and treacherously vindictive light:

> post multorum clades Apollinares ambo, pater et filius, in exilium acti, cum ad locum Crateras nomine pervenissent, villam scilicet suam, quae ab Antiochia vicensimo et quarto disiungitur lapide, ut mandatum est [emphasis mine], fractis cruribus occiduntur (14.9.8).[24]

Modern scholars have detected other instances in Ammianus' account where the historian downplayed or suppressed Gallus' strengths (e.g., his

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[24] Ut mandatum est: Galletier, 1, translates: "suivant les ordres de César." For a discussion of Ursicinus' less than honorable role in the treason trials at Antioch, see Thompson, Historical Work, pp. 42-43, 52, and 69, and Blockley, "Gallus and Julian," pp. 437 and 443. Conspiracy of Domitianus et al. against Gallus: see Thompson, ibid., pp. 64-65; PLRE, 1, p. 262; and Blockley, ibid., pp. 434-36. An earlier plot alluded to at Amm. 14.7.4 cannot be identified positively as having been devised by Magnentius in 352 pace Thompson (p. 57) and Blockley (pp. 438-39). The coniuratio of Amm. 14.7.4 belongs with the events of 354, and neither Thompson nor Blockley explain why their alleged first conspiracy required two years to come to Gallus' attention. In other words, we have evidence for an additional alleged plot against the Caesar, but we cannot ascertain precisely the date or the identities of its perpetrators. See also Di Spigno, "libro XIV," pp. 147-48.

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successful maneuvers against Nohodares from Hierapolis prior to the treason trials in 354 at 14.3.1-4 and 7.5) in favor of exploiting his darker side.[25] But Ammianus amplifies his Gallus-narrative as well by inferring mental processes which he cannot substantiate; that is, he "reads minds rather freely,"[26] as more than one critic has objected, and five such occasions, including two which, if accurate, would be very damaging to Constantius, come to mind apropos of the Gallus Affair: first, Constantius' alleged determination, discussed privately and within the confines of his inner circle at Milan, to execute the Caesar pending his recall (eique deliberanti cum proximis clandestinis colloquiis et nocturnis, . . . sine ullo interiret obstaculo, 14.11.1 [subsequently nullified by a remark at 14.11.24!]); next, the assertion at 14.11.7-8 that Gallus was bent on treasonable designs even though these were formulated, Ammianus alleges, in secret (clam) after the historian's departure for Milan (14.11.5); then, in 14.11.2-5 and 15.2.5, Ammianus (or more probably his leading source at Antioch, Ursicinus) would have to have been far better connected at court than seems likely to claim knowledgeably that the emperor recalled his best field commander Ursicinus in order to kill him (igitur paucis arcanorum praesentibus consciis . . . Ursicinus indemnatus occideretur, 15.2.5);[27] fourth, how could Ammianus, now in Milan, have known what Gallus was thinking at 14.11.7? (. . . ad hoc unum mentem

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[25]See, for example, Thompson, Historical Work, pp. 70-71; Alföldi, pp. 4-5; Di Spigno, "libro XIV," p. 147; Blockley, "Gallus and Julian," pp. 438 and 441-43; and Blockley, Ammianus Marcellinus, pp. 19-29.

[26]Mooney, p. 176. See also Thompson, Historical Work, p. 69. See also Amm. 15.1.1.

[27]See Thompson, Historical Work, p. 44 and Mooney, pp. 176-77. See also Amm. 15.1.1.

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sollicitam dirigebat, . . . ut erat [sc. Constantius] in propinquitatis perniciem inclinatior, . . . si cepisset incautum, morte multaret); or, lastly, at 14.11.17, where the historian describes Gallus' night terrors en route to Poetovio in Noricum?[28]

At least one of the charges against Gallus, though, appears to be a valid one, namely Ammianus' contention that as Caesar he had overstepped the limits of his delegated constitutional authority (. . . ultra terminos potestatis deletae procurrens, 14.1.1). According to one modern scholar who utilized Julian's career in Gaul as a model for re-creating Gallus' situation at Antioch under Constantius, Caesar Gallus possessed "only delegated powers, not clearly defined but dependent upon the will of the Augustus."[29] Further, these competences seem to have been limited chiefly, if not exclusively, to the military sphere, and the evidence for this restrictive tendency can be found in the ancient authorities who, as indicated above (see n. 3, p. 45), report that Gallus was promoted to the rank of Caesar in order to maintain the security of the eastern frontier against the Persian threat. Therefore, the so-called "Diocletianic Caesar"[30] delineated here was a highly mobile military assistant (see especially Amm. 14.11.10 and 21.6.2-3), who strictly speaking exercised no independent authority in legislative or civil administrative affairs.

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[28]Poetovio: there is an implied comparison at 14.11.20 between Constantine I/Constantius and Crispus/Gallus, i.e., both Caesars were put to death here by their respective Augusti.

[29]Blockley, "Gallus and Julian," p. 452 and see p. 445. See also LRE, 1, pp. 370 and 376; Anna Maria Tassi, "Costanzo II e la difesa della maestà imperiale nell'opera di Ammiano Marcellino," CS 6(1967), p. 168; and Browning, pp. 72-73. For a very different assessment of Julian's competences, see ch. 3, pp. 97-98 and 101-2.

[30]Blockley, "Gallus and Julian," p. 455 and see also pp. 461-62 and 465.

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As a result, although Ammianus may have intended his readers to interpret the phrase ultra terminos potestatis etc. at 14.1.1 (and see 14.11.8, 11.14-15) as a reference to formalized revolutionary designs on Gallus' part (seemingly impossible judging from 14.7.9, 10.16, 11.8, and 11.13), it probably is an allusion to the public humiliation and execution of Theophilus, Domitianus, and Montius, three high-ranking government civil servants at Antioch who had been assigned by and were answerable directly to the emperor rather than to Gallus.[31] In other words, what we are faced with at 14.1.1 is the problem of the nature and extent of Gallus Caesar's jurisdiction, even interference, in the civil sphere--an issue having repercussions for Gallus' half-brother and successor Julian.[32]

In view of the evidence in Ammianus' narrative for the steady flow of reports dispatched to Constantius from a variety of sources regarding Gallus' (and in one instance his wife's) alleged gross official misconduct (e.g., the distorted memos of Thalassius at 14.1.10 and 7.9, Herculanus at 14.10.2, Domitianus at 14.7.10, and Ursicinus at 14.9.1), it is amazing that Constantius did not intervene more forcefully and much earlier than he actually did. Some modern historians believe that the Augustus, plagued by a military manpower shortage since Mursa in 351 and bogged down in Gaul by his own campaigns against the Alamanni (14.10), hesitated amidst conflicting communiqués from Antioch and mixed opinion at court (14.11.1-4)

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[31] Blockley, ibid., pp. 465-66, points out that if there was a conspiracy for armed revolution brewing at Antioch, it was the curiales who were plotting against Gallus and not Gallus against the emperor. In fact, Gallus' only backer in the imperial bureaucracy was the eunuch Gorgonius (see Amm. 15.2.10). For his enemies, cf. Amm. 22.3.3, 3.5, and 3.11-12.

[32] See LRE, 1, pp. 370 and 376; Blockley, "Gallus and Julian," pp. 444-68; and especially 444-45, 461-62. See also Browning, pp. 59-62 and 72.

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until he was certain Gallus' troop strength was insufficient to pose a threat of civil war. In either case, Constantius was renowned for his expertise in precisely this last type of armed conflict (see 14.10.16 and 11.8).[33] Two additional reasons for the delayed response in the emperor's camp might also have been the influence, impossible to assess accurately from the text at 14.1.2 and 11.22-23, of his sister Constantia who surely interceded periodically with the Augustus on her husband's behalf, or perhaps simply that while Gallus may not have ruled well at Antioch insofar as his domestic policies were concerned, Constantius by no means considered him to be the arch-fiend portrayed by Ammianus in his History.[34] When the time came to depart, Gallus most likely obeyed the repeated summonses from Constantius in 354, not because his senses were "numbed by the hand of fate," as Ammianus lamely insists at 14.11.12, but because there was no viable alternative.[35]

The calculated denigration of Gallus by Ammianus Marcellinus is routinely attributed to the historian's curial bias and/or desire to exonerate his associate and admired superior Ursicinus.[36] During the final

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[33]See also 21.1.2, 13.7, and 16.5. Apropos of the manpower shortage, conflicting communiqués, and mixed opinion at court, see Amm. 21.16.3. See also Thompson, Historical Work, p. 70; Blockley, "Gallus and Julian," pp. 467-68; and Browning, pp. 61-62.

[34]See Blockley, Ammianus Marcellinus, pp. 19-29; Browning, p. 59; and Bowder, pp. 48-49.

[35]See Mooney, p. 176; Blockley, "Gallus and Julian," p. 466; and Browning, p. 62.

[36]Ursicinus: see n. 56 in ch. 1 above. See also Amm. 15.5.18-31ff. for Ursicinus' and Ammianus' disgraceful participation in the ruin of Silvanus (i.e., scrutabamus at 15.5.30). See also Thompson, Historical Work, pp. 45, 52, and 127; Alföldi, p. 4; Di Spigno, "Libro XIV," p. 149; Piganiol, pp. 104-5; and D.C. Nutt, "Silvanus and the Emperor Constantius II," Antichthon 7(1973), pp. 80 and 89. Curial bias: see Thompson, ibid., p. 68 and Blockley, Ammianus Marcellinus, pp. 18 and 118. See also p. 70 below.

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weeks which culminated in Gallus' mock trial and execution by the emperor's unrelenting henchmen, however, one senses sympathy mingled with pity for his plight in Ammianus' narrative (cf., for example, 14.11.13 and Aen. 2.556ff.). This shift would seem to suggest that the historian's abhorrence for the Caesar's harsh and arrogant conduct not only was grounds for criticism in its own right, but was exceeded by Ammianus' hatred for the tyrannical Augustus who had elevated Gallus to the rank and dignity of Caesar only to destroy him as if he were a common usurper.

Two western sources remain to be considered, the Epitome de Caesaribus and Orosius' Historiarum adversus paganos libri VII. In the first work Gallus' demise is noted without additional comment by means of a simple declarative sentence: Hoc tempore Gallus Caesar a Constantio occiditur. Imperavit annos quattuor (42.9 [Pichlmayr]). The tone is supremely disinterested, non-judgmental, and matter-of-fact. Orosius, on the other hand, agrees with Aur. Victor Caes. 42.12 and Eutrop. 10.13 (see pp. 49-50 above) in ascribing Gallus' destruction at Constantius' behest to the Caesar's by now familiar cruelty; furthermore, like Eutropius (10.12) and Jerome (Chron. A.D. 351, p. 238 [Helm]), Orosius inverts the correct time sequence of Gallus' elevation at Sirmium on 15 March followed by the defeat of Magnentius at Mursa on 28 September 351, and he concurs with both authors (loc. cit.) in his estimation that the armed encounter between the forces of Constantius and Magnentius at Mursa irreparably diminished Roman troop strength throughout the empire:

> . . . sequitur bellum illud horribile inter Constantium Magnentiumque apud Mursam urbem gestum, in quo multa Romanorum virium profligatio etiam in posterum nocuit. Magnentius tamen victus aufugit ac non multo post apud Lugdunum propria se manu interfecit. Decentius quoque frater eiusdem, quem Caesarem Galliis praefecerat, apud Senonas laqueo vitam

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finivit. continuo Constantius Gallum, patrui filium, Caesarem legit: quem rursus crudeliter ac tyrannice agentem paulo post quam crearat occidit. (7.29.12-14 [Zangemeister])

Before proceeding it may be beneficial to summarize our findings thus far: three fourth century Latin authors (Aurelius Victor, Eutropius, Ammianus Marcellinus) and Paulus Orosius in the fifth century have left for us thoroughly unappealing sketches of Gallus Caesar, whose name and res gestae, if they are to be remembered at all, would have to be synonomous with the term saevitia (always duly recorded but never backed by specific examples save in Ammianus' History). As for the emperor Constantius, all four historians depict him as having been to a greater or lesser degree instrumental in the elimination of his own cousin, although justifiably so if only as the welcome agent of Gallus' destruction. Secondly, in the versions of Eutropius, Ammianus, and Jerome one detects vague and unsubstantiated undercurrents of laesa maiestas on the part of the headstrong and violence-prone Caesar, who perhaps forced his suspicious superior's requiting and all too willing hand (see Amm. 21.16.8 and 12).

Turning to the remaining sources, one discovers at once that the bulk of the extant material on Gallus is in Greek. Libanius and Julian stand closest in time (b. 314 and 332 respectively) to Gallus Caesar (b. 325/26), so that we shall begin with their accounts.[37] Julian was Gallus' junior by roughly six years, and the Apostate's outspoken assessment of his half-brother's fate at Constantius' hands in the autobiographical Epistle to the Athenians is striking because it skilfully combines blame of Gallus with an extenuation of his guilt, although it is by no means an impartial document. Julian is defensive about Gallus' admitted cruelty

[37]See PLRE, 1, pp. 224, 477, and 505.

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and violence to his adversaries following the disclosure of what must have been a conspiracy such as that led by Domitianus at Antioch, or else unfavorable written reports based on surveillance sent by Thalassius, Honoratus, or Domitianus to the emperor (Ep. ad Ath. 272c [Bidez, l.11), and Julian imputes his half-brother's behavior and undoing to four external causes: (1) the educational methods and spiritual or emotional isolation and starvation to which Gallus was subjected at Macellum by the emperor (Ep. ad Ath. 271c-d); (2) imperial jealousy (Ep. ad Ath. 272a); (3) a circumvention by Constantius of due legal process whereby Gallus was denied a trial to determine his guilt or innocence (see especially Ep. ad Ath. 271a and 272a-c); and (4) the influence of one of the Augustus' courtiers, namely the eunuch chamberlain Eusebius (Ep. ad Ath. 272d).[38] Also of note is the manner in which Julian relates Gallus' death in 354 in close conjunction with the massacre of 337/38 at Ep. ad Ath. 270c-d: in actual fact the two events were separated by roughly a space of seventeen years; yet in Julian's mind it is as if Gallus' murder were a simple and even logical or obvious extension of the earlier disaster. Finally, in contrast to Libanius' Or. 12.35 (quoted below on p. 68), Julian denies ever having exchanged any but the briefest written correspondence with Gallus throughout that same period of time (Ep. ad Ath. 273a).

The question that remains unresolved in my own mind is why did Julian so strenuously defend his favorite sibling and yet, in the end, feel compelled to disavow even with an oath (Ep. ad Ath. 273a) all but the barest communication with him? Had Gallus acquitted himself so

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[38] See Amm. 14.11.21-22 for a description of the kangaroo court by which Gallus was convicted, allegedly with Constantius' approval.

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incapably, unpopularly, or disloyally during his eastern tenure that Julian deemed it expedient to put aside momentarily fraternal sentiment and dissociate his own career from that of Gallus Caesar's in his open letter to the Greek-speaking world? In other words, was Julian's disclaimer a calculated response to an anticipated loyalist reaction to his break in 361 with the very emperor who seven years earlier had sanctioned Gallus' deplorable (though perhaps from Constantius' standpoint necessary) removal? Of course, whether or not Gallus had ever entertained treasonable thoughts, and whether or not Julian felt that he in turn might be condemned by the emperor as a result of his affection for his deceased half-brother, have absolutely no bearing on Julian's estimation of Constantius in 361--which is a negative one in either case. But presumably the less odious a figure Gallus, and, by association, Caesar Julian, cut, the more palatable Julian's usurpation would have seemed to all concerned with the legitimacy of his position since February of 360.[39]

Libanius, in Orations 12 (dated 1 January 363) and 18 (dated 365), assumes a stance similar to that of Julian. A composite of the two speeches appears below:

(1) εἰ μὲν οὖν προσεῖχε τὸν νοῦν τοῖς τοῦδε γράμμασιν ὁ ἀδελφός, ἦν ἂν νῦν συζυγία προστατῶν, καὶ γὰρ ἦν οἷος οὐ βασιλεύων βασιλεύοντα νουθετεῖν. ὡς δὲ ὁ μὲν ἄφριτος ἀπεληλύθει λέγειν ἔχων τι περὶ τῶν πεπραγμένων, ἐπὶ δὲ τοῦτον ἐκτεῖναι τὰς μέμψεις ὁ ἐκεῖνον ἀπεκτονὼς ἐβούλετο μέν, ἠπόρει δέ, φόνου μὲν ἔσχεν αὐτόν, πλάναις δὲ ἐκάμου δίκας λαμβάνων ὧν ἐγκαλεῖν οὐκ εἶχεν. (12.35 [Foerster, 2])

(2) . . . ἵνα δὲ μὴ θαυμάσῃ τις ἐχθρὸν ἀκούων τὸν κοινούμενον τῆς ἀρχῆς, ἐρῶ, τίς ἦν ὁ τῆς κοινωνίας νοῦς. ἐκεῖνος γὰρ οὐχ ὅπως τινὰς ἀνθρώπων ἠδέως ἂν εἶδεν ἐν

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[39]See Blockley, "Gallus and Julian," pp. 445-54 and 461-65.

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θρόνοις βασιλικοῖς ἢ τοῖς ἀλουργοῖς ἐσθήμασιν, ἀλλ' οὐδ' ἂν ὀνείρατα ταύτην ἔχοντα τὴν θέαν μετρίως ἤνεγκεν ἄν. (12.39 [Foerster, 2])[40]

(3) . . . ἦλθεν ἐπὶ τὸν Γάλλον συκοφαντία καὶ γράμματα ἐπιβουλὴν ἔχοντα τὴν ἐσχάτην εὕρητο, ὄντων δὲ δίκην τῶν ἀδικούντων, οὐ γὰρ ἔμελλεν αὐτοὺς στεφανώσειν ὁ τὰ τοιαῦτα ἠδικημένος, ἔδοξεν ἧς εἰλήφει δίκης ὀφείλειν δίκην ὁ λαβὼν καὶ ἀπέθνησκεν ἄφωνος φθάσαντος τὴν ἀπολογίαν τοῦ ξίφους. (18.24 [Foerster, 2])[41]

(4) πάλιν τοίνυν ἐνταῦθα ἂν τις αὐτοῦ θαυμάσειε τὸ μήτε τοῖς κατὰ τοῦ τεθνεῶτος λόγοις κολακεῦσαι τὸν ἀπεκτονότα μήτε τοῖς ὑπὲρ ἐκείνου παροξῦναι τὸν ζῶντα, ἀλλὰ τὸν μὲν ἀφανεῖ λύπῃ τιμᾶν, τῷ δὲ μὴ δοῦναι πρὸς φόνον ἁφορμὴν σφόδρα γε βουλομένῳ. (18.26 [Foerster, 2])

In both of these Julianic orations Libanius strongly censures Constantius for possessing a nature suspicious to the point of having condemned Gallus to death without a hearing, but he never goes so far as to absolve Gallus from all wrongdoing. Similarly, at least one modern scholar has noticed a discrepancy between the two speeches which leads one to question the veracity of Libanius' story and Julian's earlier version of the facts at Ep. ad Ath. 273a (Bidez, l.1): in Or. 12.35 Libanius mentions letters of advice forwarded to Gallus by his half-brother which, the rhetorician contends, if heeded would have saved the Caesar's life, but in Or. 18.25 written two years later, Libanius goes on to disclaim the existence, as did Julian in his Epistle to the Athenians, of "any such compromising letters"[42] (. . . καὶ ταῦτα ἔπασχεν ἐγκαλούμενος μὲν οὐδὲν οὔτε μεῖζον

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[40]For the date of the twelfth oration, see PW 12.2(1925), 2501. With regard to Libanius' remarks at Or. 12.39, Philostorgius 51.21 (Bidez) says that the very prospect of confronting the rival claimant Magnentius gave Constantius fits of vertigo (i.e., εἰλιγγιάσας).

[41]γράμματα ἐπιβουλὴν κτλ.: cf. Amm. 14.7.4 or 7.9-10, 7.14, and 7. 18-19.

[42]A.F. Norman, ed., Libanius: Selected Works, vol. 1, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1969), p. 55.

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οὔτε ἔλαττον. πῶς γὰρ ὅς γε διειστήκει μὲν τάδελφοῦ σταθμοῖς πλείοσιν ἢ τριακοσίοις, γράμματα δὲ ἔπεμπεν, οὐδὲ ταῦτα πολλάκις, προσρήσεσιν ὁριζόμενα μόναις; [Foerster, 21). Moreover, how are we to account for Libanius' sentiments of Ors. 12.35 and 18.24 wherein Gallus is depicted as a wronged man treacherously victimized by Constantius, when we can demonstrate with certainty from Or. 1.96-100 (Martin and Petit), written in 374, that the orator was present in his native city in the year 354, having newly returned from a teaching stint in Constantinople, shortly after Gallus' wholesale sentencing to death of the Antiochene senate for its stubborn refusal to impose stringent price controls on that city's grain market in the face of an alarming (and probably artificially induced) shortage?[43] In fact, Libanius visited his fellow-curials in prison where they were awaiting execution (Or. 1.96), and on the day following their unexpected release owing to the intercession of the comes Orientis Honoratus (see Amm. 14.7.2) he was twice summoned to speak before the Caesar (Or. 1.97) and shortly thereafter commanded to leave town on false charges of magic (Or. 1.98-99). Although Gallus evidently rescinded this last order as well (Or. 1.103),[44] nonetheless, the rhetorician still recalled with dismay in 374 Gallus Caesar's tactics of twenty years earlier when he had been a shocked and tearful eyewitness of the events at Antioch just described above: καὶ γὰρ αὖ πρὸς τοῖς ἰδίοις ζάλη τις κατειλήφει τὸ κοινόν, ὀργὴ βασιλέως [i.e., Γάλλου] εἰς φόνον προελθοῦσα· καὶ οἱ μὲν ἔκειντο,

[43]For the date of Libanius' first oration, see A.F. Norman, ed., Libanius' Autobiography, University of Hull Publications (London: Oxford University Press, 1965), pp. viii and xii-xiii. See also Jean Martin and Paul Petit, eds., Libanios: Autobiographie (Discours I), vol. 1, Collection Budé (Paris: Société d'Édition "Les Belles Lettres," 1979). p. xiii. Grain shortage: see Thompson, Historical Work, pp. 61-62.

[44]See Norman, Libanius' Autobiography, nn. 93-106, pp. 173-77.

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τοὺς δὲ ὡς κτείνειεν, ἔδησεν, ἅπαντας ἀγαθούς· ἐν οἷς καὶ τὸν ἐμαυτοῦ διδάσκαλον ἑώρων· ἦλθον γὰρ δὴ οὗπερ ἐδέδεντο, καὶ τὸν οὐδὸν ὑπερβὰς πεσὼν ὠλοφυρόμην ἐν πᾶσιν ὀδυρομένοις (Or. 1.96 [Foerster, 2]). At the risk of oversimplification one reasonable explanation for Libanius' restraint in Ors. 12 and 18 might be that he did not feel that he could speak out honestly against Gallus Caesar's character under the shadow of Julian's administration, and so in order to skirt the sensitive issue of Gallus' apparently less than outstanding performance at Antioch the author focused instead on Constantius' reportedly equally dismal role in the whole affair.[45]

The last of Gallus' contemporaries and/or peers is Gregory of Nazianzus (b. ca. 329) who praises Gallus unreservedly in his Invectiva contra Iulianum (i.e., Or. 4.24), but unfortunately this admirer of Gallus limits his brief remarks to the Caesar's fervid Christianity and leaves us utterly in the dark as to the remaining issues or aspects of his reign.[46] There is the added problem of how to interpret an orthodox Christian writer who may have been biased in favor even of an Arian ruler such as Gallus simply for the sake of contrasting him with his unpopular half-brother the pagan reformer Julian.

Since nothing at all survives regarding Gallus Caesar in the works of Eunapius of Sardis, we pass next to the works of two Christian authors, the Contra Eunomium (dated after 381) of Gregory of Nyssa (b. ca. 335) and the Ad viduam iuniorem (dated to late 380 or early 381) of John Chrysostom (b. between ca. 340 and 350), a native of Antioch and bishop of the See of

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[45] See Thompson, Historical Work, p. 109.

[46] For Gregory's dates see Von Campenhausen, p. 96. In contrast with Lib. Or. 18.10, Soc. 3.1, and Soz. 5.2.9, Gregory in Or. 4.21 attributes Gallus' and Julian's preservation from the massacre of 337/38 to the protection and mercy of Constantius.

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Constantinople.[47] Gregory, who is "not at all favorably disposed towards Gallus,"[48] briefly mentions him twice, once (c. Eunom. 1.47 [Jaeger, 1]) in connection with the Arian bishop Aetius who, Gregory complains, ought to have been punished along with Gallus for the pollution (τοῦ δὲ . . . ἄγους τολμηθέντος τῷ Γάλλῳ) incurred for the murders of Domitianus and Montius, and a second time, but cryptically:

> . . . ἐπόμενος κατ' ἴχνος τῇ φλυαρίᾳ καὶ τὰ καθ' ἕκαστον ἐξετάζων, τίνας φησὶ δούλους εἰς ἐλευθερίαν ἀφιεμένους καὶ τίνα μυουμένων σχέσιν καὶ ἀργυρωνήτων τάξιν, καὶ τί βούλονται Μόντιος καὶ Γάλλος καὶ Δομετιανὸς ἐπεισιόντες τῷ λόγῳ καὶ μάρτυρες ψευδεῖς καὶ βασιλεὺς ὀργιζόμενος καὶ εἰς ὑπεροχίαν τινὲς μεθιστάμενοι; τί γὰρ ἂν καὶ γένοιτο τούτων ματαιότερον τῶν διηγημάτων τῷ γε μὴ ψιλὴν ἱστορίαν διηγήσασθαι βουλομένῳ, ἀλλὰ διελέγξαι τὸν ἀντειπόντα τῷ τῆς αἱρέσεως δόγματι; (c. Eunom. 1.28-29 [Jaeger, 1])

It is at least fruitless, if not impossible to make sense of the evidence as it stands, although this is the first time we have encountered Aetius as being held partially responsible for the deaths of Domitianus and Montius; the allusion to a conspiracy is utterly hopeless because from the context one cannot determine its perpetrators, the intended or actual victims, and who it was that the emperor (presumably) exiled. Then too, the inclusion of Gallus' name with those of the victims Montius and Domitianus at c. Eunom. 1.28 confuses the issue even further.

The section of Chrysostom's treatise which is relevant to our inquiry about Gallus reads as follows:

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[47] For Gregory of Nyssa's dates, see Von Campenhausen, p. 108; for Chrysostom's dates, see Gerard H. Ettlinger, "Historical Evidence for the Date of St. John Chrysostom's Birth in the Treatise Ad viduam iuniorem," Traditio 16(1960), pp. 375-76.

[48] Thompson, Historical Work, p. 65.

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"Οσῳ γὰρ ἂν ἐπαρθῇ καὶ λάμψῃ, τοσούτῳ μείζονα τὴν πτῶσιν ἐργάζεται, οὐ τὰ τῶν ἀρχομένων μόνον, ἀλλὰ καὶ τὰ τῶν βασιλευόντων αὐτῶν. Οὐδὲ γὰρ ἂν εὕροι τις οἰκίαν ἰδιωτικὴν τοσούτων ἐμπεπλησμένην συμφορῶν ὅσων τὰ βασίλεια γέμει τῶν καιρῶν. Καὶ γὰρ ὀρφανίαι ἄφοροι καὶ χηρεῖαι καὶ θάνατοι βίαιοι καὶ τῶν ἐν ταῖς τραγῳδίαις παρανομώτεροι πολλῷ καὶ πικρότεροι μάλιστα εἰς ταύτην κατασκήπτουσι τὴν ἀρχήν. Καὶ ἵνα τὰ παλαιὰ ἀφῶμεν, τῶν βασιλευσάντων ἐπὶ τῆς γενεᾶς τῆς ἡμετέρας, ἐννέα γεγενημένων ἁπάντων, δύο μόνοι κοινῷ θανάτῳ τὸν βίον κατέλυσαν· τῶν δὲ ἄλλων ὁ μὲν ὑπὸ τυράννου, ὁ δὲ ἐν πολέμῳ, ὁ δὲ ὑπὸ τῶν ἔνδον φυλαττόντων αὐτὸν ἐπιβουλευθείς, ὁ δὲ ὑπ' αὐτοῦ τοῦ χειροτονήσαντος, καὶ τὴν ἀλουργίδα περιθέντος αὐτῷ. (Ad vid. iun. 4.270-83 [Ettlinger])

Although the identities of the rulers alluded to by Chrysostom are not spelled out explicitly, there is no disagreement among scholars that Gallus Caesar was the individual "slain by the very man who elected him," that is, Constantius. One wishes that Chrysostom, whose priorities in admonishing the pious widow obviously dictated this no more than passing reference to the politics of Constantius and Gallus, had volunteered more pertinent data than he did apropos of Gallus' career and final year at Antioch. In any case, Chrysostom does reiterate at least one feature shared by all of the ancient versions examined thus far ranging from Athanasius and Aurelius Victor to Libanius, namely the statement implicating Constantius Augustus in the ruination of the man whom he personally had designated to represent himself to the eastern half of the empire, and in so doing perhaps intended to earmark as his successor as well, particularly since the emperor's first marriage (to an unnamed first cousin since 335) was, as of the year 351, still without issue.[49]

This brings us down to the fifth century and to the ecclesiastical histories of Philostorgius, Socrates, Sozomen, and Theodoret.[50] Theodoret

[49] For Constantius' second and third marriages to Aurelia Eusebia in 353/54 and Faustina in 361 respectively, see PLRE, 1, p. 226. No one knows for sure what the emperor's long-term plans for Gallus Caesar were.

[50] For the dates of composition of the orthodox histories, see Chesnut, n. 1, p. 167 and pp. 199 and 201. For Philostorgius' Arian history, see the introduction to Bidez's text edition, pp. CVI and CXXXII.

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can be dispensed with quickly since the sum total of the bishop's thoughts on Gallus is contained in a single reference which pertains to Gallus' investiture in 351, followed by the observation that Gallus was εὐσεβῆ τε . . . καὶ εἰς τέλος γε διαμείναντα (HE 3.3.1 [Parmentier]). From this scrap of evidence it appears that the orthodox Theodoret, like Gregory Nazianzen, esteemed the Arian Caesar rather highly, but one dare not venture additional conclusions based upon that comment alone. Gallus is discussed at considerably greater length, on the other hand, by the laymen Socrates and Sozomen, whose narratives coincide almost exactly on some four points. The probability of Sozomen's having consulted, and hence echoing, Socrates' version of Gallus' career, or else the likelihood of both writers having drawn independently from the same unknown fons (or fontes) is not my primary concern here;[51] rather, I would like to discuss the highlights of Gallus' reign which both historians selected as worth recording for posterity. In the first pair of selections (Soc. 3.1.168 [Hussey, 1] and Soz. 5.2.8 [Bidez and Hansen]), mention is made both of Constantius' jealousy following the massacre of Gallus' and Julian's father in 337/38 and, in Sozomen's account (5.2.19), of Gallus Caesar's eventual execution in 354 owing to allegedly rebellious designs. The second pair of citations (Soc. 2.32-33.131 and Soz. 4.7.4-5) informs us, with approbation, of Gallus' method of handling the Jewish uprising in the year 352. Whether owing to an anti-Semitic strain which is widespread among many early and, unhappily, influential Christian thinkers (e.g., Chrysostom's Homilia Adversus Iudaeos, Gregory of Nyssa's Or. 5, and Origen's Contra

[51]For the "dependence" of Sozomen on Socrates, see Chesnut, n. 1, p. 167 and p. 197. Whatever their source(s), both writers invert the Silvanus (355) and Gallus (354) Affairs at Soc. 2.32-33 (Hussey, 1) and Soz. 4.7 (Bidez and Hansen) respectively.

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Celsum 4.23),[52] or a sincere admiration for Roman law and order, Socrates and Sozomen register no indignation such as one might expect had Gallus been thought to have acted in an irresponsible or inhuman manner toward the rebels--a charge implied perhaps by Jerome's handling of the same incident in his Chronicle (quoted on p. 52 above), and leveled at Gallus either generally speaking or else in particular (as in the case of Montius and Domitianus) by other sources.[53] The third set of paired passages (Soc. 2.34.131-32 and Soz. 4.7.6-7) represents by far the most instructive and unambiguous formulation encountered up to now of the ancient thesis which ascribes Gallus' downfall in 354 to treasonable activities, whether intentional or otherwise.[54] Both historians claim Gallus' success against the Jews in Diocaesarea resulted in hybris, which attitude in the Caesar's case went on to manifest itself in "innovations," i.e., abuses of his authority, specifically the murders of Domitianus and Magnus (for Montius?), and that for these crimes Gallus forfeited his life at the emperor's bidding:[55]

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[52]See Wayne A. Meeks and Robert L. Wilken, eds., Jews and Christians in Antioch in the First Four Centuries of the Common Era (Missoula, Montana: Scholars Press, 1978) and Léon Poliakov, The History of Anti-Semitism, vol. 1: From the Time of Christ to the Court Jews, trans. from the original Histoire de l'antisémitisme (1955) by Richard Howard (New York: Vanguard Press, 1965).

[53]In particular: see Amm. 14.7.4, 7.10-16; Julian Ep. ad Ath. 272c-d; and Lib. Ors. 18.24 and 1.96. In general: see Aur. Victor Caes. 42.12; Eutrop. 10.13; Orosius 7.29.14; Amm. 14.1.1-2, 1.4, and passim, especially 14.7.3, 11.3, 11.6, 11.8, 11.24; and see Julian Ep. ad Ath. 271d.

[54]See Athan. Hist. Ar. 74.4; Eutrop. 10.12; Jerome Chron. A.D. 353 (pp. 238-39 [Helm]); and Lib. Or. 18.24.

[55]Where did the name "Magnus," which has come down to us only here, originate? Hybris: cf. Amm. 14.11.25-26 and Blockley, Ammianus Marcellinus, pp. 22-24.

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(1) Ταῦτά τε πράξας ὁ Γάλλος τὴν εὐτυχίαν οὐκ ἤνεγκεν· ἀλλ' εὐθὺς νεωτερίζειν κατὰ τοῦ προχειρισαμένου αὐτὸν ἐπεχείρησεν, τυραννεῖν τε καὶ αὐτὸς ἐβούλετο· ὥστε οὐκ εἰς μακρὰν ὁ σκοπὸς αὐτοῦ ὑπὸ Κωνσταντίου κατάφορος ἐγένετο. Δομετιανὸν γὰρ τὸν τότε ἔπαρχον τῆς ἑῴας καὶ Μάγνον κυαίστωρα αὐθεντήσας ἀνεῖλε, μὴ μηνύσας τῷ βασιλεῖ τὸν σκοπὸν αὐτοῦ. Ἐφ' ᾧ κινηθεὶς ὁ Κωνστάντιος μετάπεμπτον ἐκάλει τὸν Γάλλον πρὸς ἑαυτόν· ὁ δὲ περίφοβος γενόμενος ἅπερ ἐπορεύετο. Καταλαβόντα δὲ αὐτὸν τὰ ἐσπέρια μέρη καὶ περὶ Φλάνωνα τὴν νῆσον γενόμενον ὁ Κωνστάντιος ἀναιρεθῆναι ἐκέλευσεν. . . . Γάλλος μὲν οὖν ὁ καὶ Κωνστάντιος ἐν τῇ ἑβδόμῃ τοῦ βασιλέως Κωνσταντίου ὑπατείᾳ ἀνηρέθη, καθ' ἣν καὶ αὐτὸς ὕπατος ἦν τὸ τρίτον. (Soc. 2.34.131-32 [Hussey, 1])

(2) δόξας δὲ εὖ πράττειν τὴν εὐημερίαν οὐκ ἤνεγκεν, ἀλλὰ τυραννεῖν ἐβούλετο. καταμηνύσαντας δὲ τῷ βασιλεῖ τὸν αὐτοῦ νεωτερισμὸν Μάγνον τε τὸν κοιαίστωρα καὶ τῆς ἕω τὸν ὕπαρχον Δομετιανὸν ἀνεῖλεν. ἀγανακτήσας δὲ Κωνστάντιος μετεκαλεῖτο αὐτόν. ἀπειθεῖν δὲ οὐκ οἷός τε ἦν (ἐδεδίει γάρ) εἶχετο τῆς ὁδοῦ. ἤδη δὲ παρὰ Φλάβωνα τὴν νῆσον γενόμενος ἀνηρέθη τοῦ βασιλέως προστάξαντος, ἡνίκα δὴ αὐτὸς μὲν τὸ τρίτον ὑπάτευεν, ἕβδομον δὲ Κωνστάντιος. (Soz. 4.7.6-7 [Bidez and Hansen])

In the final pair of selections (Soc. 3.1.171 and Soz. 5.5.8), the authors claim in contrast with a well-established fourth century tendency to charge Constantius with orchestrating Gallus' allegedly undeserved recall and death[56] that Julian, upon becoming sole emperor in 361, put to death Constantius' praepositus sacri cubicularii Eusebius, believing the powerful court eunuch to have maliciously instigated Gallus' fall from favor:

(1) Εὐσέβιον δὲ τὸν προεστῶτα τοῦ βασιλικοῦ κοιτῶνος ἔζημίωσε θανάτῳ, οὐ μόνον δὲ διὰ τὸ πολλοὺς ἠδικῆσθαι ὑπ' αὐτοῦ, ἀλλ' ὅτι καὶ Γάλλον τὸν ἑαυτοῦ ἀδελφὸν ἀναιρεῖσθαι ἐκ τῆς ἐκείνου διαβολῆς ἐπυνθάνετο. (Hussey, 1)

(2) Εὐσέβιον δὲ τὸν μείζονα τῆς βασιλικῆς αὐλῆς θανάτῳ ἐζημίωσε· καὶ ἰδίᾳ γὰρ αὐτῷ λύπη τις ἦν πρὸς τοῦτον, καθότι Γάλλον τὸν ἀδελφὸν τῇ αὐτοῦ ἐπιβουλῇ ἀνῃρῆσθαι ὑπῃτπευεν. (Bidez and Hansen)

The major difficulty I have with the combined narratives of the two

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[56] See Julian Ep. ad Ath. 270d-271a; Amm. 14.11.7; and Lib. Ors. 18.26 and 12.35.

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Christian historians is that the third and fourth paired accounts appear to be inconsistent: Gallus, we are told initially at Soc. 2.34.131-32 and Soz. 4.7.6-7, was killed for treasonable acts which seem to have originated in his own initiative or will to power and not in Constantius' excessive suspicions or studied ill-will; yet at Soc. 3.1.171 and Soz. 5.5.8 Julian avenges (unfairly?) his half-brother's disgraceful end caused by the eunuch Eusebius' unspecified "machinations" against him. We never are shown a clear logical connection between Gallus' execution, surely justifiable because of his revolutionary designs, on the one hand, and the vengeance exacted by Julian on the other. In short, the final pair does not flow naturally and coherently out of the preceding doublet. This apparent lack of coherence may stem from an injudicious use by Socrates and Sozomen of their available (and occasionally garbled) source materials or from their neglect to explain in greater detail above Eusebius' role in the downfall of Gallus. In this event, Socrates and Sozomen seem to have incorporated into their own inadequately synthesized accounts of the Gallus Affair elements hostile in part toward Gallus (hence the Caesar's alleged involvement in subversive activities), toward Constantius (whose eunuch chamberlain's schemes in the final analysis reflect negatively on the emperor personally,),[57] and perhaps even toward Julian (who evidently erred by later making Eusebius the scapegoat for his own half-brother's indiscretions.

The narrative of the Arian layman Philostorgius is the earliest fifth century Christian history to recount Caesar Gallus' demise; it also is the

[57]See, for instance, Julian Ep. ad Ath. 272d; Amm. 18.4.3; and Philostorgius 4.1.

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closest thing we possess in Greek to the continuous narrative on a grand scale of Ammianus Marcellinus, and as a result it serves as an invaluable counterweight to Ammianus' interpretation of Gallus, which is almost entirely unsympathetic. Philostorgius refers to no event from Gallus' reign prior to 353/54, e.g., the Diocaesarean uprising under Patricius in 352. On the other hand, at 3.28 (Bidez) he claims that Gallus displayed such promise by his performance against the Persians[58] as well as by his civic-minded spirit that the jealous emperor, at the urging of certain unnamed individuals who "delighted in plots" (εἰς φθόνον οἱ ταῖς διαβολαῖς χαίροντες ἀναφλέγουσι τὸν βασιλέα, 3.28 [Bidez]), resorted to underhanded means in order to discredit his younger subordinate--in other words, the court conspiracy of flatterers and informers backed by Constantius and downplayed by Ammianus in book 14. As for Gallus Caesar's management of his internal affairs at Antioch in 354, Philostorgius' version agrees with that of Ammianus insofar as it depicts Gallus, assisted by his ambitious consort Constantia, permitting his troop (συνεπιψηφίζοντος καὶ τοῦ Γάλλου, 3.28 [Bidez]) to lynch two uncooperative civil officials, Domitianus and Montius. Both were "evil men" (κακοὺς, 3.28) according to Philostorgius, however, presumably because of their complicity in the emperor's schemes to undermine Gallus' position, although Philostorgius goes even further than Ammianus by admitting that Gallus had determined to eliminate Domitianus beforehand (ἐξ ἧς αἰτίας καὶ ἑτέρων συνεπιρρυέντων θανάτῳ τὸν ὄβριστὴν μετελθεῖν ἐβουλεύετο·, 3.28 [Bidez]). Apart from terming Gallus "headstrong and immoderate" (ὁ δὲ θράσους ἀμετρίᾳ χρησάμενος·, 3.28 [Bidez]),

[58]See also Zos. 3.1.1 (Paschoud, 1).

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there is no mention whatsoever by Philostorgius of cruelty or bloodthirstiness on the part of the Caesar and his wife, of Gallus' wholesale condemnation of the Antiochene senate, of his alleged betrayal to the populace of the Syrian governor Theophilus during the impending grain shortage which transpired around the same time, or of delation, treason trials, inquisitions, and executions of any kind. An added detail about the seduction of the quaestor Montius by Constantia is attested to in the ancient sources by Philostorgius alone (αὐτὴ δι' ἑαυτῆς ἐπισπασαμένη τὸν Μόντιον τοῖς δορυφόροις ἐκδίδωσιν·, 3.28 [Bidez]).

In 3.28, therefore, the narrative of Philostorgius departs from the generally accepted Ammianan view that Gallus failed in his defence of the eastern frontier, and I have suggested other instances in the paragraph immediately preceding where this author either differs from Ammianus Marcellinus or introduces original material of his own. The same can be said of the Arian historian's account at 4.1, where Gallus sets out from Antioch realizing that the emperor's infuriated summons can be "for no good purpose," but complies nonetheless lest civil war follow on the heels of a refusal (documented only here): ὁ δέ, τὴν μὲν κλῆσιν οὐκ ἐπ' ἀγαθῷ συλλαβών, εὐλαβούμενος δὲ μὴ πόλεμος ἀπειθήσαντος συραγῇ, τοῦ προστάγματος γίνεται (Bidez).[59] A second distinguishing feature of Philostorgius' version has to do with Constantia's evidently voluntary departure for the West to intercede on Gallus' behalf, i.e., there is no reference to the repeated importunings of Constantius for her to visit him at court (see, for example, Amm. 14.11.6) in order to lure Gallus to Milan. Similarly, Gallus himself journies westward accompanied by no escort (cf. Amm. 14.11.16)

[59]See Mooney, p. 176.

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save the bishop Theophilus who, according to Philostorgius, formerly had witnessed the solemn oaths of mutual loyalty pledged between the two cousins.[60] In Philostorgius' account, furthermore, Theophilus temporarily prevents Barbatio (cf. Amm. 14.11.19-20) from carrying out the emperor's initial plans (documented only here at 4.1) to demote and exile Gallus. It appears that Constantius had not predetermined the death penalty for Gallus as Ammianus insists at 14.11.1; rather, Philostorgius' version implies that Eusebius and others of Constantius' eunuch courtiers managed to influence the emperor in the direction of capital punishment in order to save their own necks (another shibboleth for a court conspiracy against the Caesar?).[61] The final divergence between the Ammianan account of the Gallus Affair and that of Philostorgius involves Gallus' actual execution. Constantius, having mandated Gallus' death at 4.1, revokes the sentence at the eleventh hour, but Eusebius intentionally delays the reprieve until it is too late to save him. Thus, there is no mention by Philostorgius of a hearing such as the one presided over by Eusebius, Pentadius, and Mallobaudes (see Amm. 14.11.21-23), during which Gallus was interrogated about his alleged crimes and subsequently sentenced to death by the Augustus, and the eunuch Eusebius plays by far the most decisive role in the Arian version of Gallus' death. "It is for this reason," we are told, "that Julian, upon girding himself with the imperium of an emperor, put to death both Eusebius and his companions for the outrage to his brother" (Philostorgius 4.1).

There is another reference to Gallus Caesar in Philostorgius'

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[60] See Thompson, Historical Work, p. 56.

[61] See Mooney, p. 176.

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Ecclesiastical History (4.8) which warrants consideration inasmuch as it may shed added light on the passage from Gregory of Nyssa's Contra Eunomium 1.28-29 (Jaeger, 1) quoted on page 72 above:

> Ὅτι, φησί, Βασίλειος, συλλαβὼν μεθ' ἑαυτοῦ τόν τε τῆς Σεβαστείας Εὐστάθιον καὶ ἑτέρους ἐκκλησιῶν προεστῶτας, τόν τε Ἀέτιον μάλιστα εἶτα δὲ καὶ τὸν Εὐδόξιον πρὸς τὸν βασιλέα διασύρει, ἄλλα τε πλάττων περὶ αὐτῶν καὶ ὡς εἶησαν μύσται καὶ κοινωνοὶ τῆς κατὰ Γάλλον ἐπαναστάσεως, συμπεριλαβὼν ταῖς κατ' ἐκείνων διαβολαῖς καὶ τὸν Θεόφιλον. ὁ δὲ πεισθείς, μάλιστα δὲ διὰ τῶν γυναικῶν (ταύτας γὰρ οἱ περὶ Βασίλειον πρὸς τὴν ἑαυτοῦ γνώμην προκατειργάσαντο), τῷ μὲν Θεοφίλῳ ζημίαν ἐπιβάλλει τὴν ἐν τῷ Πόντῳ Ἡράκλειαν οἰκεῖν ὑπερόριον, τὸν δὲ Εὐδόξιον τῆς Ἀντιοχείας ἀποστάντα διαμένειν οἴκοι. Ἀέτιον δὲ καὶ ἑτέρους τινὰς τῶν σὺν αὐτοῖς εἰς τὴν τῶν διαβαλλόντων δίδωσιν ἐξουσίαν. (Bidez)

Philostorgius speaks of an uprising or hostile movement (ἐπαναστάσεως) fomented by Gallus in affiliation with the Arian prelates Aetius, Eudoxius, Theophilus, and others; but it is equally crucial to note from the syntax and context of Philostorgius 4.8 that the historian believes these charges of Basil's to have been trumped up (i.e., πλάττων and διαβολαῖς), and that he maintains Constantius fell for the fabrication regardless (i.e., ὁ δὲ πεισθείς). On the other hand, inasmuch as Gregory of Nyssa (c. Eunom. 1.28-29) also mentioned "initiates," i.e., μυουμένων (μύσται at 4.8) and "false witnesses," i.e., μάρτυρες ψευδεῖς (πλάττων κτλ. in Philostorgius), it may not be farfetched to see in Philostorgius' narrative traces of an Arian version for a genuine conspiracy against Constantius, devised (or at least participated in) by Gallus Caesar in league with leading Arian bishops, and one in which the real or alleged "false witnesses" referred to by Philostorgius 4.8 as well as Eunomius in Gregory's account were headed by Basil. Gregory likewise speaks of "certain [sc. men] sent into exile" (εἰς ὑπερορίαν τινὲς μεθιστάμενοι) at c. Eunom. 1.28-29, which might then refer to Theophilus, Eudoxius, and probably Aetius,

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all of whom Philostorgius goes on to say were banished subsequently by the emperor.[62]

We come, at last, to the Νέα ἔκδοσις of Zosimus who wrote in the early sixth century between the years 498 and 518.[63] It is Zosimus' contention that Constantius elevated Gallus to the rank of Caesar with the wicked intention of destroying him (an identical assertion is made of Julian by Ammianus at 16.11.13), and Zosimus continues to emphasize this point by reminding his readers of Constantius' alleged part in the massacre of Gallus' relatives:

> . . . Κωνστάντιος Γάλλον, ὄντα τοῦ θείου παῖδα, Ἰουλιανοῦ δὲ τοῦ μετὰ ταῦτα βασιλεύσαντος ἀδελφὸν ὁμοπάτριον, Καίσαρα καθίστησι, καὶ Κωνσταντίαν αὐτῷ κατεγγυήσας τὴν ἀδελφήν, εἴτε τοῖς Περσῶν πολέμοις ἀντιστησόμενον, εἴτε, ὅπερ ἦν ἀληθές, πρόφασιν τῆς αὐτοῦ βουλόμενος εὑρεῖν ἀναιρέσεως· μόνοι γὰρ ἔτυχον αὐτός τε καὶ ἀδελφὸς ἐκ τοῦ Κωνσταντίου γένους περιλειφθέντες, τῶν ἄλλων πρὸς αὐτοῦ πάντων ἀνῃρημένων, ὡς διεξῆλθομεν ἤδη. Τούτῳ μὲν οὖν τὸ τοῦ Καίσαρος ἐπιτίθησι σχῆμα, Λουκιλλιανῷ δὲ τὸν πρὸς Πέρσας ἐπιτρέψας πόλεμον αὐτὸς ἐπὶ Μαγνέντιον ἐχώρει, . . . (2.45.1-2 [Paschoud, 1])[64]

At Zos. 2.55 the massacre of 337/38 reappears in connection with Gallus' recall and execution by Constantius; moreover, Zosimus (and presumably his leading source Eunapius),[65] reduces the entire Gallus Affair to a black-and-white showdown between the combined forces of the weakling emperor and his manipulative advisors, and their blameless victim, the

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[62] According to Soz. 5.5.9: Ἀέτιον δὲ τὸν ἀρχηγὸν τῆς Εὐνομίου αἱρέσεως, ὡς ὑπὸ Κωνσταντίου ὑπερορίαν φυγὴν καταδικασθέντα καὶ ἄλλως ὕποπτον διὰ τὴν πρὸς Γάλλον ὁμιλίαν (Bidez and Hansen). See also Soz. 3.15.7-8 and 4.12.

[63] For the date of Zosimus' history, see n. 69 on p. 33.

[64] Zosimus' closing remark to the effect that Lucilianus was placed in charge by Constantius against the Persians may be another indication of the restrictions on Gallus' authority even in the military sphere. See Amm. 14.11.14 and p. 62 above.

[65] See Paschoud, 1, n. 70, p. 263.

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unsuspecting Caesar. Zosimus repeats the standard charges, this time admittedly false, of laesa maiestas against Gallus on the one hand, and of a conspiracy to murder the Caesar emanating from delatores and high court circles on the other. Indeed, it is difficult to determine which party comes off worse in Zosimus' presentation, the informers and eunuch courtiers or the arrogant and suspicious Augustus:

> Ἐπὶ τούτοις τῆς τῶν ὅλων ἀρχῆς εἰς μόνον Κωνστάντιον περιστάσης ἀλαζονεία μὲν αὐτῷ προσεγίνετο, τὴν τύχην ἐνεγκεῖν μετρίως οὐ δυνηθέντι, προσεπετίθετο δὲ καὶ τὰ περὶ τοὺς τοιούτους εἰωθότα συνίστασθαι τῶν συκοφαντῶν ἐργαστήρια, τοῖς δοκοῦσιν εὖ ἔχειν τύχης ἐπιβουλεύοντα· . . . Οὗτοι κοινωνοὺς τῆς κακοηθείας εὑνούχους τῶν περὶ τὴν αὐλὴν τινας ποιησάμενοι, περιστάντες πείθουσι τὸν Κωνστάντιον ὡς Γάλλος ἂν ἀνεψιὸς αὐτοῦ, τῆς τοῦ Καίσαρος ἠξιωμένος τιμῆς, οὐκ ἀρκούμενος ταύτῃ πειρᾶται τὴν βασιλείαν ἑαυτῷ περιδεῖναι· καὶ ὅτι τοῦτο ἀληθὲς ἦν πείσαντες, εἰς τὴν κατὰ τοῦ Γάλλου σφαγὴν ἐπαίρουσι τὸν Κωνστάντιον· ἦσαν δὲ οἱ ταύτην πλέξαντες τὴν ἐπιβουλὴν Δυνάμιος καὶ Πικέντιος, εὐτελεῖς ἄνδρες καὶ διὰ τῶν τοιούτων κακῶν ἐπὶ μεῖζον ἐλθεῖν τύχης σπουδάζοντες. Ἐκοινώνει δὲ αὐτοῖς τῆς πράξεως καὶ Λαμπάδιος ὁ τῆς αὐλῆς ὕπαρχος, ἀνὴρ δύνασθαι παρὰ τῷ βασιλεῖ πάντων ἀεὶ πλέον ἐπιθυμῶν· τοῦ τοίνυν Κωνσταντίου ταῖς τοιαύταις θεμένου διαβολαῖς μετάπεμπτος μὲν ὁ Γάλλος ἐγίνετο, τὸ κατ' αὐτοῦ σπουδαζόμενον ἀγνοῶν· ἀφικόμενον δὲ αὐτὸν ὁ Κωνστάντιος πρῶτον μὲν τῆς τοῦ Καίσαρος ἐνδύει τιμῆς, ἐπεὶ δὲ πεποίηκεν ἰδιώτην, τοῖς δημίοις ἐκδίδωσιν εἰς σφαγήν, οὐ τοῦτο πρῶτον κατὰ συγγενοῦς αἷματος τὸ μύσος ἐξαμαρτών, ἀλλ' ἑτέροις πλείοσι τοῦτο προσθείς. (2.55.1-3 [Paschoud, 1])[66]

It has been pointed out by one modern commentator[67] that with 2.55 above commences the section of Zosimus' history which parallels the more in-depth narrative of Ammianus Marcellinus. Zosimus' single chapter corresponds to all of Ammianus' fourteenth book and roughly the first six chapters of book 15; hence Zosimus' references to Dynamius, the actuarius sarcinalium principis iumentorum of Amm. 15.5.3, and to the praetorian

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[66] See also Zos. 3.1.1: Ταῦτα ἐπὶ Γάλλῳ τῷ Καίσαρι πεπραχὼς ὁ Κωνστάντιος αὐτὸς μὲν κατὰ τὴν Ἰταλίαν ἐκ Παιονίας διέβη, . . . (Paschoud, 1).

[67] Paschoud, 1, n. 70, pp. 262-63.

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prefect of Italy, Lampadius, of Amm. 15.5.4. Picentius, on the other hand, is completely unknown to us apart from Zosimus' work, and since Ammianus only discusses the first two men in the context of their conspiracy against Silvanus, there may have been some confusion in Zosimus' mind or in his sources about Picentius' association with Gallus.[68] Nonetheless, insofar as there is no mention in the Νέα ἔκδοσις of the Caesar's purported cruelties at Antioch or of any of his exploits prior to 353/54 aside from a brief notice at 3.1 concerning his Persian policy, one might conclude that Zosimus had very limited, or very inept, source-materials available to him (e.g., that the eunuch Eusebius is not cited by name is surprising), or else, what is even more likely to have been the case, he selectively ignored Gallus' negative qualities and detractors, classifying the Caesar instead with another of Constantius' truly undeserving (and as such, sympathetic) casualties, the barbarian usurper Silvanus. Since Gallus and Constantius were staunch Arians, hatred of Christianity per se cannot have been a major consideration in Zosimus' positive portrayal of Gallus or unfavorable characterization of the emperor; rather, the historian may simply have been motivated by antipathy toward the sons (i.e., successors) of Constantine the Great (see, for example, Zos. 2.40) and Julian's future rival (see Zos. 3.1, 5, and 8-9), or perhaps even the institution of the principate itself (Zos. 1.5).[69]

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[68] Confusion in Zosimus and/or his sources: see Paschoud, 1, n. 70, pp. 262-63. Picentius: see PLRE, 1, p. 701. Silvanus: omitted altogether by Zosimus, the Frankish magister peditum was forced to usurp at Cologne on 11 August 355; he "reigned" for twenty-eight days (see Amm. 15.5). See PW 4(1901), 1076-77; Stein-Palanque, pp. 142-43; LRE, 1, pp. 116-17; PLRE, 1, pp. 840-41; Piganiol, pp. 104-5; and Nutt, pp. 80-89. Dynamius and Lampadius: see Galletier, 1, nn. 185-86, p. 241 and PLRE, 1, p. 275.

[69] See Walter Emil Kaegi, Jr., Byzantium and the Decline of Rome (Princeton: Princeton University Press, 1968), pp. 118-19, 132, and 238.

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Opinion regarding Gallus' downfall and the role played in it by Constantius is divided much more sharply in the East than in the West. Whereas no western authority feels compelled to make excuses for the Caesar's alleged saevitia or the emperor's designs to destroy him, and intimations of subversive activity on Gallus' part are ventured very tentatively by writers with the exception of Ammianus Marcellinus, who fails to substantiate the accusation,[70] the same hardly can be said for the Greek sources whom we have surveyed in the second half of this chapter: Julian and Libanius, for example, acknowledge Gallus' harshness and even murderously bad temper, but they endeavor to explain away, or at least minimize, these qualities by shifting the primary responsibility to Constantius or his courtiers, most notably Eusebius. Further, they vehemently deny the slightest hint of treasonable behavior or intentions on Gallus' part. Gregory Nazianzen and much later Theodoret of Cyrus briefly extol Gallus' Christian piety, and since this scarcely would have been the case had these authors known Gallus to have been as Ammianus describes him in book 14 of his History, one can surmise that Gallus' administration must have been at least adequate in their minds, or if not that Gregory deliberately favored Gallus out of a perverse desire to discredit the Caesar's half-brother Julian, whereas Theodoret, who was writing approximately eighty years later, probably was not as well-acquainted with the available literature on Gallus as he could have been.[71] The pagan Zosimus, whom we know from his Νέα ἔκδοσις 3.2.4 to have been at least somewhat familiar

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[70] See also Amm. 21.16.10 where Gallus is not included by the historian on his list of traitors (perduellionum).

[71] See Von Campenhausen, p. 98.

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with Julian's orations and epistles, clearly hearkens back to the Julianic interpretation of events; although, insofar as he seems to have suppressed Gallus' troubles at Antioch altogether, Zosimus represents pro-Julianic propaganda run wild, i.e., the extreme end of the spectrum which favors the Caesar unreservedly while unilaterally maligning Constantius Augustus. By contrast, a tradition manifestly hostile to Gallus Caesar is represented by Socrates and Sozomen who point to the murders of Domitianus and Montius as proof of Gallus' treasonable inclinations. Both writers ultimately blame the eunuch chamberlain Eusebius for the Caesar's death, however.

John Chrysostom's notice regarding Gallus' murder at the hands of the man who invested him is more difficult to categorize, but it occurs in a somewhat polemical passage wherein is listed a series of recent Roman sovereigns who died violently and disgracefully (the bulk of whom also happen to be Arians) so that one could safely say that inasmuch as Chrysostom was opposed to the Arian persuasion he doubtless was no sympathizer of Gallus or of his alleged murderer, the emperor Constantius. At any rate, Chrysostom, similar to Athanasius (see pp. 48-49 above), Gregory of Nazianzus, and Theodoret, is too chary of detailed information to be of much use to us today one way or the other. Gregory of Nyssa's remarks are only slightly easier to assess than John Chrysostom's owing to the fact that in one place (c. Eunom. 1.28-29) he vaguely alludes to a plot, i.e., σχέσιν (mentioned in a lost tract of Eunomius and possibly engineered against Domitianus and Montius by an anonymous person or persons) in connection with Gallus, Montius, and Domitianus, and further on at c. Eunom. 1.47 protests the bishop Aetius' having escaped retribution after allegedly procuring in company with Gallus the deaths of the two civil officials

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just named--all this without ever spelling out the precise nature of the relationship, if one was intended, between the two perhaps related occurrences. Gregory nowhere explicitly attributes to the Caesar treasonable ambitions or other atrocities save the murders of the quaestor and praetorian prefect, unless he expected his readers to infer from c. Eunom. 1.47 that the assault upon the two officials constituted an act of laesa maiestas, and it is impossible to determine what he might have heard or thought about Constantius or his advisors' roles in the subsequent execution of Gallus. Gregory of Nyssa's comments about Gallus Caesar are not overly enthusiastic, however, and so we must locate him in the Socratic (i.e., Socrates/Sozomen) rather than Julianic camp, while bearing in mind that Gregory, like John Chrysostom, was writing some sixty years earlier than the historians Socrates and Sozomen. In fact, Gregory represents our earliest extant unsympathetic authority on Gallus Caesar in Greek.

Finally, Philostorgius cites none of the undesirable aspects usually associated with Gallus' reign; on the other hand, he resembles Julian and Libanius inasmuch as he concedes Gallus' mistreatment of Domitianus and Montius while at the same time making it clear that both government officials deserved the violent deaths meted out to them. The Arian historian has provided us with information for three conspiracies pertaining to Gallus Caesar: first, that of the emperor through his intermediary Domitianus to undermine Gallus' popularity at Antioch; next, Gallus' own plans to eliminate the intolerable praetorian prefect Domitianus; and last, Basil of Ancyra's purportedly false accusations to Constantius involving Aetius, Gallus, and other Arian bishops. In the end Philostorgius exonerates the rash young cousin of the emperor by placing the liability for Gallus'

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downfall squarely on the backs of Eusebius and his agents who, not satisfied with having instigated and effected the Caesar's recall, repeatedly browbeat the Augustus into acquiescing in their intrigues to have Gallus killed rather than simply exiled, while Eusebius even went so far as to purloin the imperial reprieve with which Constantius subsequently reversed his earlier decision in favor of the death sentence.[72]

Individual opinion about Gallus Caesar varies, therefore, but the eastern sources as a whole from Julian to Zosimus consistently indicate that it was owing to the influence of the Rasputin-like praepositus sacri cubicularii Eusebius in league with other professional delatores and curiosi who belonged to the imperial bureaucracy that Gallus, and others like him, perished.[73] To the Greek authors reviewed so far, one should append Epit. Caes. 42.19 (Spadonum aulicorumque amori deditus et uxorum [Pichlmayr]) and perhaps even Ammianus Marcellinus (see, for example, 18.4.2-6) who, despite his loathing for Gallus and insistence on the Caesar's brutality, concedes (in a moment of weakness?) at 21.1.2: . . . quem [sc. Gallum] inertia mixtaeque periuriis fraudes prodidere quorundam (Seyfarth, 1).[74] Quorundam almost certainly includes the sycophants (adulatores), eunuchs of the imperial comitatus, and even wives of Constantius on whom this allegedly arrogant (see Amm. 15.1.3) and fearful emperor (see especially 16.8.10) was dependent to a debilitating degree: uxoribus et

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[72]For a discussion of Constantius' plans for Gallus following his recall, see Mooney, p. 176 and Blockley, "Gallus and Julian," pp. 441 and 467.

[73]Curiosi: for example, the ὑπογραφεύς or notarius Paulus, and the ἀγγελιαφόροι or agentes in rebus Apodemius and Pentadius. See PLRE, 1, pp. 683-84 and 687.

[74]Although writing in Latin, Ammianus was an easterner by birth and had lived in Antioch during the latter part of Gallus' reign (14.9.1).

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spadonum gracilentis vocibus et palatinis quibusdam nimium quantum addictus ad singula eius verba plaudentibus et, quid ille aiat aut neget, ut assentiri possint, observantibus (21.16.16 [Seyfarth, 1]).[75]

By and large it appears as if modern commentators and historians have accepted, and will continue to accept, this stereotype of Constantius in much the same manner as once they subscribed to that of Gallus as being an incorrigible tyrant and irresponsible young rake.[76] The excessive

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[75]Eunuchs, especially of the sacred bedchamber: see LRE, 1, pp. 126, 341, 363-64, 367, 566-70. See also M. Keith Hopkins, "Eunuchs in Politics in the Later Roman Empire, PCPhS, New Series, 11(1963), pp. 64-66, 68-70, 72-77, 80 and PLRE, 1, pp. 302-3. Diatribes in the ancient sources against eunuchs under Constantius: Athan. Hist. Ar. 5.38; Pan. Lat. 11.19.3 (Galletier, 3); Lib. Or. 14.3, Or. 18.130, 149, 152; Amm. 14.10.5, 11.2-3, 11.21, 15.3.2, 16.6.3, 8.13, 18.4.2-3 (apud quem [sc. Eusebium], si vere dici debeat, multa Constantius potuit), 20.2.3, 21.15.4, 22.3.12; Julian Ep. 14. 384d, Ep. ad Ath. 274a; Soc. 3.1.171-72; Soz. 3.1.4, 4.16.22, 5.5.8. Notarii active under Constantius: see Domitianus and Palladius in PLRE, 1, pp. 262 and 658-59. Agentes in rebus or ἀγεντισηρίβους (see Athan. Apol. Const. 10 and Cod. Th. VI.27) active under Constantius: see Gaudentius and Rufinus in PLRE, 1, pp. 386 and 774. For the similarities between notarii and agentes and their functions, see William G. Sinnigen, "Two Branches of the Late Roman Secret Service," AJPh 80(1959), pp. 239-41, 244-48, and 253-54. See also PLRE, 1, pp. 127-29, 363-64, 367, 390, 572-74, 578-82. For changes probably mistakenly attributed to Constantius in the corps of agentes, see Sinnigen, "Three Administrative Changes Ascribed to Constantius II," AJPh 83(1962), pp. 369-78 and 382. Diatribes in the ancient sources against notarii and agentes in rebus under Constantius: Lib. Or. 14.15, Or. 18.131-41, 149, 158, Or. 62.8f. and 51, Or. 2.44-46; Amm. 19.12.1 and 22.3. 11; Soc. 3.1.172. Regarding Constantius' choice of ministers and advisors in general, see Eutrop. 10.15.2: nimium amicis et familiaribus credens (Santini) and Aur. Victor Caes. 42.24-25: Haec tanta tamque inclita tenue studium probandis provinciarum ac militiae rectoribus, simul ministrorum parte maxima absurdi mores, adhuc neglectus boni cuiusque foedavere. Atque uti verum absolvam brevi: ut imperatore ipso praeclarius, ita apparitorum plerisque magis atrox nihil (Pichlmayr). See also Julian Ep. 33.389d-390a and Ep. 204.397b; Amm. 14.5.4. Influence of Constantius' wives: see Eutrop. 10.15: uxoribus deditior; Lib. Or. 18.27; and Soc. 2.2.5. Sycophants: see Pan. Lat. 11.19.4; Julian Or. 1.48c-d; Lib. Or. 30.7; Soz. 4.11.9-10; and Amm. 14.5.5, 15.1.2-3, 16.12.67-70. See also n. 19 above. Constantius highly susceptible to being influenced, a commonplace: see Theod. HE 2.10, 12, and 3.1.

[76]Constantius stereotype: see Gwatkin, Studies, p. 110; Jules Maurice, "La terreur de la Magie au IVe siècle," RH, 4th Series, 6(1927), pp. 110-11;

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dependence of Constantius on his consistorium cannot be justified, nor will I endeavor to do so; but in light of the death of his own brother Constans in 350 at the hands of usurpers, Constantius' fear and prosecution of actual, prospective, and imaginary offenders such as Gallus perhaps ought to be viewed as intelligible (although by no means to be condoned) behavior rather than utter weakmindedness or paranoia. Constantius Augustus, in fact, was the target of a number of insurrections and seditious attempts as even Ammianus Marcellinus is forced to confess at 21.16.10: ille enim perduellionum crebris verisque appetitus insidiis, Aureoli et Postumi et Ingenui et Valentis cognomento Thessalonici aliorumque plurium mortem factura crimina aliquotiens lenius vindicabat (Seyfarth, 1). To this litany of lesser known usurpers must be appended Magnentius, Nepotianus, Silvanus, and in 361 the emperor's cousin Julian, so that it is easy to see how Constantius might have come to view his younger kinsman Gallus as simply one more unwelcome aspirant to the throne.[77]

The safest and most accurate path between the two extreme views of Gallus represented by Julian, Libanius, Philostorgius, and Zosimus, on the one hand, and the Epitome, Ammianus Marcellinus, and the orthodox Christian writers on the other, is the middle ground where the sources assign the responsibility for Gallus Caesar's destruction in some measure to his

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Thompson, Historical Work, pp. 24, 43-44, 54, and 70; Alföldi, pp. 31-32; Édouard Galletier, ed., Panégyriques Latins, vol. 3, Collection Budé (Paris: Société d'Édition "Les Belles Lettres," 1955), n. 1, p. 33; Stein-Palanque, p. 133; Di Spigno, "libro XIV," pp. 142-43, 145-46, and 150-51; Di Spigno, "Il regno di Costanzo," p. 447; A.A. Barb, "The Survival of Magic Arts," in The Conflict Between Paganism and Christianity, ed. by Momigliano, p. 103; LRE, 1, p. 570; Tassi, pp. 157-63, 169, 172-73, and 175. See also Piganiol, pp. 101-2 and 120; Nutt, pp. 84 and 86; Blockley, Ammianus Marcellinus, pp. 38-41, 49ff., and 99; Bowder, pp. 48 and 84; Bowersock, pp. 66-69; and Geffcken, p. 141. The preceding represents an extensive although by no means exhaustive list of authorities.

[77]See Blockley, "Gallus and Julian," pp. 466-67. See also Julian, Or. 1.44d-45a. Especially see appendix C beginning on p. 153 below.

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enemies at court rather than exclusively to his own alleged habitual cruelty or to Constantius' deliberate murderous initiative: "suspected, spied upon and obstructed, he [i.e., Gallus] wandered unwittingly into actions which seemed treasonable to the emperor."[78] Physical proximity to the Augustus appears to have carried immense weight under Constantius,[79] and as a result this emperor's chief household advisors and imperial agents doubtlessly fueled, and perhaps even masterminded (as in the Silvanus episode of 355) at least one conspiracy at Antioch to ruin Gallus. The scheme involved the praetorian prefect Domitianus and the Apollinares, and, when all is said and done, Ammianus carefully sidestepped the incident when "he should have given a coherent and explicit account of it."[80] Such an interpretation neither exonerates Gallus Caesar nor absolves Constantius entirely from guilt in Gallus' regard. Philostorgius' version, by contrast, whose purpose was to excuse Constantius by blaming the eunuch Eusebius for intercepting Gallus' last-minute reprieve, founders in that clearly the head chamberlain and other palatini never were disciplined by the emperor for their unilateral decision to withhold information which resulted in the death of his cousin and imperial colleague.

In summation, one ought to bear in mind the following considerations when assessing the ancient accounts of Gallus Caesar's rule and Constantius' role in his demise: first, the primary sources in general offer a lopsided perspective on Gallus' career as Caesar simply by virtue of their

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[78] Blockley, "Gallus and Julian," p. 467. Amm. 14.11.22-23 is as true an indicator as any of Gallus' political naiveté, lack of diplomacy, and common sense.

[79] See LRE, 1, p. 390; Hopkins, p. 66; and Browning, p. 125.

[80] Thompson, Historical Work, p. 71.

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concentration solely on his final year (353/54) at Antioch to the exclusion of his other accomplishments. Secondly, Constantius fares even worse than Gallus, perhaps owing to the extent and grim efficiency with which the machinery of the imperial bureaucracy bequeathed to him by his father made espionage and torture possible on such a grandiose scale and with such terrifying consequences. Thirdly, shifting the responsibility for Gallus' downfall to Constantius' advisors serves a multitude of purposes, e.g., distracting the reader's attention from the misdeeds of Ursicinus (Ammianus), from those of Gallus himself (Julian and Philostorgius), and even from those of the emperor (Philostorgius),[81] or else denigrating Constantius for playing into the hands of the members of his consistorium (Julian, Libanius, Zosimus, and Ammianus Marcellinus). Still, unless one believes with Zosimus that the Augustus intended from the outset to dispose of his cousin once the Caesar outwitted the Persians and in so doing "outlived" his usefulness as it were, the fact remains that we have evidence in Ammianus' treatment of both Gallus Caesar and the general Silvanus which indicates that the emperor's courtiers and imperial appointees repeatedly tampered with official information (see, for example, 14.1.10, 7.10, 11.24, and 15.5.4-5) and even acted independently of Constantius' directives on three separate occasions (see 14.7.9-10, 5.6, and 15.5.8). Fourthly and lastly, if Gallus (or Constantius for that matter) was as depraved an individual as his harshest critics would have us believe, how is it that he escaped the stigma of damnatio memoriae after his decease?[82]

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[81] See Hopkins, pp. 64, 68-69, and 73-76.

[82] See Thompson, Historical Work, pp. 67-68.

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CHAPTER III

JULIAN THE USURPER

Any attempt to discuss the relationship of Constantius and his cousin Julian[1] during the years 355 to 361 is complicated by the existence of an overwhelming preponderance of pro-Julianic propaganda (by this I mean especially the writings of Claudius Mamertinus, Libanius, Ammianus Marcellinus, Eunapius, Zosimus, and, of course, Julian himself) which is unanimous in its condemnation of the older Augustus. What I propose to do, therefore, is re-examine within the context of this tradition some controversial claims made by Julian in his Epistle to the Athenians, written toward mid- or late 361 at Naissus, which may in turn affect the accepted view of Constantius.[2] For the sake of convenience, Constantius' dealings with Julian can be divided into two blocks of time, the first encompassing the developments from Julian's elevation to the rank of Caesar at Milan on 6 November 355 until his usurpation in early February of 360, while

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[1] See PLRE, 1, pp. 477-78.

[2] Anti-Constantian bias: see Bidez, p. 198; Browning, p. 118; and Joachim Szidat, Historischer Kommentar zu Ammianus Marcellinus Buch XX-XXI, Teil I: Die Erhebung Julians, Historia, no. 31 (Wiesbaden: Franz Steiner Verlag, 1977), p. 10. For the date of the Ep. ad Ath., see ibid., p. 94 as well as Bidez, l.l, p. 210. Naissus (Nish): the leading city of the province of Dacia Mediterranea in the prefecture of Illyricum, the seizure of Naissus by Julian was a psychological coup because of the city's close association with Constantius as the birthplace of his father Constantine (also Julian's uncle) and the site of the usurper Vetranio's peaceful abdication in 350. From the middle of October until late November of 361, Naissus was the temporary seat of Julian's fledgling rebel government. See Walter Emil Kaegi, Jr., "The Emperor Julian at Naissus," AC 44(1975), 161-71. Zos. 3.10.4 and 11.1 confuses Naissus with Sirmium.

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the second involves the time period from Julian's acclamation by his insurgent troops at Lutetia (Paris) to Constantius' sudden death in Cilicia at Mopsucrene on 3 November 361.

Julian's own explanation of the circumstances which resulted in his being proclaimed Augustus can be found at Ep. ad Ath. 282b-285d (Bidez, l.l), from which all the components for the subsequent official version of Libanius (i.e., Orations 13 and 12, and, to a lesser extent, 18) as well as other partisan accounts derive.[3] These ingredients include: the envy of the emperor (Ep. ad Ath. 282c-d, and see also 274d); clashes between Julian and the members of his staff (e.g., Marcellus, Barbatio, Pentadius, Florentius, Lupicinus, and Decentius [Ep. ad Ath. passim]); popular unrest and resentment among the Gauls unexpectedly summoned to serve under Constantius in the East (Ep. ad Ath. 283b); the spontaneity of the mutiny at Paris and the Caesar's avowed non-complicity (Ep. ad Ath. 284a-b); and, finally, the irresistible will of the gods (Ep. ad Ath. 284c-d).[4] Comparison of Julian's account with those of his sympathizers, on the other hand, reveals certain additions or embellishments and sometimes even startling discrepancies. For instance, for the first period (i.e., the years between Julian's appointment as Caesar and his usurpation), the Epitome and Jerome simply record without additional commentary the most basic factual information about Julian's elevation by Constantius on 6 November 355,[5] while

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[3]For the so-called "doctrine officielle," see Paul Petit, "Recherches sur la publication et la diffusion des discours de Libanius," Historia 5 (1956), 479-509 and especially pp. 480-81.

[4]The five components listed here were suggested to me by my reading in Szidat, pp. 84 and 130-31, and Bowersock, p. 48.

[5]See Epit. Caes. 42.12: Constantius Claudium Iulianum, fratrem Galli, honore Caesaris assumit annos natum fere tres atque viginti (Pichlmayr). See also Jerome's Chron. (p. 240 [Helm]): Iulianus frater Galli Mediolanii Caesar appellatur. See also Orosius 7.29.15 and Theod. HE 2.28.

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other writers attempt to explain Constantius' reasons for doing so, e.g., the realization on his part that the recent troubles in Gaul in the wake of Silvanus' downfall required his own presence or that of an imperial representative (preferably a kinsman), who would shore up the sagging military and economic situation there.[6] Julian himself alludes to as much at Ep. ad Ath. 277d-278a:

> Τριακοσίους ἐξήμοντά μοι δοὺς στρατιώτας εἰς τὸ τῶν Κελτῶν ἔθνος ἀνατετραμμένον ἔστειλε, μεσοῦντος ἤδη τοῦ χειμῶνος, . . . περὶ τὰς τροπὰς τὰς θερινὰς ἐπιτρέπει μοι βαδίζειν εἰς τὰ στρατόπεδα τὸ σχῆμα καὶ τὴν εἰκόνα περιοίσοντι τὴν ἑαυτοῦ· καὶ γάρ τοι καὶ τοῦτο εἴρητο καὶ ἐγέγραπτο, ὅτι τοῖς Γάλλοις οὐ βασιλέα δίδωσιν, ἀλλὰ τὸν τὴν ἑαυτοῦ πρὸς ἐκείνους εἰκόνα κομιοῦντα. (Bidez, l.1)[7]

Libanius, Eunapius, and Zosimus go a step further than Julian, however, for not only do they reiterate the Caesar's original charge that Constantius envied him his Gallic accomplishments[8] and so eventually recalled his veteran troops (Ep. ad Ath. 282c-d), but they also insist that the older man consigned his reluctant cousin to Gaul in hopes that he would

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[6]See Aur. Victor Caes. 42.17, Eutrop. 10.14.1, Amm. 15.8.1-8, Soc. 2.34 and 38, and Philostorgius 4.2. See also PW 10.1(1918), 33; Bidez, pp. 137-38; Moreau, p. 166; Stein-Palanque, p. 143; LRE, 1, p. 117; Piganiol, p. 128; Szidat, p. 75; and Bowersock, pp. 33-34.

[7]For a modern interpretation of the phrase . . . ἐπιτρέπει μοι βαδίζειν εἰς τὰ στρατόπεδα τὸ σχῆμα καὶ τὴν εἰκόνα περιοίσοντι τὴν ἑαυτοῦ·, see André Piganiol, "La couronne de Julien César," Byzantion 13(1938), 243-48 and especially pp. 246-48. According to Piganiol, Julian wore in place of the imperial diadem the crown of an agonothete such as he had worn at Athens while presiding over the Panhellenic Games of 355 just prior to his elevation and dispatch to Gaul. In Gaul this crown probably bore the image of Constantius, and instead of the imperial mantle Julian probably wore a diminutive substitute version, the χλανίδιον. Both were tokens of his inferior status in relation to his cousin the emperor.

[8]On Constantius' alleged jealousy of Julian, see XI Mamertini gratiarum actio Iuliano (hereafter referred to as Pan. Lat. 11 [Galletier, 3]) 3.1, 3.3, 4.5, and 5.2. For the speech in general, see R.C. Blockley, "The Panegyric of Claudius Mamertinus on the Emperor Julian," AJPh 93(1972), 437-50. See also Lib. Or. 12.57, Or. 18.49-50 and 90; Amm. 16.12.67, 17.11-1-2, 20.4.1 and 4.3; Eunap. FHG 4.15.7a and 4.19.14-20.14 (Müller); Soz. 5.2; and Zos. 3.5.3.

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perish there:

(1) ὁ μὲν οὖν ἐκπέμπων ἐπὶ πολεμίους εὖ πράττοντας οὐ νίκην αἰτῶν οὐδὲ κράτος οὐδὲ ἀριστεύειν ἐξέπεμπεν. εὐθὺς γὰρ αὐτῷ μετάμελος εἰσήει λογισμὸν οὐκ ἔχων, . . . μᾶλλον δὲ ἐφοβεῖτο τὴν τοῦ συνάρχοντος εὐκλειαν ἢ τὴν τῶν ἐναντίων ὕβριν, καὶ τὸ μὴ τοῦτον ἐπαινεθῆναι τοῦ πληγῆναι τοὺς πολεμίους ἥδιον ἦν. ἀλλ' ἐκείνου κατηγορεῖν ἐμοὶ μὲν οὐκ ἠδύ, τῷ λόγῳ δὲ ἀνάγκη. διαστῆσαι γὰρ τὴν εὐφημίαν ἀπὸ τῶν μέμψεων οὐκ ἔστιν. (Lib. Or. 12.42-44 [Foerster, 2])[9]

(2) . . . πεμφθεὶς δὲ Καῖσαρ ἐπὶ Γαλατίας οὐχ ἵνα βασιλεύῃ τῶν ἐκείνῃ μόνον, ἀλλ' ἵνα ἐν τῇ βασιλείᾳ διαφθαρῇ, . . . (Eunap. V. Soph. 7.3.7 [Giangrande])

(3) ἐπεὶ δὲ ἤδει τὸν βασιλέα Κωνστάντιον ἡ Εὐσεβία πρὸς πᾶν ὑπόπτως τὸ συγγενὲς διακειμένον, τρόπῳ τοιῷδε τὸν ἄνδρα παρήγαγε. 'Νέος ἐστὶ' φησί 'καὶ τὸ ἦθος ἁπλοῦς καὶ λόγων ἀσκήσει τὸν ἅπαντα βίον ἐσχολακὼς καὶ πραγμάτων παντάπασιν ἄπειρος, ἀμείνων τε ἔσται παντὸς ἑτέρου περὶ ἡμᾶς· ἡ γὰρ τύχη δεξιᾷ περὶ τὰ πράγματα χρώμενος ἐπιγράψεσθαι τὸν βασιλέα ποιήσει τὰ αἰσίως ἐκβάντα, ἢ κατά τι πταίσας τεθνήξεται, καὶ οὐδένα ἕξει τοῦ λοιποῦ Κωνστάντιος ὡς ἐκ γένους βασιλείου πρὸς τὴν τῶν ὅλων ἀρχὴν ἀληθησόμενον.' (Zos. 3.1.2-3 [Paschoud, 2.11])[10]

Viewed in this light, the case brought against Constantius by his opponents after his death is uniformly quite damaging; yet the evil motives attributed to the Augustus in his dealings with Julian cannot be proved by Julian's contemporary or later supporters and admirers inasmuch as they have incorporated into the tradition about the two cousins exaggerated allegations (e.g., the relegation of the junior colleague to Gaul in order that he be eliminated by the barbarians), which clearly even Julian himself in 361 did not make and was unable to substantiate.

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[9] Cf. also Lib. Or. 18.36-37.

[10] Amm. 16.11.13 reports as rumor that which Eunapius and Zosimus present as being factual: illud tamen rumore tenus ubique iactabatur, quod Iulianus non levaturus incommoda Galliarum electus est, sed ut possit per bella deleri saevissima, . . . (Seyfarth, 1).

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Caesar Julian and the sources partial to him appeal to the theme of Constantian malice elsewhere in connection with a second Julianic complaint (see especially Ep. ad Ath. 282b-c), namely the tension he experienced throughout his Gallic tenure in his dealings with assorted members of the civil and military hierarchy, be they aides or superiors, assigned to him by the emperor Constantius.[11] Nonetheless, in spite of Julian's contention at Ep. ad Ath. 278b-c that Constantius slighted him by exchanging the supreme commander Marcellus for one Severus instead of Julian himself, in fact Julian, who was the emperor's personal representative to Gaul, Spain, and Britain, got his chance for independent action afterall in the autumn of 356 (see, for example, Lib. Or. 18.46), as he himself admits at Ep. ad Ath. 278d.[12] For example, in 361 Julian would have his readers believe that the Rhine city of Colonia (Cologne), which had fallen to the Franks in November of 355 (see Amm. 15.8.19), was recovered by his forces in the early spring of 357 (Ep. ad Ath. 279b), that

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[11]For example, Pentadius (Ep. ad Ath. 283c); Flavius Florentius (Ep. ad Ath. 280a-b, Julian Ep. 14.385b-c, Lib. Or. 18.84-86, Amm. 16.5.14, 17.3.1-6, 18.1.1, 2.7, 20.4.2, and 8.20-21); Marcellus (Amm. 16.2.8, 4.3, 7.1-3, 18.1, and 10.21, and Eunap. FHG 4.21.17 [Müller]); Barbatio (Lib. Or. 18.49-50 and Amm. 16.11.2-15 and 18.3.6); Guomarius or Gomoarius (Amm. 21.13.16); Ursulus (Amm. 22.3.7). See also Lib. Or. 12.44. This list is by no means an exhaustive one, and references to Paulus and Gaudentius can be found in appendix C, passim. An exception to this pattern was Saturninius Salutius Secundus (see Julian Or. 8.243b and 242a; Lib. Ep. 35 [to Julian]; Lib. Or. 18.84-86; and Zos. 3.5.3). See also PW 10.1(1918), 33-35, 38, and 45-46; Bidez, pp. 133-50 and 169-70; Blockley, "Gallus and Julian," pp. 447-49; Piganiol, pp. 133-34 and 137; Szidat, pp. 100 and 136-37; and Bowersock, pp. 34 and 42-43. See also PLRE, 1, pp. 365, 520-21, and 550-51 on Florentius, Lupicinus, and Marcellus respectively. References to Barbatio, Pentadius, and Decentius can be found in appendix C, passim below.

[12]Cf. Amm. 16.10.21-11.1. See also PW 10.1(1918), 35; Bidez, p. 133; Ilse Müller-Seidel, "Die Usurpation Julians des Abtrünnigen im Lichte seiner Germanenpolitik," HZ 180(1955), p. 228; Blockley, "Gallus and Julian," p. 447; Browning, pp. 84-85; Szidat, pp. 79-80; and Bowersock, p. 40.

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is, subsequent to Marcellus' dismissal and replacement by the emperor. Instead, the Roman success at Cologne probably occurred no later than September of 356 (see Amm. 16.3.1-3) so that the Caesar "inadvertently let the truth slip out when he observed [at 279b] that the barbarians had captured the colony ten months before he took it back."[13] This apparent inconsistency between the Julianic and Ammianan accounts means that if Ammianus Marcellinus dated and described Julian's part in the encounter at Cologne accurately, then Julian's first solo victory, reported after a lesser win at Autun on 24 June 356 (see Amm. 16.2.) en route to Reims where his small task force rendezvoused in September with the main body of the Gallic army under Marcellus' command, took place prior to Constantius' transferral of the supreme military authority from Marcellus to the Caesar himself; in other words, it seems the twenty-four year old Julian, in spite of his lack of previous experience in warfare (see Soc. 3.1.169-70 and Soz. 5.5.22), was accorded a considerable measure of autonomy and responsibility by the Augustus soon after his arrival in Gaul and, at any rate, certainly sooner than Julian contended in his Epistle to the Athenians.[14]

Another indication that Julian's success in the early years was more than envied or merely tolerated by the emperor, and that Constantius' "faith in his Caesar appears to have continued unabated,"[15] would have to

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[13] Bowersock, p. 36.

[14] Autonomy in warfare in 356/57: see PW 10.1(1918), 34 and 37; Müller-Seidel, pp. 225-44 and especially p. 228; and Bowersock, pp. 37 and 39. Browning (p. 82) disagrees with this interpretation. Cologne: for the correct date of 356, see PW 10.1(1918), 34 and Bidez, p. 142.

[15] Bowersock, p. 39.

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be the rapidity with which the Augustus disciplined the same Marcellus for his abysmal failure to support Julian when the younger man was bottled up at Sens for one month during the winter of 356/57 (see Amm. 16.4.1-3). Furthermore, when the former commanding officer fabricated lies in order to discredit Julian before the emperor at Milan, Constantius was not convinced (so Amm. 16.7.1-3 and 8.1). Similarly, Marcellus' successor Severus (see Lib. Or. 18.48 and Amm. 16.10.21), who had proved ineffective in the course of Julian's campaign against two Alamannic kings in the summer of 358 (Amm. 17.10.1-2), was cashiered by Constantius the following season (i.e., 359) for Lupicinus (see Amm. 18.2.7).[16] Modern scholars, therefore, have detected factors which, having been distorted, omitted, or cited hastily and in isolation in the pro-Julianic literature, suggest that the emperor encouraged rather than impeded his younger cousin's progress from 355 until 358.

Finally, although not even Julian's opponents (e.g., Gregory Nazianzen) deny his competence in the military sphere, there is a curious observation in Aurelius Victor's epitome which warrants closer consideration: . . . isque [sc. Iulianus] nationes feras brevi subegit captis famosis regibus. Quae quamquam vi eius, fortuna principis tamen et consilio accidere (42.17-18 [Pichlmayr]). Does a factual basis exist for the second part of this statement? Perhaps the author intended to imply that Julian owed his military achievements to the generalship of the men given to him by Constantius (e.g., Severus, who on 25 August 357 commanded the left flank of Julian's victorious army [Amm. 16.12.27] at the battle of

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[16] Failure of Marcellus: see PW 10.1(1918), 34-35 and Bidez, pp. 144-45 and 148. Failure of Severus: see PW 10.1(1918), 38 and Bidez, p. 159.

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Argentoratum [Strasbourg]) rather than to the Caesar's own initiative.[17] A more literal understanding of the text, however, which I prefer, is possible, and two brief allusions to the emperor Constantius himself (i.e., imperatore) at Amm. 16.12.15-16 may lend support to my interpretation:

> . . . sed concaede arborum densa undique semitis clausis
> sidere urente brumali aegre vixere barbari longius amendati,
> quodque imperatore terras eorum ingresso nec resistere ausi
> ne apparere pacem impetraverunt suppliciter obsecrantes.
> sed nullus mutatam ratione temporis advertebat, quod tunc
> tripertito exitio premebantur imperatore urgente per Raetias, Caesare proximo nusquam elabi permittente, finitimis,
> . . . (Seyfarth, 1)

Since we now have proof from Ammianus' text (and see also Lib. Or. 18.54-55) that Constantius (i.e., imperatore . . . ingresso and imperatore urgente per Raetias) actively participated in the Gallic campaign of 356 to subdue the Alamanni, and because we know also that the spring of 356 marked the commencement of Julian's first full year in the field (he arrived in Gaul in December of 355 where he wintered at Vienne [Amm. 15.8.18 and 8.21]), Aur. Victor Caes. 42.18 may have had in mind the so-called "pincer strategy" or "pincer movement"[18] successfully employed by the Augustus in 356, whereby the emperor personally led his troops northward through Raetia into the Black Forest region while the units of Marcellus and Ursicinus (which Julian was ordered to join at Reims) simultaneously advanced from

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[17] So PW 10.1(1918), 45: "Im ganzen hat er sich jedenfalls in diesen Jahren als ein tüchtiger Regent bewährt, der seine guten Absichten mit Energie, ja manchmal mit Eigenwilligkeit in die Wirklichkeit zu übersetzen wusste. Seine ersten militärischen Erfolge verdankte er wohl mehr den tüchtigen ihm beigegebenen Generalen; insbesondere der Sieg bei Brumat war kaum sein eigenstes Verdienst." Battle of Strasbourg: see Bidez, pp. 149-53; Stein-Palanque, p. 144; and Piganiol, p. 135. See also Lib. Or. 18.53; Pan. Lat. 11.4.3; Eutrop. 10.14.1; and Jerome Chron. (p.240 [Helm]): Magnae Alamannorum copiae apud Argentoratum oppidum Galliarum a Caesare Iuliano oppressae. See also Zos. 3.3.3.

[18] Bidez, p. 142; Szidat, p. 68; and Bowersock, p. 38.

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Gaul toward the Rhine. In other words, the year's work (i.e., 357/58) entailed a co-operative and concerted effort on the part of several skilled commanders, including Constantius.[19] The sources favorable to Caesar Julian, it seems, almost succeeded in suppressing completely the truth about Constantius' presence in the field during this early period of Julian's military career, preferring to focus instead on the alleged myriad intrigues at court in Milan such as those described in the preceding chapter on Gallus.[20]

We have already alluded to Julian's dissatisfaction with Florentius and the management of Gaul's civil affairs (see Ep. ad Ath. 282c and p. 98 above), but once again it is only fair to point out in the emperor's favor that when Julian in 357 vociferously opposed his praetorian prefect in the matter of supplementary taxation which he deemed excessive (see Amm.

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[19]Among modern historians, Constantius' presence in the field is remarked upon only by Stein-Palanque, p. 143; Browning, p. 80; and Bowersock, p. 39. But see Lib. Or. 18.49-50. Constantius is criticized severely at Amm. 16.10.2 for his alleged failure ever to lead his troops or campaigns in person, although this charge does not square with Ammianus' narrative at 17.12-13 or, for that matter, 20.11.12. Julian, on the other hand, while present and personally active in the field, was overly sensitive about details such as his failure to receive recognition from the emperor for his victory at Strasbourg, in the course of which he captured King Chnodomarius. See Ep. ad Ath. 279c-d; Lib. Or. 18.66-67; and Amm. 16.12.70. See especially Julian Or. 2.49c-f (dated summer 358) where the allusion to the quarrel of Achilles and Agamemnon may be an oblique reference to Julian's annoyance at having had to surrender Chnodomarius to Constantius. It was customary, however, for the reigning Augustus to take credit for a victory won in his name, and according to Bowersock (p. 42) "Constantius did nothing sinister in following this custom." See also Blockley, "Gallus and Julian," p. 452; Adelina Arnaldi, "I Cognomina Devictarum Gentium dei Successori di Costantino il Grande," Epigraphica 39(1977), pp. 91-102; and Szidat, p. 80.

[20]Milan: Constantius resided here continuously with the exception of a visit to Rome between 28 May and 9 June 357 until late 357. At that juncture he shifted his base of operations to Sirmium in order to fight the Suevi, Sarmatians, Quadi, and Limigantes on the middle Danube (see Amm. 17.12-13) until late in 359. See Moreau, p. 166; Stein-Palanque, pp. 144-45; LRE, 1, p. 117; and Browning, p. 99.

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17.3.1-4), Constantius supported him (or else backed down?) despite Florentius' protests about the Caesar's interference, and Julian personally received permission from the emperor to manage financial affairs in the particularly hard-hit province of secunda Belgica for the years 357/58 (see Amm. 17.3.5-6).[21]

Up to now I have attempted to demonstrate that in 361 Julian, and in time the sources sympathetic to him, not only misrepresented some aspects of his relationship with Constantius, but that the anti-Constantian bias breaks down owing to the presence of conflicting data within the pro-Julianic literary tradition. Julian's propaganda regarding Constantius' alleged envy and mistreatment of him appears to have enjoyed widespread circulation in antiquity, and in particular in the eastern half of the empire; nevertheless, the ecclesiastical historians Socrates and Sozomen, neither of whom can be said to have been especially well-disposed toward the Arian emperor or his renegade cousin, express puzzlement and skepticism as to the validity of the pro-Julianic claims:

> . . . λέγεται δὲ Κωνστάντιον ἐπιβουλεύοντα αὐτῷ τοῦτον ἐπιτρέψαι τὸν πόλεμον. ἐμοὶ δὲ οὐ πιθανὸν τοῦτο εἶναι δοκεῖ. ᾧ γὰρ ἐξῆν μηδὲ Καίσαρα τὴν ἀρχὴν ποιεῖν αὐτόν, τί καὶ ἐποίει καὶ τὴν ἀδελφὴν ἐδίδου γαμετήν, καὶ μεμφομένῳ περὶ τῶν ραδύμων στρατηγῶν ὑπήκουε καὶ σπουδαῖον ἀντὶ τούτων ἐξαπέστειλεν, ὅπως κατορθάσῃ τὸν πόλεμον, εἰ μὴ φίλος ἐτύγχανεν; (Soz. 5.2.22-23 [Bidez and Hansen])[22]

Of course, it is difficult to say whether Sozomen's rather positive interpretation of Constantius' attitude toward Julian resulted from his dislike for the Apostate, or whether his defense of the Augustus was sincere, but

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[21] See LRE, 1, p. 119; Blockley, "Gallus and Julian," pp. 448-49; and Szidat, p. 78.

[22] The parallel passage in Socrates can be found at 3.1.170: . . . Ἰουλιανοῦ δὲ μεμψαμένου παρὰ βασιλεῖ τὴν ῥαθυμίαν τῶν στρατηγούντων, ἕτερος ἐπέμφθη στρατηγὸς ἠρμοσμένος τῇ προθυμίᾳ Ἰουλιανοῦ· . . . (Hussey, 1). See also Soz. 5.2.21.

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Sozomen's comments show that the Julianic viewpoint was being subjected to scrutiny even in antiquity.

Julian's version of what came to pass in February of 360 at Paris, and why, can be found at Ep. ad Ath. 282d-285c (and see also p. 94 above). The usurper's stance is the one adopted by Libanius, Ammianus Marcellinus, and Zosimus. In 361 Julian was determined to preserve the appearance of having been acclaimed Augustus by his troops unexpectedly and under duress. His insistence upon his innocence as well as the legitimacy of his position and reaction to the crisis at Paris hinges largely on three arguments: the alleged specious and excessive requisitions by Constantius of his crack Gallic troops in 359, followed by divine necessity and human, i.e., external, compulsion.[23]

Subsequent to the recall of Julian's quaestor and trusted confidant Salutius in 358/59[24] came Constantius' curt summons for Julian's veteran troops (Ep. ad Ath. 282c, and see also Zos. 3.5.3). The impression is gained from reading Julian's account of the usurpation that the bulk of his elite troops would be withdrawn (τὸ στρατιωτικὸν ἅπαν ἀδιακρίτως τὸ

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[23]For the pro-Julianic view of the legitimate "usurpation," see Lib. Ors. 13.33-34, 12.59-61, and 18.94-103; Amm. 20.4.1-22; and Zos. 3.8.3-9.2. Unlike the first group, the following authors supply none of the details, but the acclamation at Paris clearly is seen as having been illegal: Orosius 7.29.16; Greg. Naz. Or. 4.46; Soz. 5.2; Theod. HE 2.28; and Philostorgius 6.5: Ταῦτα δὲ Κωνσταντίῳ διανοουμένῳ, ἡ τοῦ Ἰουλιανοῦ ἐπανάστασις ταῖς φήμαις αὐτῷ διακομίζεται (Bidez). A third group of writers mentions the military's role in Julian's acclamation without pronouncing judgment on the legitimacy or illegality of the act: Eutrop. 10.5 (consensu militum [Santini]); Epit. Caes. 42.15-16 (Hic a militibus Gallicanis Augustus pronuntiatur [Pichlmayr]); Soc. 2.47 and 3.1; and Soz. 5.1. Finally, Aurelius Victor and Jerome pass over the events at Paris altogether.

[24]Salutius' position with respect to Julian was comparable to that of Montius and Gallus Caesar. See Bidez, pp. 139-40 and in ch. 2 above pp. 59-60 and 63. Regarding the consequences for Julian of Salutius' recall by Constantius, see Szidat, pp. 82-83. For the name "Salutius," see Bowersock, p. 125.

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μαχιμώτατον, 282d [Bidez, 1.1]--such an appropriation, Julian implies, was unprecedented--the task having been entrusted to two men named Lupicinus and Gintonius (282d, but see Amm. 20.4.3 where Sintula replaces Gintonius). The mutiny was triggered "about sunset" (ὀψίας δὲ ἤδη, 284b [Bidez, 1.1]) by the circulation of an "anonymous letter" ἀνώνυμον γραμματεῖον, 283b [Bidez, 1.1]). The soldiery surrounded the palace and offered Julian a makeshift crown (actually a collar [μανιάφην]) which he donned, although initially he had refused the diadem along with the title of Augustus (τὴν πρόσρησιν . . . τὸν στέφανον, 284d [Bidez, 1.1]). Later, the army carried him on its shoulders following an alleged rumored assassination attempt by Constantius' agents (285a-c).

Upon checking Julian's story against the versions of his sympathizers, however, all sorts of variations come to light: according to Lib. Or. 13.33, for example, the troops crowned Julian, δεινὸν νομίζοντες τὸ μὴ συμβαίνειν τοὔνομα τοῖς ἔργοις μηδὲ συνᾴδειν τὴν τιμὴν ταῖς νίκαις (Foerster, 2, and see also Amm. 20.8.7); then they raised him on a shield (ὦ μακαρίας ἀσπίδος, 13.34 [Foerster, 2]). At Or. 12.58, one learns how Constantius supposedly stripped Julian of a large part of his forces to weaken him, and thereupon called for his whole force (i.e., πάντες), putting forth as a pretext (προϊστάμενος) the necessity for operations against Persia. But the army, prompted by a god (θεοῦ δὲ τοῦτο [Foerster, 2]), awarded Julian a jewel-studded diadem adorned with pearls (12.59). Libanius in Or. 18.91, written after Julian's death, elaborates on his earlier material as follows:

> . . . πρόφασις δὲ ὁ Περσικὸς πόλεμος καὶ τὸ μὴ δεῖσθαι τὴν Γαλατῶν εἰρήνην στρατιωτῶν, . . . ἀλλ', οἶμαι, στρατιᾶς μὲν μείζονος τῆς αὐτῷ παρούσης ἐπὶ τοὺς Πέρσας οὐκ ἐδεῖτο. μέρος τε γὰρ ἐκείνης ἐξήρκει καὶ πολλάκις τὴν αὐτὴν ἀγείρας οὔποτ' ἂν ἦλθε διὰ μάχης ἐγνωκὼς ἀεὶ μέλλειν. (Foerster, 2)

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Naturally, when the civilian population implored the army to stay (18.96) Julian discouraged the troops from doing so by means of a harangue delivered outside the city, but "during the evening, or rather, about midnight" (καὶ προσειπόντες οὐδὲν ἐσπέρας ἤδη, μᾶλλον δὲ περὶ μέσας νύκτας [Foerster, 2]), the soldiers surrounded Julian's headquarters and proclaimed him Augustus (18.97). The following dawn, the same troops "broke in the doors, and displaying their swords, dragged him to the same [speaker's] platform" (18.98). When Julian refused the diadem (τὴν ταινίαν τὴν χρυσῆν [Foerster, 2]) an unnamed individual crowned him with a torque (18.99). Apparently, Julian refrained from granting the donative (18.100), and reference is made to a conspiracy to eliminate the new Augustus through the agency of τῶν εὐνούχων τὸν μάλιστα περὶ τὴν εὐνὴν (18.102 [Foerster, 2]).

The critical passages in Ammianus' History are contained in book 20.4-5. Ammianus is the only source to mention anything of Julian's balking at compliance with Constantius' demands for the withdrawal of his veteran auxilia together with three hundred hand-picked men from each of his remaining units (see 20.4.2) owing to a promise, i.e., sub hoc venerant pacto, ne ducerentur ad partes umquam transalpinas, (20.4.4, and see also 20.8.8 [Seyfarth, 1]). Following a delay and the secret publication of a grievance-letter which originated in the camp of the Petulantes, Julian guaranteed the families of the chosen units courier-service for the trek eastward (20.4.10-11) and invited their officers to a banquet, allegedly "to treat with greater honor those who were going away" i.e., utque honoratius procul abituros tractaret, ad convivium proceribus corrogatis petere iure, si quid in promptu esset, edixit (20.4.13 [Seyfarth, 1]). Later that night the officers revolted and proclaimed Julian emperor, although he would not show himself outside the palace until daybreak (20.4.14).

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At 20.4.16 Julian's speech to the assembled multitude concludes with the guarantee: redite iam nunc ad sedes nihil visuri, quia displicet, transalpinum. hocque apud Augustum capacem rationis et prudentissimum ego competenti satisfactione purgabo (Seyfarth, 1). In the end, however, Julian was compelled to accede to the crowd's salutations (Caesar assentire coactus est, 20.4.17 [Seyfarth, 1]), and "perceiving that he could not avoid imminent danger if he persisted in his resistance" (i.e., qui trusus ad necessitatem extremam iamque periculum praesens vitare non posse advertens, si reniti perseverasset [Seyfarth, 1]),[25] he duly promised each man a pound of silver (20.4.18). It seems Julian then retired from public view for the night (20.4.20) and this time only re-appeared in the consistory (fulgentem . . . augusto habitu, 20.4.22 [Seyfarth, 1]) before the agitated, and still armed soldiery (see 20.4.21 and 20.4.14) in order to dispel the rumored news of his murder (20.4.20). Ammianus' account draws to a close with Julian Augustus' address to his assembled troops on the following day (see 20.5.1 and 5.3-9) and with the contents of Julian's prophetic dream on the night prior to his acclamation (20.5.10).[26]

In Zosimus' version of the mutiny (3.8-3.9.2 [Paschoud, 2.1]) Constantius demanded, first, two divisions of soldiers which Julian supplied (τάγματα δύο τῶν . . . στρατιωτῶν, 3.8.3 [Paschoud, 2.1]), then additional military units which the Caesar also dispatched (ἕτερα τάγματα στρατιωτικά,

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[25] See also 20.8.10: . . . victus denique mecumque ipse contemplans, quod alter confosso me forsitan libens declarabitur princeps, assensus sum vim lenire speratus armatam. (Seyfarth, 1)

[26] Apropos of 20.5.10, according to Amm. 16.12.64 Julian had refused the title of Augustus at least once previously: tunc Iulianus, ut erat fortuna sui spectatior meritisque magis quam imperio potens, Augustus acclamatione concordi totius exercitus appellatus ut agentes petulantius milites increpabat id se nec sperare nec adipisci velle iurando confirmans. (Seyfarth, 1)

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3.8.4 [Paschoud, 2.11), and finally four more squadrons, possibly of horse (τέσσαρας ἴλας, ibid.).[27] Late one night (νυκτὸς ἄχρι βαθείας, 3.9.1 [Paschoud, 2.11) anonymous handbills or documents (ἀνώνυμα γραμμάτια, ibid.) were distributed among the rank and file by some of the officers; the drunken troops (καὶ ἀναστάντες ἐκ τοῦ πότου σὺν θορύβῳ πολλῷ, τῶν κυλίκων ἐν ταῖς χερσὶν ἔτι κειμένων, 3.9.2 [Paschoud, 2.11) responded by bursting into Julian's headquarters nearby (3.9.1), lifting him onto a shield in public view, and proclaiming him Augustus, forcibly (i.e., σὺν βίᾳ) bestowing on him the diadem (see 3.9.2).

The purpose of juxtaposing the parallel accounts of Julian's usurpation is twofold: first, to alert the reader to irregularities in Libanius' official (i.e., contemporary) propaganda as well as in subsequent pro-Julianic pagan sources. For instance, did Julian and Libanius suppress the officers' dinner party which Ammianus Marcellinus alleges Julian hosted on the day of the usurpation, and if so, why? On how many occasions did Constantius issue Julian demands for troops? Julian and Libanius speak of two requests whereas Ammianus mentions only one, presumably the second of two which touched off the revolt. According to Zosimus, on the other hand, three successive demands were made. What about the reference to the

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[27]The term τὸ τάγμα, ατος is a misleading one since it can be translated by the Latin words cohors and legio as well as manipulus. Hence, it is impossible to determine from the context here precisely how many men were involved. The word ἡ ἴλη as a military term means a "troop of horse," usually sixty-four in number, but this figure varies. Translated by the Latin ala or turma on the one hand, ἡ ἴλη also indicates, generally, a "troop" or "company of soldiers." Once again, it is difficult to know how Zosimus intended to utilize the term in the present context. See LSJ and especially Hugh J. Mason, Greek Terms for Roman Institutions: A Lexicon and Analysis, American Studies in Papyrology, vol. 13 (Toronto: Hakkert, 1974), s.v.

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soldiers' revelry and drinking bouts in Zosimus' narrative? A minor detail perhaps, yet one that lends a somewhat sordid tone to the mutiny which is altogether lacking in the accounts of the other authors. At what hour was Julian proclaimed Augustus? "About sunset" (Ep. ad Ath.)? "About midnight" (Lib. Or. 18)? Or "perhaps Libanius was aware of discrepant stories, since his exact words are 'during the evening, or rather, about midnight.'"[28] How many "anonymous" letters were circulated among the troops prior to their uprising? One (Ep. ad Ath.)? Several (Zosimus)? None at all (Lib. Or. 18)? Was Julian crowned on the night of his acclamation as he and Zosimus seem to indicate, or on the following day (Lib. Or. 18)? Finally, neither Julian nor Zosimus mention a word about the morning after the usurpation when the soldiers allegedly burst into Julian's headquarters (Lib. Or. 18) and viewed him in the palace consistory (Ammianus)--as a matter of fact, in Ammianus' History the break-in occurs on the second morning after the original acclamation date.[29]

The second reason for reviewing the entire literary tradition is to demonstrate, by means of these same primary sources, the possibilities for challenging two of the three arguments with which Julian justified his usurpation (see p. 103 above). The first argument, one will recall, pertained to Constantius' demands for troops in mid-winter of 359: in Julian's eyes (Ep. ad Ath. 282c-d, and see also Amm. 20.15-16) the emperor's appropriations were excessive, hazardous to internal security, perhaps unprecedented, and surely sparked by his envious nature; moreover, Libanius

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[28] Bowersock, p. 49. See also p. 51.

[29] Discrepancies: for the dinner party and actual time of the acclamation, see ibid., p. 49; see Paschoud, 2.1, nn. 20 and 21, pp. 83-87 for the troop demands and anonymous libelli.

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(Ors. 12.58 and 18.91) and Ammianus (20.4.2) cite the anticipated spring campaign (360)[30] against the Persians as nothing but a pretext for recalling all, or very nearly all, of Julian's veteran forces. Yet judging from Ep. ad Ath. 279df., Lib. Or. 18.90, and Zos. 3.8.1 and 4, Julian had so consolidated affairs in Gaul and secured the Rhine frontier by 359 that the emperor's request for reinforcements in the East does not appear to have been as outrageous as Julian (see Ep. ad Ath. 282c-d) would have his audience believe.[31]

On the other hand, our sources do concur that Roman relations with Persia after a nearly ten-year lull were deteriorating steadily under Constantius between the years 356 and 358. With the assistance of Ammianus' History one can trace the steps in that decline and, conversely, in the escalation of Persian hostilities: in 358, the ongoing peace negotiations since 356 (see Amm. 16.9.1-4 and 10.21) between the praetorian prefect of the Orient Strategius Musonianus and Sapor finally collapsed owing to the unreasonable demands of the Persian king (17.5.1-15 and 14.1-3). Then, in the winter of 358/59 one Antoninus, a member of the guard attached to the household of the governor of Mesopotamia, deserted to the Persian court with his entire family (18.5.1f.), and on 6 October 359 Sapor's hordes poured into Roman Mesopotamia, capturing six Roman legions along

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[30] See Amm. 18.4.1: Dum apud Sirmium haec diligentia quaeruntur impensa, orientis fortuna periculorum terribiles tubas reflabat. rex enim Persidis ferarum gentium, quas placarat, adiumentis accinctus augendique regni cupiditate supra homines flagrans arma viresque parabat et commeatus consilia tartareis manibus miscens et superstitiones omnes consulens de futuris hisque satis collectis pervadere cuncta prima verni temperie cogitabat. (Seyfarth, 1). See also 18.5.8.

[31] Prosperity and security in Gaul: similar sentiments are expressed by Lib. Or. 18.80-82, 90, and Amm. 30.7.5. But see Lib. Or. 18.91 and Amm. 20.8.15. See also PW 10.1(1918), 39; Stein-Palanque, pp. 154-55; and Szidat, pp. 72-73.

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with the city of Amida itself on the Tigris after a siege of sixty-three days, in the course of which the historian Ammianus barely escaped with his life (19.1-8). From late autumn of 359 the emperor changed his imperial residence from Sirmium to Constantinople in order to be nearer the eastern theater of war (19.11.17), but following the usurpation at Paris in 360 Constantius, without the benefit of Julian's reinforcements, sustained the loss of two more frontier cities, Singara and Bezabde (20.6-7). An attempt by the older Augustus to re-claim Bezabde in the fall of this same year likewise failed (see 20.11.4-26 and especially 31-32). The Persian threat, therefore, was an awesome and immediate reality in 359/60, and few modern historians believe the primary motivation behind Constantius' appropriation of troops from the pacified West to have been envy, although they admit that the emperor would have profited at Julian's expense. Rather, the destruction of Amida combined with the shortage of manpower in the area "liess dann keinen Zweifel mehr offen, welcher Teil des Reiches in grösster Gefahr war."[32]

The gradual consolidation of the Rhine and Danube frontiers from 355 to 359 by Constantius has caused at least two scholars[33] to surmise that the emperor was pursuing a more or less systematic, if not long-term, plan

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[32]Szidat, p. 65. For an excellent discussion of Roman-Sassanid relations prior to and including the period reviewed here, see ibid., pp. 62-65 and 70-74. See also PW 10.1(1918), 39; Bidez, pp. 179-80; Thompson, Historical Work, pp. 48-49; Müller-Seidel, pp. 227-28; Stein-Palanque, pp. 138, 155, and 157; Blockley, "Gallus and Julian," pp. 449-50; and Piganiol, p. 137. For an evaluation of Constantius' Persian policy, see Eutrop. 10.10.1 and Lib. Ors. 30.38 and especially 18.206-7. Constantinople: Constantius left Sirmium late in 359 (Soc. 2.41.1) and resided at Constantinople until March of 360 when he moved to Caesarea in Cappadocia. He remained at Caesarea until May of 360.

[33]Klaus Rosen, "Beobachtungen zur Erhebung Julians 360-361 n. Chr.," AClass 12(1969), 121-49, particularly pp. 123-24, and Szidat, p. 73.

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for securing the perimeters of the empire (see Amm. 14.11.4, 16.10, and Zos. 3.2.2 and 8.1), and that just as during the Danube campaigns he had massed the bulk of the available forces in Illyricum (see Amm. 18.5.2, 20.6.1, 21.5.6, and Lib. Ors. 12.71 and 18.165) so too in 359/60 he intended to repeat this same procedure and strategy in the East (Amm. 20.8.1). For example, in 359, even prior to the assault on Amida, Constantius had transplanted seven hundred cavalry from Illyria to Mesopotamia in anticipation of the Persian thrust (Amm. 18.8.2, and see Cod. Th. I.7.1 from 28.5 [Meyer and Mommsen]), and an added indication that such troop tranfers were insufficient for the needs of the emperor is the fact that a detachment of legio limitanea from a neighboring province had to be called in to participate in the defense of Bezabde in 360 (Amm. 20.7.1).[34] In short, the physical make-up, geographical distribution, and size of the standing army of the Roman Empire in the second half of the fourth century were such that Constantius could deploy for service against the Persian offensive only the troops stationed along the middle Danube and/or in Gaul, and judging from Amm. 21.5.6 and Soz. 5.1.3, the emperor must have severely depleted the army in Illyria for this purpose since in 361 when Julian marched rapidly eastward against his cousin he discovered a very small task force waiting to oppose him.[35] That left the army of Gaul, and Constantius had valid reasons, sheer necessity aside, for wanting to siphon off some of Julian's troops. To begin with, following the battle of Mursa in 351 Constantius

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[34]Cavalry transfer and transplant of legio limitanea: see Szidat, pp. 71 and 74. For Constantius' concentration of forces in endangered territories of the empire, see ibid., pp. 69 and 73.

[35]Depletion of Illyricum: see Bidez, p. 192 and Szidat, p. 72. Troops to be chosen from Gaul and the middle Danube as opposed to Africa, Italy, and Britain: see ibid., pp. 69 and 72-74.

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incorporated into his own personal army, which normally numbered approximately fifty thousand men, a sizeable proportion of the usurper Magnentius' veteran Gallic soldiers (see Lib. Or. 18.37). In the year 355, however, the bulk of these same forces returned to Gaul under Silvanus and eventually formed the foundation or core of Caesar Julian's own expeditionary force. Julian thus had at his disposal the elite auxilia of the old Gallic army, i.e., the Aeruli, Batavi, Petulantes, and Celtae, and it was these units of about five hundred men each, together with three hundred hand-picked men from each of Julian's remaining divisions as well as an unknown quantity of the Caesar's personal guard which Lupicinus and Sintula in 360/61 were to escort to Constantius (see Amm. 20.4.2-3, 4.5, and 5.1).[36] In the second place, reports of the distinction with which some of the Gallic legions had acquitted themselves before the walls of Amida (see Amm. 19.6) may well have come to Constantius' attention and so influenced him to step up his levies in Gaul. In any case, it is difficult to assess the significance of Constantius' demands for Julian in 359/60 owing to our ignorance not only of the number of times previously the Caesar had volunteered troops (see, for example, Ep. ad Ath. 280c-d and Amm. 17.2.3) or

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[36] PW 10.1(1918), 40-41 twice estimates Sintula's group as having amounted to six hundred men. I do not know the basis for this figure. Amm. 20.1.1-3 attempts to explain away the absence in late 359 of Julian's commander Lupicinus together with the Aeruli and Batavi in Britain. Müller-Seidel, p. 230, and Szidat, pp. 97-101, view the dispatch of Lupicinus in mid-winter to fight the Picts as a partial subterfuge to withdraw the competent general together with a sizeable portion of Julian's famous auxilia from the clutches of the emperor whose troop recalls Julian may have anticipated. According to Szidat, pp. 85-88, the Lupicinus incident belongs to the first phase of Julian's usurpation, i.e., the planning and preparation phase; then follow in order the actual acclamation at Paris, a transition phase of two to four weeks in length, the negotiation period, and the confrontation phase. Old Gallic elite: see Szidat, pp. 65-66. Apparently, two more veteran auxilia which had served at Strasbourg, the Cornuti and Bracchiati (see Amm. 16.12.42), were not included in Constantius' drafts. For the figure 50,000, see Szidat, pp. 67-68.

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the older Augustus had required them (see Zos. 3.8.3-4), but also of the relative size and proportion of legions to auxiliaries in Julian's army, which in turn makes it impossible to pinpoint what fraction of Julian's total strike force the emperor actually requisitioned for service in the East.[37] Probably as high as one-third of Julian's divisions was involved which, though scarcely negligible, is not excessive if one recalls that by the spring of 361 when Julian left Gaul he had managed to amass an expeditionary force (which on the average amounted to around twenty thousand men) of twenty-three thousand soldiers--nor does this last figure include the men he dispatched to Constantius immediately following the usurpation (see Zos. 3.9.7-10.2, Ep. ad Ath. 287a, and Amm. 20.8.13).[38]

The point of this discussion has been to refute, with the assistance of the sources sympathetic to Caesar Julian, his contention of Ep. ad Ath. 282c-283b in 361 that the coup at Paris was occasioned in part by the troop reductions demanded by Constantius which he deemed excessive and unnecessary. With regard to this second criterion, i.e., that of necessity, one final observation is in order: the likelihood that Julian fully comprehended the need for and hence validity of Constantius' Persian policy in

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[37]Proportion of auxiliaries to legions: see PW 10.1(1918), 39. At Ep. ad Ath. 280c-d, Julian describes the composition of the troops sent previously to the emperor: ἔπεμψα τῷ Κωνσταντίῳ τέτταρας ἀριθμοὺς τῶν κρατίστων πεζῶν, τρεῖς ἄλλους τῶν ἐλαττόνων, ἱππέων τάγματα δύο τὰ ἐντιμότατα· (Bidez, 1.1). I am uncertain whether the preceding total includes the six hundred light-armed Franks of Amm. 17.2.1 or not. For the troops actually dispatched to Constantius following the usurpation, see Amm. 20.8.13. Gallic legions at Amida: see Bidez, p. 179.

[38]Szidat, pp. 66-67, is responsible for the 20,000 figure estimate and believes it to represent roughly one-fifth of the total of the then-existing standing army of the empire. PW 10.1(1918), 40, and Piganiol, p. 137, subscribe to the one-third fraction. Bidez, p. 180, and Bowersock, p. 46, go as high as one-half to two-thirds. At one point in 357 Julian's army totaled about thirteen thousand men. See Amm. 16.12.2 and also 21.13.6.

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361 is demonstrated by the fact that Julian himself as sole emperor two years later undertook a massive (and fatal) campaign against the Persian Empire (Amm. 22.12.1).[39]

We come now to that which earlier was termed the "third argument" (see p. 104 above), viz. that Julian's Gallic army unexpectedly coerced him into accepting the title of Augustus (Ep. ad Ath. 284b and 285d). The sources favorable to Julian (e.g., Lib. Ors. 13.34, 12.60-61 and Amm. 20.4.17-18, 8.10) as a rule continued to promulgate this interpretation, but in Ammianus' narrative (at 20.4.13) one encounters certain "compromising details" in the form of a staff banquet allegedly arranged by Julian only scant hours before the usurpation, which, although omitted in the Epistle to the Athenians, has suggested to at least one modern historian that we are dealing with a cleverly disguised "conspiracy to incite the troops to declare Julian Augustus."[40] The dinner hour for the rank and file of Julian's troops reported by Zosimus at 3.9.1 may or may not represent a garbled version of the officers' banquet of Amm. 20.4.13,[41] but the evidence which casts doubt once and for all on the credibility of the

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[39] See Szidat, p. 74.

[40] Bowersock, p. 49. The same author's reconstruction (pp. 50-52) of the conspiracy, or so-called "leafletting scheme," worked out over dinner is much too pat, however. Szidat, p. 85, includes the officers' banquet in the planning phase (see n. 36 immediately above) of the falling out between Constantius and Julian, observing that Amm. 20.1-4 narrates the dinner and previous dispatch of Lupicinus to Britain in such a manner as to obscure the deliberate preparations for the acclamation at Paris on Julian's part.

[41] See pp. 106-7 above. Apropos of Zos. 3.9.1, Bowersock (pp. 49-50) mistakenly assumes Julian to have attended a "dinner with the officers," but the text of Zosimus does not merit such an interpretation; nor does Eunap. V. Soph. 7.3.7-8 bear out Bowersock's supposition of "a Eunapian origin for the officers' dinner party" since Eunapius speaks only of a secret rite but no meal (i.e., τινὰ μύησις ἐκείνοις γνώριμα διαπραξάμενος [Giangrande]). See p. 115 below.

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official version of Julian's acclamation by his veterans is the testimony or Eunapius, a pagan writer fanatically partial to the Caesar. According to Eunapius:

> Τότε δὲ ὁ μὲν Ἰουλιανὸς τῷ θειοτάτῳ ἱεροφαντῶν συγγενόμενος[42] καὶ τῆς ἐκεῖθεν σοφίας ἁρυσάμενος χανδόν, ἐσόμενος ὑπὸ τὸν Κωνστάντιον, ἀπήγετο σροδρῶς ὡς παραβασιλεύσων εἰς τὸν Καῖσαρα, . . . ὥστε ὁ μὲν Ἰουλιανὸς ἔτυχεν ὧν οὐκ ἐβούλετο μέν, ἀλλ' ἠναγκάζετο. πεμφθεὶς δὲ Καῖσαρ ἐπὶ Γαλατίας οὐχ ἵνα βασιλεύῃ τῶν ἐκείνῃ μόνον, ἀλλ' ἵνα ἐν τῇ βασιλείᾳ διαφθαρῇ, παρὰ δόξαν ἅπασαν ἐκ τῆς τῶν θεῶν προνοίας ἀνήνεγκεν, . . . καὶ τόν τε Ῥῆνον ἐπεραιώθη, καὶ πάντα ὅσα ὑπὲρ ἐκεῖνον ἔθνη βάρβαρα συνελὼν καὶ δουλωσάμενος, πολλῶν ἐπιβουλῶν καὶ μηχανημάτων πλεκομένων αὐτῷ (ὡς ἐν τοῖς περὶ ἐκεῖνον ἀναγέγραπται), τὸν ἱεροφάντην μεταπαλέσας ἐκ τῆς Ἑλλάδος καὶ σὺν ἐκείνῳ τινὰ μόνοις ἐκείνοις γνώριμα διαπραξάμενος, ἐπὶ τὴν καθαίρεσιν ἠγέρθη τῆς Κωνσταντίου τυραννίδος. ταῦτα δὲ συνήδεσαν Ὀριβάσιος ἐκ τοῦ Περγάμου, καί τις τῶν ἐκ Διβύης, ἣν Ἀφρικὴν καλοῦσι Ῥωμαῖοι κατὰ τὸ πάτριον τῆς γλώττης, Εὐήμερος. ταῦτα δὲ πάλιν ἐν τοῖς κατὰ Ἰουλιανὸν βιβλίοις ἀφιβέστερον εἴρηται. ὡς δ' οὖν καθεῖλε τὴν τυραννίδα Κωνσταντίου, καὶ τὸν ἱεροφάντην ἀπέπεμψεν ἐπὶ τὴν Ἑλλάδα, . . . (V. Soph. 7.3.6-9 [Giangrande])[43]

Elsewhere, in his History, in the context of some remarks about the degenerating relationship between Caesar Julian in Gaul and the envious Constantius (see FHG 4.19.14-20.14 [Müller]), Eunapius compares, without mentioning names, the conspiracy to unseat Constantius with the overthrow of Gaumata the Magian by the Persian Darius I and the successful coup of Arsaces I against Antiochus II Theos, both men founders of empires and dynasties:

> Ἔοικε μὲν οὖν καὶ ἄλλως ὁ χρόνος ἐν ταῖς μακραῖς περιόδοις καὶ κινήσεσι πολλάκις ἐπὶ τοιαῦτα καταφέρεσθαι συμπτώματα, καθάπερ οἱ τῷ Δαρείῳ συστάντες ἐπὶ τοὺς μάγους ἦσαν ἑπτά,

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[42] See also V. Soph. 7.3.1.

[43] Oribasius: see Ep. ad Ath. 277c and FHG 4.15.8 (Müller). See also PLRE, 1, pp. 653-54.

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καὶ οἱ πολλοῖς ὕστερον χρόνοις Ἀρσάκῃ κατὰ Μακεδόνων συνεγερθέντες ἴσοι τὸν ἀριθμὸν ἔτυχον. (FHG 4.20.14 [Müller])[44]

It is tempting to speculate who the "seven" might have been. We know three of the participants' names from V. Soph. 7.3.7-8, that is Oribasius the physician,[45] Euhemerus, and of course Julian himself. To these one might add the unnamed hierophant, whom Julian did not dispatch to Greece until after the usurpation (see V. Soph. 7.3.9 [Giangrande] quoted above). Owing to Julian's esteem for his eunuch praepositus (see Amm. 16.7.4-8), and in view of the influence traditionally wielded by the chamberlain of the imperial household by virtue of his proximity to the emperor or Caesar (e.g., at Amm. 16.7.2-3 and 20.8.19 Julian entrusted his chamberlain with two highly confidential and delicate missions to Constantius), it seems nearly impossible to me to exclude the eunuch Eutherios from the list of conspirators. A tentative sixth candidate might be the

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[44]Bowersock fails to cite this crucial piece of evidence in support of his hypothesis for a conspiracy to elevate Julian to the rank of Augustus. Bidez, p. 186 includes it, however.

[45]See Julian's Ep. 14 (Bidez, 1.2) to Oribasius in which he recounts a dream describing a high enclosure in the midst of which stood an immense and bending tree with a delicate flowering shoot near its root. The tree's root, Julian decided, signified the Flavian dynasty, while the cumbersome tree menacing the sprout (i.e., Julian) symbolized the waning power of the emperor. If Bidez's (1.2, p. 8) assignment of the missive to the year 359 (i.e., just prior to Salutius' recall) is correct, and Julian was contemplating replacing Constantius in 359, then the idea of a coniuratio formulated in 359/60 emerges as a strong possibility. See also Eunap. V. Soph. 21.1.4: ἐκ μειρακίου δὲ ὕυτω ἐπιφανὴς γενόμενος, Ἰουλιανὸς μὲν αὐτὸν εἰς τὸν Καίσαρα προῖὼν συνήρπασεν ἐπὶ τῇ τέχνῃ, ὁ δὲ τοσοῦτον ἐπλεονέκτει ταῖς ὅλλαις ἀρεταῖς, ὥστε καὶ βασιλέα τὸν Ἰουλιανὸν ἀπέδειξεν· καὶ ταῦτά γε ἐν τοῖς κατ' ἐκεῖνον ἀφριβέστερον εἴρηται. (Giangrande). According to Wright, p. 338, when "Eunapius says that Oribasius 'made Julian Emperor,' he probably means not so much that Oribasius was an accomplice in the plot to put Julian on the throne, . . . but rather that the physician, by his virtuous teachings had fitted [or mentored] Julian for the position."

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tribune and notary Decentius (see Amm. 20.4.2 and 4.11), whose decision to convene the troops earmarked for service in the East near Paris seems much too convenient for Julian's purposes to have been the result of stupidity and not complicity--unless Decentius acted under orders from Constantius in hopes of precipitating a mutiny among the Caesar's troops which theoretically either would force Julian to seize power and thereby discredit him in the eyes of the reigning Augustus, or else would result in Julian's murder by the Gallic troops still loyal to the emperor.[46] Finally, there is Pentadius the notary, who accompanied the praepositus Eutherios on his embassy to Constantius shortly after February of 360 (see Amm. 20.8.19): in spite of Julian's avowed hatred of him (Ep. ad Ath. 282b) and his earlier role in the downfall of Gallus (see Amm. 14.11. 21 and 11.23), Pentadius somehow managed to escape the tribunal at Chalcedon in 361 unscathed (Amm. 22.3.5). Perhaps Pentadius' acquittal was Julian's way of repaying him for his services in 360?

The Eunapian versions recounted above are unique inasmuch as they run counter to the accepted pro-Julianic interpretation of the usurpation and appear to catch Julian, as well as his supporters, in a lie. But not really, for by depicting the emperor Constantius as an envious scheming tyrant on the one hand, with Julian cast as the daring freedom-fighter and would-be tyrannicide on the other, Eunapius was able to admit the conspiracy at Paris openly, while at the same time rationalizing and even idealizing Julian's illegitimate takeover.[47]

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[46] Complicity of Decentius with Julian is suggested by Blockley, "Gallus and Julian," p. 451.

[47] See, for instance, Libanius' description at Or. 14.17 (dated autumn of 362) of Constantius' reign as having been a παρανομοῦσα τυραννίς (Foerster, 2), although immediately after Constantius' death Julian seems to

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Having accepted the title of Augustus at Paris in early February of 360, it now remained for Julian to win recognition (i.e., equality of rank if not power or title; for example, see Lib. Or. 18.106, Amm. 20.8.4, 8.11-12, 8.14, and 8.17) from Constantius together with a new and more equitable division of competences, preferably by means of diplomacy rather than armed intervention (Amm. 20.8.2f., 8.19, and 20.9).[48] When arbitration failed, however, Julian administered the loyalty oath to his troops (so Lib. Or. 18.109-10 and Amm. 21.5.1-11) in mid-April[49] of 361 at Augusta Rauricorum (Augst) and marched eastward (see Amm. 21.5.13, 8.1, and Zos. 3.10.1-2), but this move on his part, thereby launching a civil war against the legitimate emperor Constantius, proved to be an even more difficult venture to explain away than the actual usurpation itself.[50] In the Epistle to the Athenians, Julian defended his decision to initiate hostilities on the basis of four grievances: first, Constantius' inflexibility and refusal to come to terms on the fundamental issue of Julian's claim for what amounted to virtual recognition by the older man as co-Augustus (285d and 286c); next, the emperor's alleged treachery in the arrangement of a deal with the barbarians under Vadomarius whereby the chieftain would invade Julian's territory and keep him pinned down indefinitely in Gaul (286a-b and 287c); thirdly, Constantius' declaration of

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have avoided such a hardline approach in order to win over the deceased sovereign's army and supporters in and around Constantinople and the East.

[48] See Szidat, pp. 85-86.

[49] The traditionally accepted date is the beginning of July, but I am following the revised chronology of Szidat, p. 94.

[50] See Browning, p. 123; Szidat, p. 88; and Bowersock, p. 60. For Julian's line of march, see J. Oliver Thomson, Everyman's Classical Atlas (London: J.M. Dent & Sons Ltd., 1961), "Macedonia, Thracia, Illyricum, Moesia and Dacia," pp. 38-39 and "Germania," pp. 46-47 (maps) photostatically reproduced in appendix A on pp. 137-38 below.

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Julian as a hostis publicus (286a);[51] and, finally, the risk he and his partisans would incur if he remained in Gaul and/or abdicated (286c-d and 287a [Bidez, l.13]). We will focus here chiefly on the first two items since the third and fourth are subsidiaries to the recognition and negotiation problem.

Judging from Amm. 20.8-9, the most intensive exchange of embassies[52] between the two cousins occurred over a six-month period which extended from mid-February until the middle of August 360, although negotiations probably continued through December and down almost to the time of Julian's departure from Gaul in mid-April of 361. With respect to Julian's objections at Ep. ad Ath. 285d and 286c-287a, one comes away with the distinct impression from reading subsequent pro-Julianic versions of events that Constantius would accept nothing short of Julian's return to his former rank of Caesar or, in the third instance, total capitulation:

(1) Ἀλλὰ γὰρ ὑπερέβην τι τῶν ἀξίων εἰρῆσθαι. τοῦτο δὴ λεκτέον. πρεσβειῶν γὰρ οὐκ ὀλίγων ἀμφοτέρωθεν γενομένων, ὧν αἱ μὲν ἐκεῖθεν ἠξίουν ἐπὶ τοῦ σχήματος μένοντα μηδὲν ἔργῳ πλέον ἢ πρόσθεν ἔχειν, αἱ δ' ἐνθένδε πάντως δεῖν ἀφίστασθαι τῆς τιμῆς καὶ διὰ πάντων εἶναι τὸν πρότερον, ἐν τούτῳ δὲ ἦν αὐτὸν ἀπολωλέναι καὶ τοῦ στρατοπέδου τὸ πλέον καὶ συνήθεις καὶ φίλους, τῷ δὲ τῆς μὲν αὐτοῦ σφαγῆς βραχὺς ἦν ὁ λόγος, δεινὸν δὲ ἐδόκει προδότην καταστῆναι τῶν φιλτάτων. (Lib. Or. 18.106 [Foerster, 2])

(2) statim tamen et legatos absolvit et Leonam quaestorem suum in Gallias cum litteris datis ad Iulianum pergere celeri statuit gradu nihil novatorum se asserens suscepisse, sed eum, si saluti suae proximorumque consulit,

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[51] See Julian Ep. 28.382c: πολέμιος ἀποδειχθεὶς (Bidez, l.2).

[52] See Szidat, pp. 46 and 87. See also Bidez, p. 189; Stein-Palanque, p. 155; and Browning, p. 108.

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tumenti flatu deposito intra Caesaris se potestatem continere praecipiens. (Amm. 20.9.4 [Seyfarth, 1])[53]

(3) ὅμως ἐπειρᾶτο τῆς αὐτοῦ γνώμης, καὶ πρέσβεις ἐκπέμψας παρὰ τὴν αὐτοῦ προαίρεσιν τε καὶ γνώμην ἔφη προβῆναι τὰ τῆς ἀναρρήσεως, οἷς εἰ παράσχοι συγγνώμην, ἕτοιμος ἔφασκεν εἶναι τὴν τοῦ Καίσαρος ἔχειν ἀξίαν, ἀποθέμενος τὸ διάδημα. Κωνστάντιος δὲ εἰς τοσοῦτον ὀργῆς τε καὶ ἀλαζονείας ἠνέχθη ὥστε πρὸς τοὺς πρέσβεις εἰπεῖν ὡς προσήκει Ἰουλιανὸν τοῦ ζῆν ἀντεχόμενον ἀποθέσθαι πρὸς τῇ βασιλείᾳ καὶ τὸ τοῦ Καίσαρος σχῆμα, καταστάντα δὲ ἰδιώτην ἑαυτὸν τῇ προαιρέσει τοῦ βασιλέως ἐκδοῦναι· (Zos. 3.9.3-4 [Paschoud, 2.1])[54]

The pro-Julianic literature always emphasises the deferential and conciliatory tone with which Julian stated his conditions in the exchanges with Constantius, e.g., Ep. ad Ath. 285d, 287a-b, and Amm. 20.8.4 (et quamquam non repugnanter nec arrogantibus verbis quidquam tamen scripsit, ne videretur subito redundasse [Seyfarth, 1]). Additional alleged indicators of goodwill and fealty in early 360 on Julian's part were his promise to supply men and horses indefinitely for Constantius' Persian war effort (although Julian substituted volunteers for the emperor's original Gallic levies of Amm. 20.8.13) and his offer to accept without reservation the praetorian prefect(s) appointed by the emperor (see Amm. 20.8.14); whereas Constantius, on the other hand, is portrayed in a thoroughly negative light, e.g., reportedly dismissing Julian's emissaries in a rage upon learning of his younger colleague's "conditions" (ultra modum solitae indignationis, Amm. 20.8.2 [Seyfarth, 1]), and tactlessly imposing on Julian

[53] See also Amm. 20.8.2: Inter quae Iulianus apud Parisios hibernis locatis, summa coeptorum quorsum evaderet, pertimescens erat anxius numquam assensurum Constantium factis multa volvendo considerans, apud quem sordebat ut infimus et contemptus. (Seyfarth, 1)

[54] See also Amm. 20.9.1-5. See too the more neutral Epit. Caes. 42. 16 which confirms the interpretation of the three authors quoted on pp. 120-21 above: Hinc Constantius urgere legationibus, in statum nomenque pristinum revertatur. (Pichlmayr)

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the functionaries of his own choosing (Amm. 20.8.5).[55]

Constantius may well have been uncompromising and heavyhanded in his dealings with Julian after the turn of events at Paris, and doubtless the recent decease (see Amm. 21.6.4) of Julian's protectress the empress Eusebia served only to aggravate the two cousins' already uncomfortable relationship even further (see Ep. ad Ath. 273a, 274a-b; Julian Or. 2 [Bidez, l.11]; and Lib. Or. 18.27),[56] but the older man's attitude toward Julian was, afterall, juridically correct, and no amount of pro-Julianic propaganda can vitiate this simple fact. It is clear, for example, that Constantius regarded Julian as a usurper (i.e., rebellem, Amm. 21.13.16 and 22.14.4)[57] and took definite precautionary steps in Italy and Africa as a result which were calculated to halt Julian's expansion of power and/or mobilization (see Ep. ad Ath. 286a-b; Pan. Lat. 11.14.5; and Amm. 21.7.1-2).[58] It is equally obvious that both Julian's admirers and opponents were fully cognizant of the illegality, not to mention the insecurity (see especially Greg. Naz. Or. 4.48; Amm. 20.9.1, 21.7.3, 11.1-3, 12.1-2, 12.18, and 12.21) of his position (see Pan. Lat. 11.27.4, 5-6; Amm. 20.8.3, 21.5.1 and 5.9; and Soz. 3.1), and that the newly-acclaimed Augustus was not about to settle

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[55]For the embassies exchanged between Julian and Constantius, see PW 10.1(1918), 41-42; Bidez, pp. 187-89 and 197; Stein-Palanque, p. 155; Piganiol, pp. 138-39; Browning, pp. 106-7 and 117; Szidat, pp. 85 and 87; and Bowersock, p. 53.

[56]See PLRE, 1, pp. 300-1. See also PW 10.1(1918), 41-44; Müller-Seidel, p. 242; Stein-Palanque, p. 155; Browning, p. 97; and Szidat, n. 70, p. 83.

[57]See also Amm. 20.8.3.

[58]Mobilization of Italy and Africa: see Bidez, p. 191; Stein-Palanque, p. 157; Piganiol, p. 140; Browning, p. 112; Szidat, p. 87; and Bowder, p.52.

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for anything less than complete equality with Constantius.[59]

As in the first part of this chapter, one can point to evidence within the pro-Julianic tradition, and particularly in books 20-21 of Ammianus Marcellinus, of the Caesar's various activities which contrasts sharply with his seemingly modest assertions at Ep. ad Ath. 285d-286a (see pp. 119-20 above). Beginning with Amm. 20.8.18 (which may account, by the way, for Constantius' inhospitable reception of Eutherios and Pentadius at 20.9.2), for example, one learns of the not so accommodating contents of allegedly secret letters forwarded by Julian in mid-February of 360 to the emperor: His litteris iunctas secretiores alias Constantio offerendas clanculo misit obiurgatorias et mordaces, quarum seriem nec scrutari licebat nec, si licuisset, proferre decebat in publicum (Seyfarth, 1).[60] Then follows a notice at Amm. 20.9.8 about Julian's failure to comply with a directive from Constantius to accept for the office of magister officium the emperor's own candidate, one Felix (Amm. 20.9.5).[61] A third instance of a far more public nature indicating defiance was Julian's

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[59]Equality: see, for example, Epit. Caes. 42.16-17: Iulianus mandatis mollioribus refert se sub nomine celsi imperii multo officiosus pariturum. (Pichlmayr). See also Bowersock, p. 54. Insecurity: Pan. Lat. 11.14.6 and Lib. Or. 12.65 contain unrealistic claims based on false bravado. See Bidez, p. 187; Szidat, pp. 85, 88, and 90. The best proof of Julian's tenuous position at Naissus is the loss of Aquileia by defection which he sustained in July of 361. This major Italian city in his rear did not capitulate or recognize Julian until after Constantius' death, i.e., in approximately January/February of 362. See Bidez, p. 194; E.A. Thompson, "Three Notes on Julian in 361 A.D.," Ha 62(1918), p. 92; Stein-Palanque, p. 157; Piganiol, pp. 140-41; Szidat, pp. 51-53, 90, 94-95; and Bowersock, pp. 59-60. Szidat, pp. 52-53, has observed that chronologically Aquileia belongs in book 22 of Ammianus' History, but its inclusion in book 21 instead enabled him to avoid tarnishing Julian's opening res gestae as sole emperor with the narration of this embarrassing reverse.

[60]See Bidez, p. 187; Piganiol, p. 138; and Browning, p. 107.

[61]See PW 10.1(1918), 42; Stein-Palanque, p. 155; and Szidat, p. 86.

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celebration on 6 November 360 of his Quinquennalia at Vienne: . . . quinquennalia Augustus [sc. Iulianus] iam edidit et ambitioso diademate utebatur lapidum fulgore distincto, cum inter exordia principatus assumpta vili corona circumdatus erat xystarchae similis purpurato (Amm. 21.1.4 [Seyfarth, 13]). As more than one modern historian has observed, Julian legally was entitled to mark the occasion of his fifth anniversary as Caesar, "but in the West it looked more like the formal inauguration of his rule as Augustus. The coins are the best proof of this."[62]

Added discrepancies within the pro-Julianic sources can be detected in Ammianus' version of Julian's Danube descent (see 21.8.2-9.1f.) and the Caesar's ensuing rapid advance (21.9.6) across Illyricum which resulted in the occupation of three strategic sites by the close of May 361,[63] namely the capital city of Sirmium (21.9.6-10.1 and Zos. 3.10.1-3); the defile of Succi, gateway to Thrace (Pan. Lat. 11.14.1 and Amm. 21.10.2-4); and Naissus (see Amm. 21.10.5f. and Zos. 3.11.1).[64] As far as the actual decision on Julian's part to launch a pre-emptive strike against Constantius is concerned (see Amm. 21.5.1 and 5.13), like the seven-man conspiracy of Eunapius it too probably was "less hasty than our sources make it appear,"[65]

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[62]Bowersock, p. 53. But cf. Szidat, p. 87. Quinquennalia: see Bidez, p. 190; Paschoud, 2.1, n. 22, p. 89; and Szidat, p. 47. See also Frank D. Gilliard, "Notes on the Coinage of Julian the Apostate," JRS 54(1964), 134-41.

[63]For the date see Szidat, p. 94. Illyricum: included the Danubian provinces of Raetia, Noricum, Pannonia, Dalmatia, Moesia, and Dacia. See OCD, p. 541. For Julian's route, see J. Oliver Thomson, "Macedonia, Thracia, Illyricum, Moesia and Dacia," pp. 38-39 and "Germania," pp. 46-47 (maps) photostatically reproduced in appendix A on pp. 137-38 below.

[64]On the rashness of Julian's march East and the necessity of his halting at Naissus, see Bidez, pp. 194-95; Thompson, "Three Notes on Julian," pp. 88-93, especially pp. 90-92; Kaegi, "Julian at Naissus," pp. 161-62; Szidat, pp. 88-89; and Bowersock, p. 60.

[65]Browning, p. 115.

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although according to Ammianus Julian merely chanced upon a flotilla (i.e., quos opportune fors dederat plurimos, 21.9.2 [Seyfarth, 1]) sufficiently large to transport his forces downstream upon reaching the head of the Danube. Taking into account, however, the size of Julian's portion of his army (i.e., three thousand men according to Zos. 3.10.2, and see Amm. 21.8.3) as well as the testimony of Mamertinus at Pan. Lat. 11.8.3 (lembis liburnisque [Galletier, 3]) and Zosimus (πλοῖα ποτάμια κατασκευάσας, 3.10.2 [Paschoud, 2.1]), one cannot exclude the likelihood of a premeditated invasion plan on Julian's side, the suppression of which would serve to mollify the fact that the Caesar's was the initial act of aggression.[66] By way of illustration, Mamertinus' flimsy excuse at Pan. Lat. 11.6.2 and 7.1 to the effect that Julian navigated the Danube simply in order to terrify the barbarians who were living along its left bank into submission bespeaks the panegyrist's discomfort with the unofficial version of events in Illyria in 361. Remnants of a second, equally tendentious explanation by Julian's sympathizers for his Danube push may still be discernible in the narratives of two hostile writers, Gregory Nazianzen and Sozomen respectively, both of whom criticize Julian for pretending to have been on his way eastward to meet Constantius in hopes of defending himself against the charges of his illegal seizure of power:[67]

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[66]For the tripartite division of Julian's army, see Bidez, p. 193; Piganiol, p. 140; and Bowersock, pp. 57-58. Boats: see Bidez, p. 193 and Galletier, 3, n. 1, p. 23.

[67]Danube push: see Bidez, pp. 193-94; Galletier, 3, pp. 6-7; Stein-Palanque, p. 156; and Browning, pp. 105 and 113-14.

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(1) . . . καὶ ποῦ πρόεισιν ἀσεβείας τε καὶ θρασύτητος; Ὦ τῆς μανιώδους ἐκείνης ψυχῆς! ἐπ' αὐτὸν ἐκστρατεύει, καὶ τῆς δύσεως ἀπανίσταται· προφάσει μὲν, ὡς ἀπολογησόμενος ὑπὲρ τοῦ διαδήματος . . . (Greg. Naz. Or. 4.46 [PG 35.569-72])

(2) Προσδοκωμένων δὲ Περσῶν Ῥωμαίους ἐπιθήσεσθαι καὶ διὰ τοῦτο Κωνσταντίου ἐν Συρίᾳ διατρίβοντος, λογισάμενος ἀμαχητὶ δύνασθαι τῶν Ἰλλυριῶν κρατεῖν, εἴχετο τῆς ἐπ' αὐτοὺς ὁδοῦ, πρόφασιν ποιούμενος ὡς ἀπολογίας χάριν ἐλαύνει πρὸς Κωνστάντιον ὑπὲρ τοῦ μὴ ἐκὼν ὁδὸν πρὸς τῶν στρατιωτῶν παρὰ γνώμην αὐτοῦ τὰ σύμβολα τῆς βασιλείας καταδεδέχθαι. (Soz. 5.1.3 [Bidez and Hansen])

Of course, Julian's advance into Constantian territory signaled the complete severance of the already strained diplomatic ties between himself and the emperor (see, for example, Amm. 21.1.5) and irreversibly opposed the Caesar to his elder cousin the Augustus, who declared Julian a hostis publicus sometime after 19 May 361.[68] But Julian had set the stage for this final break even prior to his Danube campaign by meddling a second time (see p. 123 above) in the matter of two high-level appointments reserved by Constantius expressly for himself (Amm. 20.9.4-5); on the eve of his departure for the East (Amm. 21.8.1) it seems Julian replaced both the praetorian prefect Nebridius and the magister equitum Gomoarius with three trusted men of his own, Sallustius, Germanianus (both prefects), and Nevitta (see Amm. 21.10.2). In so doing he effectively usurped control of the prefecture of Gaul, making the civil as well as military administration there, which formerly had been subordinate to Constantius, answerable thereafter to himself alone.[69] Later, in his Epistle to the Athenians,

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[68] See Cod. Th. IX.38.2, 40.9, 40.21, and XV.14.6-7 (Meyer and Mommsen) for the various penalties with which the usurper's partisans were threatened. See also Szidat, pp. 86 and 88-90.

[69] See PW 10.1(1918), 46; Stein-Palanque, p. 156; Piganiol, p. 140; and Szidat, pp. 88 and 92.

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Julian passed over these incriminating details.

Two final illustrations of Julian's recalcitrant behavior pertain to his stay at Naissus, for it was from this location that he issued his politically naive and openly anti-Constantian manifesto to the Roman Senate:

> iamque altius semet extollens et numquam credens ad concordiam provocari posse Constantium orationem acrem et invectivam probra quaedam in eum explanantem et vitia scripserat ad senatum. quae cum Tertullo administrante adhuc praefecturam recitarentur in curia eminuit nobilitatis cum speciosa fiducia benignitatis grata [i.e., for Constantius]. exclamatum est enim in unum cunctorum sententia congruente 'auctori tuo [sc. Constantio] reverentiam rogamus.' (Amm. 21.10.7 [Seyfarth, 1])

Far from gaining him recognition from that quarter, the hostile reception accorded the document in the West effectively demonstrates just how little support the usurper Julian actually enjoyed outside of Gaul.[70] Lastly, toward the end of June,[71] Julian designated as consuls for the upcoming year (362) the panegyrist Claudius Mamertinus together with his newly-appointed magister equitum Nevitta (see Amm. 21.10.8 and 12.25). Inasmuch as the prerogative to appoint consuls belonged to the rightful emperor alone, that is, Constantius, Julian certainly merited the censure which in fact he did receive from Ammianus Marcellinus: insulse nimirum et leviter (21.10.8 [Seyfarth, 1]). An understatement on the historian's part, not only did Julian behave in an "excessively tasteless and frivolous manner," he also acted illicitly. At 21.10.8, Ammianus scrupulously

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[70]For the Roman Senate's negative endorsement, see Bidez, pp. 197-98; Stein-Palanque, p. 157; and Szidat, p. 90. Zos. 3.10.4 makes no mention of the incident in the context where one would expect it to occur.

[71]See Szidat, p. 94.

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avoided the real point at issue.[72]

A resolution of the so-called "Vadomar-affäre"[73] is, in the opinion of one expert, "of cardinal importance for an estimate of Constantius."[74] On the whole the authorities which are loyal to Julian eagerly adopted his explanation (see Ep. ad Ath. 286a-b) of how the emperor Constantius in 360 solicited an Alamannic incursion into Julian's territory from Rauricum (cf., for example, Pan Lat. 11.6.1; Lib. Ors. 13.35, 12.62, 18. 92, 107-8, 113; and Eunap. FHG 4.15.7a [Müller]), and in so doing resorted to the same tactics which he had employed in 352/53 to topple the usurper Magnentius.[75] Only Ammianus Marcellinus (21.3.1f.) appears somewhat unconvinced, alternating claims that Constantius incited King Vadomarius to violate an old peace agreement (18.12.19 and 16.12.17) with certain editorial reservations (i.e., . . . si famae solius admittenda est fides, . . . si dignum est credere, 21.3.4-5 [Seyfarth, 1]). Still, Ammianus goes on to say that Julian's reconnaissance men actually managed to intercept a message from Vadomarius to Constantius, although the partial contents Caesar tuus disciplinam non habet scarcely prove, if they can be said to demonstrate anything at all, that the older Augustus was encouraging

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[72]Consular appointments pre-empted by Julian: see especially Soc. 3.1. 170 and Soz. 5.1.2. See also Bidez, p. 198; Piganiol, p. 141; Browning, p. 120; and Szidat, p. 92. Mamertinus and Nevitta: see also Amm. 21.8.1 and 22.3.1.

[73]Müller-Seidel, p. 237.

[74]Thompson, "Three Notes on Julian," p. 83.

[75]Magnentius: Lib. Or. 18.83 and Zos. 2.53.3 are the only witnesses from antiquity for this strategy of Constantius. See also Piganiol, p. 139; Paschoud, 1, n. 68, p. 261; and Bowersock, pp. 56-57.

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Vadomarius so as to spark his invasion of Raetia.[76] The problem with the Ammianan narrative, therefore, is that it fails to confirm the rumors reported initially at 2.3.4-5, namely that Constantius directed or bribed Vadomarius to attack Julian in the West. Also the written correspondence (one letter) noted by Ammianus at 21.3.5 purportedly travels in one direction only, that is, from the barbarian leader to the emperor; whereas in Julian's and Libanius' respective versions we read of letters (ἐπιστολάς at Ep. ad Ath. 286b, and τὰ γράμματα . . . ταῖς καλαῖς ἐπιστολαῖς at Lib. Or. 18.113) dispatched by Constantius to the barbarians which, it is alleged, Julian utilized as he passed through the Illyrian countryside to discredit the emperor.[77] Thus, inasmuch as these discrepancies within the pro-Julianic literary tradition make it difficult to know which version of the Vadomarius affair to accept, they also complicate the evaluation of Constantius' role in the proceedings.

Nonetheless, in their haste to choose sides on the issue of Constantius' collusion or non-complicity with Vadomarius in 360, ancient and modern authorities alike may have overlooked an important point which emerges from a careful reading of a passage found in Sozomen's Ecclesiastical

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[76]According to Müller-Seidel (p. 239): "Wenn nun Konstantius Vadomar den Auftrag gegeben hatte, durch Einfälle in römisches Gebiet Julian zu beunruhigen und ihn dadurch in Gallien festzuhalten--wie Julian uns glauben machen möchte--, so durfte Vadomar nicht in den Konstantius unterstehenden Reichsteil einfallen, sondern musste seine Angriffe auf das gallische Gebiet richten, für dessen Sicherheit Julian verantwortlich war. Gerade das geschah aber nicht. Ferner lag Vadomars Gebiet Rauracum gegenüber."

[77]See especially Soc. 3.1.170 and Soz. 5.1.2. See also Bidez, p. 198; Thompson, "Three Notes on Julian," pp. 84-85, although I disagree with the author's conclusions on pp. 85-86; and Browning, pp. 56-57.

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History at 5.2.23:[78]

> . . . ἀλλ' ὡς συμβάλλω, τὴν μὲν ἀρχὴν εὔνους ὢν αὐτῷ Κωνστάντιος Καίσαρα κατέστησεν· ἐπεὶ δὲ παρὰ γνώμην αὐτοῦ Σεβαστὸς ἀνεκηρύχθη, ἢ δεδιὼς ἀνδ' ὧν αὐτὸν καὶ τὸν ἀδελφὸν νέους ὄντας ἠδίκησεν, ἢ φθονῶν, ὡς εἰκός, ἐπὶ τῇ ὁμοίᾳ τιμῇ, ἐπεβούλευεν αὐτῷ διὰ τῶν πρὸς τῷ Ῥήνῳ βαρβάρων. ἀλλὰ τάδε μὲν ἄλλοις ἄλλως δοκεῖ. (Bidez and Hansen)

Sozomen obviously presumes Constantian responsibility for the barbarian inroads and even volunteers two possible motives for the same, but the overriding and much larger issue here is, once more, that of Julian's illicit seizure of power (see pp. 121-22 and 124-25 above). In other words, Sozomen (looking at matters from the emperor's viewpoint) ignores the debate about Constantius' guilt or innocence in the matter of inviting the barbarians into Gaul at Julian's expense; rather, his point is that Julian the usurper got precisely the treatment he deserved at the hands of the legitimate, i.e., recognized or established, regime. Speculation about Constantius' motives is superfluous.[79]

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[78]Save for Müller-Seidel, pp. 238-40, the overwhelming majority of modern authors follows the Julianic tradition. See PW 10.1(1918), 43; Bidez, pp. 190-92; Thompson, "Three Notes on Julian," pp. 83-88; Moreau, p. 167; Stein-Palanque, pp. 156-57; Paschoud, 2.1, n. 23, p. 90; Piganiol, p. 139; Browning, pp. 111-12; Szidat, p. 88; and Bowersock, pp. 56-57.

[79]That the whole question of legitimacy was an extremely vital and delicate one for Julian is clear from the stories circulating around the time of Constantius' decease wherein it is alleged that he appointed Julian his heir (see Amm. 21.15.2 and 15.5 as well as 22.2.1 and 2.3). It is impossible to ascertain, however, which side promulgated this information: if Julian's partisans, then the intention was to facilitate his acceptance as the legitimate successor to Constantius before the eastern armies and populace; if Julian's opponents, then perhaps we are dealing with an attempt to humiliate the new Augustus for the ingratitude shown his cousin earlier by the assault on the East. In either case, Julian was duly approved (see Amm. 21.15.4 and 22.2.4). See also PW 10.1(1918), 45; Bidez, pp. 196-97; Stein-Palanque, p. 158; Browning, p. 121; and Bowersock, p. 65. For Constantius' alleged premonitions of his approaching end, see Amm. 21.14.1-2 and 15.2.

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By way of conclusion I think we can say that the pro-Julianic sources may have judged too harshly the attitude of the emperor Constantius toward Julian between the years 355 and 361. Granted Constantius grossly underestimated the psychological impact on Julian of Salutius' removal in 359; granted too there was little room for a relationship of trust to form between the two cousins as long as the massacre of 337/38, Julian's internment at Macellum, and the execution of his half-brother Gallus in 354 loomed in the background--still, the Caesar's sympathizers blamed Constantius for Julian's dissatisfaction with his advisors, with the competences assigned to him during his Gallic tenure from 355-358, with the attempted troop withdrawals in 359, and with the unsatisfactory negotiation process during 360 rather than admit that the true causes of the rift were, first, a perception (or expectations) on Julian's part of his role as Caesar which departed radically from the ideal which Constantius himself envisioned, and ultimately Julian's own will to wield absolute power.[80]

From Constantius' purported inaugural address to Julian at his elevation in 355 (see Amm. 15.8.5f.), one can gain an insight into what the emperor expected of Julian in his new capacity as Caesar. At the most basic level there was the dynastic principle (see Amm. 15.8.8 and 8.12; see also 20.8.11): that is, Constantius, by the elevation of his sole surviving eligible male relative, presumably was making Julian his heir-designate. Secondly, Constantius bestowed "almost equal power" (i.e., suppari potestate at Amm. 15.8.12 [Seyfarth, 1]) on Julian as a co-defender of Gaul (Amm. 15.8.13-14) so that perhaps someday the Caesar would function

[80]See Szidat, pp. 62, 82, and 84.

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as a full-fledged co-ruler (i.e., orbem pacatum . . . recturi, Amm. 15. 8.14 [Seyfarth, 1]). In the meantime, however, Julian had to image or represent the imperium of the ruling Augustus to the army and peoples of Gaul without actually possessing or exercising it himself.[81] Julian's frustration (expressed in 361 at Ep. ad Ath. 277d-278a and 278d),[82] therefore, with being confined by Constantius to the role of an imperial trustee and nothing more, though comprehensible in the light of his own aspirations, was not entirely warranted given the scope of influence originally intended for him by the emperor. Doubtless because of the older Augustus' conception of a Caesar's limited prestige (see Amm. 14.11.10) Constantius failed to take into consideration at all the affront to Julian's own self-esteem at the time that he requisitioned his elite Gallic auxilia for the Persian war effort. Furthermore, by late 359 even Julian's limited secondary function as Constantius' personal representative was diminishing by virtue of the fact that he had all but fulfilled the task originally entrusted to him by Constantius, namely the pacification of Gaul:[83]

> Politisch wie militärisch musste Julian somit auf die Dauer eher mit einer Minderung seiner Macht rechnen, was seinen Träumen und denen seiner Bewunderer von einer Erneuerung des Reiches sicher nicht entsprach. Es blieb ihm nur die Wahl, sich wieder stärker der Macht des Constantius auszuliefern und auf den Tag zu warten, wo ihm von selbst die Herrschaft zufallen würde, oder, solange er noch über hinreichende Kräfte verfügte, Constantius zu einer Neuverteilung der Macht zu zwingen. Eine andere Möglichkeit gab es für ihn nicht.[84]

---

[81] See Müller-Seidel, p. 228; Blockley, "Gallus and Julian," p. 446; and Szidat, pp. 75-76.

[82] See also Julian Ep. 4 (to Oribasius). See also Lib. Or. 18.42-43; Eunap. FHG 4.16.8a (Müller); and Zos. 3.2.2.

[83] See Szidat, pp. 73 and 81.

[84] Ibid., p. 81.

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Constantius hardly should be taken to task if Julian was unwilling or unable to let his time as Caesar run its course, or if he initiated the illegal usurpation proceedings at Paris in February of 360 and began angling for recognition as what amounted to a second Augustus in the West--a move his senior colleague understandably never would sanction. From isolated references in Ammianus Marcellinus' History, it seems that a non-violent resolution of the conflict between the two men in 360, though by no means out of the question, was already highly unlikely at least as early as November of that same year, i.e., around the time of Julian's Quinquennalia (see 21.1.1-2, 1.4, and 1.6), whereas by mid-April of 361 feelings in Julian's camp had so escalated that when he departed for the East it was no longer a question of equalization or a balance of powers; on the contrary, Julian fully intended to unseat Constantius, and to effect that end by violent means if necessary (see especially 21.5.1, 1.5-6, and 1.9).[85]

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[85]Ibid., pp. 87 and 92.

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APPENDIX A

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STEMMATA 2

2 **Family of Constantine I** (part I, his parents, brothers and sisters)

Family of Constantine I (part II, his wives and children)

* Died violently in 337/38 ⌣ Died violently at other times (date shown)

A.H.M. Jones, J.R. Martindale, and J. Morris, The Prosopography of the Later Roman Empire, vol. 1: A.D. 260-395 (Cambridge: University Press, 1971)

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Ernest Stein, Histoire du Bas-Empire, trans. by Jean-Remy Palanque, vol. 1: De l'État Romain à l'État Byzantin (284-476) (Paris: Desclée De Brouwer, 1959)

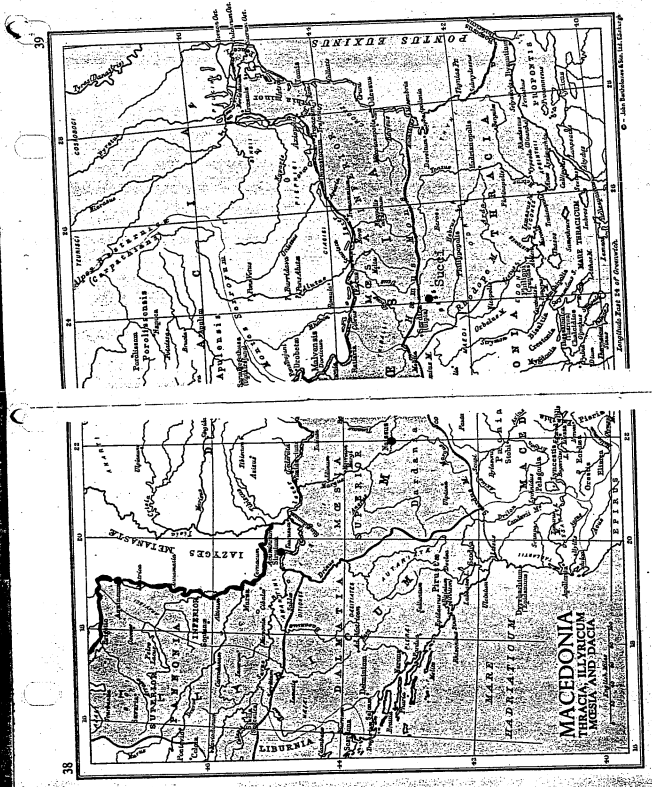
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IMPERIUM ROMANUM
ANNO 369 P. CHR. N. (IN DOMINATIONES DIOECESES PROVINCIAS DIVISUM)
CONSTANTINE II AND CONSTANS (V-XIII)
CONSTANTIUS (I-IV)
HIBERNIA
Scoti
Picti
Saxones
Franci
Alamanni
Burgundi
Marcomanni
Lentienses
Iuthungi
Quadi
Sarmatae liberi
Gepidae
Vandali Asdingi
Vandali Silingi
Hermunduri
Chamavi
Langobardi
Heruli
Taifali
Visigothi
Ostrogothi
Alani
Sarmatae
Roxolani
Olbia
Chersonesus
Caucasus Mons
IBERIA
COLCHIS
ARMENIA MAIOR
MESOPOTAMIA
ASSYRIA
BRITANNIA
GALLIA
AQUITANICA
LUGDUNENSIS
BELGICA
GERMANIA
SEQUANIA
RAETIA
ITALIA
ILLYRICUM
VIENNENSIS
NOVEMPOPULANA
ALPES COTTIAE
ALPES MARITIMAE
VALERIA
PANNONIA
MOESIA
DACIA
THRACIA
DARDANIA
MACEDONIA
THESSALIA
ACHAIA
CRETA
CORSICA
SARDINIA
SICILIA
HISPANIA
BALLEARIA
TARRACONENSIS
CARTHAGINIENSIS
MAURETANIA TINGITANA
MAURETANIA CAESARIENSIS
NUMIDIA
BYZACENA
TRIPOLITANA
Roma
Ravenna
Arminum
Aquileia
Mediolanum
Augusta Taurinorum
Augusta Treverorum
Arelate
Massilia
Narbo
Tarraco
Carthago
Hadrumetum
Thessalonica
Nicopolis
Dyrrachium
Corinthus
Athenae
Ephesus
Smyrna
Pergamum
Nicomedia
Nicaea
Byzantium
Heraclea
Philippopolis
Sardica
Naissus
Viminacium
Singidunum
Sirmium
Aquincum
Carnuntum
Sabaria
Poetovio
Emona
Augusta Vindelicorum
Castra Regina
Lauriacum
Lugdunum
Augustodunum
Durocortorum
Augusta Trevirorum
Colonia Agrippina
Mogontiacum
Argentoratum
Basilia
Vindonissa
Curia
Turicum
Brigantium
Cambodunum
Augusta Vindelicorum
Iuvavum
Ovilava
Lentia
Batavis
Noviomagus
Bagacum
Tornacum
Castra Vetera

J. Oliver Thomson, Everyman's Classical Atlas
(London: J.M. Dent & Sons Ltd., 1961), pp. 46-47

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J. Oliver Thomson, Everyman's Classical Atlas
(London: J.M. Dent & Sons Ltd., 1961), pp. 38-39



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APPENDIX B

Translation for p. 12

> . . . the whole army acted in these matters, and as if by a mighty inspiration resolved with one consent, as though their great emperor had been alive yet, to acknowledge none other than his sons as sovereigns of the Roman world. And these they soon after determined should no longer retain the name of Caesar, but should each be honored with the title of Augustus, a name which indicates the highest supremacy of imperial power. Such were the measures adopted by the army, and these resolutions they communicated to each other by letter, so that the unanimous desire of the legions became known at the same time throughout the whole extent of the empire.[1]

Translations for p. 18

> (1) . . . Constantine, being in good spirits and making his will, appointed his three sons heirs to the empire, allotting to each one of them his portion, in accordance with the arrangements he had made while living. . . . and entrusting the custody of his will to that presbyter by whose means Arius had been recalled, and of whom we already have made mention, he charged him to deliver it into no one's hand, except that of his son Constantius, to whom he had given the sovereignty of the East. . . . Of his sons none were present at his death. A courier was therefore immediately dispatched into the East to inform Constantius of his father's decease.[2]
>
> (2) The body of the emperor was placed in a coffin of gold by the proper persons, and then conveyed to Constantinople, where it was laid out . . . and this was done until the arrival of one of his sons. When Constantius afterwards came from the eastern parts of the empire, the deceased was honored with an imperial sepulture . . .[3]

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[1]Ernest Cushing Richardson, ed., The Life of Constantine by Eusebius, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 1 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., 1952).

[2]A.C. Zenos, ed., The Ecclesiastical History of Socrates Scholasticus, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 2 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., 1952).

[3]Ibid.

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Translation for pp. 19-20

> Photius records that in the thirty-second year of his reign Constantine wrote that he was poisoned in Nicomedia by his brothers. Being near the end and perceiving the plot, he wrote down his last will and testament asking for vengeance against the perpetrators, and he ordered that the first of his children to come to power should effect this revenge on his behalf, fearing lest they too should suffer a similar fate at the hands of his brothers. And he entrusted the will to Eusebius of Nicomedia, who, suspecting that the emperor's brothers would at some time seek out the will desiring to ascertain its contents, placed the document in the dead man's hand and inserted it in his shroud. But when the brothers came looking for the will as Eusebius had suspected, the bishop admitted that he had taken the will and promised to restore it to their possession. Later, taking up the will he delivered it to Constantine's son Constantius, who anticipated the other sons. And Constantius, not much afterwards, carried out the commands of his sire.[4]

Translation for p. 22

> But what wonder is it if, after he has been led into impious errors, he is so cruel toward the bishops, since the common feelings of humanity could not induce him to spare even his own kindred? His uncles he slew; his cousins he put out of the way; he commiserated not the sufferings of his father-in-law, although he [Constantius] had married his daughter, one of his kinsmen. But he has ever been a transgressor of his oaths towards all.[5]

Translation for pp. 22-23

> (1) That on the paternal side I am descended from the same stock as Constantius on his father's side is well known. Our fathers were brothers, sons of the same father. And close kinsmen as we were, how this most humane Emperor treated us! Six of my cousins and also another uncle of both of us on the father's side, and my eldest brother, he put to death without a trial; and as for me and my older brother [i.e., Gallus], he intended to put us to death but finally inflicted us with exile; . . . But why should I "recount," as though from some tragedy, "all these unspeakable horrors?" [Eur. Orestes 14]. For he

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[4]The translation is my own.

[5]M. Atkinson, ed., Arian History, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 4 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., 1953).

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Translations for p. 24

> has repented, I am told, and is stung by remorse; and he thinks that his unhappy state of childlessness is due to those deeds, and his ill success in the Persian conflict he also ascribes to that cause. This at least was the gossip of the court at the time and of those who were associated with the person of my brother Gallus of blessed memory, who is now for the first time so titled. . . . As I said, they continually told us and tried to convince us that Constantius had behaved thus, partly because he was deceived, and partly because he yielded to the violence and tumult of an undisciplined and mutinous army.[6]

(2) And a little later [355] when Constantius returned--for the affair of Silvanus had been concluded--at last I was given access to the court [at Milan], and, in the words of the proverb, "Thessalian persuasion" was applied to me. . . . But this fact I must not omit to tell here, how I submitted and how I consented to dwell under the same roof with those persons whom I knew to have ruined my whole family, and who I suspected would before very long plot against myself also. . . . and the goddess herself [i.e., Athena], above all others, is my witness that I even begged for death at her hands there in Athens rather than journey to the emperor.[7]

(3) For by Constantius' anger on behalf of men who are not related to him at all, does he not rebuke and ridicule me for my folly in having served so faithfully the murderer of my father, my brothers, my cousins--in a word, the public executioner of his and my whole family and kindred?[8]

Translation for p. 26

> So the gods removed you from Athens in your student's gown and promptly revealed you in the dress usual to the emperor. Constantius, who presented it, was inevitably distrustful and yet was induced to trust you, now restrained by his own guilty conscience [i.e., as the murderer of Julian's family?], now encouraged by the loyalty of your nature, and his attitude often wavered until finally fear gave way to confidence.[9]

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[6] Wilmer Cave Wright, ed., The Works of the Emperor Julian, vol. 2, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1959).

[7] Ibid.

[8] Ibid.

[9] A.F. Norman, ed., Libanius: Selected Works, vol. 1, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1969).

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Translations for p. 26

(1) When Constantine fell ill and died, murder stalked through practically the entire family, fathers and sons alike. Julian and his elder brother escaped this massacre, Gallus spared by an illness which was thought quite sufficient to be the death of him anyway, Julian by his tender years, for he was but newly weaned.[10]

(2) . . . the student of philosophy [Julian] at Athens was summoned to the throne, and in consequence of his very philosophy he inspired confidence in the man who had wronged him most; for although Constantius had been the murderer of his father and brothers, some long before, the last but recently [in 354], he still had hopes that his assurances would be loyally honored and that Julian's disposition would be stronger than the complaints he could level against him.[11]

Translation for p. 29

Constantine, however, was punished for the honor that he paid to Ablabius, and the manner of his death I have described in my account of his life. He bequeathed to Ablabius his son Constantius who had been his partner in the empire and succeeded to the throne of his father together with his brothers Constantine II and Constans. But in my account of the divine Julian, I have related these matters more fully. When Constantius had succeeded to the throne and had been allotted his due portion of the empire, that is to say the countries which extend from Illyricum to the East, he at once relieved Ablabius of his authority, and gathered around himself a different coterie of favorites. Ablabius then spent his time in luxury on an estate that he had prepared long ago in Bithynia, which provided him with a secure retreat of regal splendor and complete idleness. In the meantime, all men were amazed that he did not aspire to be emperor. Then Constantius dispatched from Constantinople certain swordsmen to him in considerable numbers, and gave instructions to the leaders that they should hand-deliver to Ablabius a letter. Those who delivered the letter into his hands prostrated themselves before him in the same manner that the Romans are accustomed to do before the emperor. Ablabius took the document very arrogantly and, fearless, he demanded the imperial purple from the men, while his countenance grew sterner, and he inspired terror in the onlookers. They replied that their task had been only to bring the letter, but that men who were entrusted with this

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[10] Ibid.

[11] Ibid.

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Translation for p. 29

other mission were at the doors. Then Ablabius insolently summoned them to enter and was puffed up with pride. But those who were admitted were more in number and all carried swords, and instead of the purple garment they brought to him "purple death" [Iliad 5.83] and hacked him to pieces like some animal cut up at a public feast. Thus did the shade of Sopater avenge itself on Ablabius who was fortunate in all things.[12]

Translation for p. 34

However, when the empire had been divided up into these separate parts Constantius, in his zeal not to take a back seat, as it were, to his father in impiety, wished to furnish everybody proof of his manliness by drawing blood beginning with his own household. Accordingly, he first had his paternal uncle [Julius] Constantius, put to death by the soldiers, and next devised a similar plot against Dalmatius Caesar. Simultaneously he planned the murder of Optatus as well, who had obtained from Constantine the dignity of patricius. Then the praetorian prefect Ablabius was killed, Justitia exacting the punishment he deserved, for Ablabius had contrived the death of the philosopher Sopater because he envied Constantine's friendship with him. And, as though to move against all his kinsmen, Constantius added to the above Hannibalianus, having enjoined the soldiery to exclaim that they would suffer no rulers other than the sons of Constantine. These, then, were the achievements of Constantius.[13]

Translation for p. 68

(1) . . . Thus, if his brother [Gallus] had paid attention to the letters he [Julian] sent him, there would now be a pair of rulers, for he [i.e., Julian], though no emperor himself, was fit advisor for an emperor. His brother was gotten rid of without a trial for all that he could have given some account of his actions, and his murderer wanted to extend his accusations against our emperor here [i.e., Julian], but was at a loss for the means.[14]

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[12]Wilmer Cave Wright, ed., Philostratus and Eunapius: The Lives of the Sophists, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1952).

[13]James J. Buchanan and Harold T. Davis, eds., Zosimus: Historia Nova. The Decline of Rome (San Antonio, Texas: Trinity University Press, 1967).

[14]A.F. Norman, ed., Libanius: Selected Works, vol. 1, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1969).

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Translation for pp. 68-69

(2) . . . And in case you are surprised to hear his [i.e., Julian's] partner in empire [Constantius] called his foe, I will explain the reason for the partnership. It was not simply that Constantius found no joy in seeing anyone on the imperial throne, clad in royal purple: even to dream about it would have upset him dreadfully.[15]

Translations for p. 69

(3) . . . a false accusation was brought against Gallus and a letter containing highly treasonable material was discovered. Those responsible [see Amm. 14.7.4 or 7.9-10, 7.14, 7.18-19] for it were punished, for after being the victim of such calumny he was not likely to reward them with garlands of greeting, but, by inflicting this punishment, he was held to be guilty of the crime he had punished, and was condemned to death unheard, for his execution took place before he could make any plea.[16]

(4) Here again there is reason to admire him [Julian]: he made no denunciation of his dead brother to flatter his murderer, nor did he make any pronouncement on his behalf and so inflame the living against himself. He honored his brother with concealed grief and allowed Constantius no excuse to kill him, though he was greatly desirous of it.[17]

Translation for p. 72

. . . I would be following step by step each detail of his [i.e., Eunomius', in his lost treatise] twaddling story: finding out who the "slaves released to liberty" were, what was "the conspiracy of the initiated" and the "calling out of hired slaves," what "Montius and Gallus, and Domitianus," and "false witnesses" and "an enraged emperor [i.e., Constantius?]," and "certain men sent into exile" have to do with the argument. What could be more useless than such tales for the purpose of one who was not wishing merely to write a narrative, but to refute the argument of him who had written against his heresy?[18]

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[15]Ibid.

[16]Ibid.

[17]Ibid.

[18]H.C. Ogle, ed., Gregory of Nyssa: Dogmatic Treatises, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 5 (New York: The Christian Literature Company, 1893).

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Translation for p. 73

> For in proportion to men's elevation and splendor is the ruin wrought for them, not only in the case of those who are under rule, but also of the rulers themselves. For it would be impossible to find any private family which has been immersed in such great calamaties as the ills in which the imperial house has been steeped. For untimely loss of parents, and of husbands, and violent forms of death, more outrageous and painful than those which occur in tragedies, especially beset this kind of government. Now passing over ancient times, of those who have reigned in our own generation, nine in all, only two have ended their life by a natural death; and of the others one was slain by a usurper, one in battle, one by a conspiracy of his household guards, one by the very man who elected him, and invested him with the purple, . . .[19]

Translations for p. 76

> (1) Gallus, having accomplished these things, was unable to bear his success with moderation, but straightway attempted innovations against the authority of him who had constituted him Caesar, himself aspiring to the sovereign power. His purpose was, however, soon detected by Constantius: for he had dared to put to death, on his own responsibility, Domitianus, at that time praetorian prefect of the East, and Magnus [for Montius?] the quaestor, not having disclosed his designs to the emperor. Constantius, extremely incensed at this conduct, summoned Gallus to his presence, who being in great terror went very reluctantly; and when he arrived in the West, and had reached the island of Flanona, Constantius ordered him to be slain. . . . It was in the seventh consulate of the emperor Constantius that Gallus, who was surnamed Constantius, was slain, when he himself was a third time consul [i.e., 354].[20]
>
> (2) Gallus, intoxicated with success, could not bear his prosperity, but aspired to the supreme power, and he killed Magnus [for Montius?] the quaestor, and Domitianus, the prefect of the East, because they apprised the emperor of his innovations. The anger of Constantius was excited,

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[19]W.R.W. Stephens, ed. St. Chrysostom, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 9 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., rep. 1978).

[20]A.C. Zenos, ed., The Ecclesiastical History of Socrates Scholasticus, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 2 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., 1952).

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Translation for p. 76

> and he summoned him to his presence. Gallus did not dare refuse obedience, and set out on his journey. When, however, he reached the island of Elavona he was killed by the emperor's order. This event occurred in the third year of his consulate, and the seventh of Constantius [i.e., 354].[21]

Translations for p. 76

(1) Eusebius, the chief of the imperial bedchamber, he [i.e., Julian] punished with death, not only on account of the injuries he had inflicted on others, but because he was assured that it was through his machinations that his brother Gallus had been killed.[22]

(2) He [Julian] condemned Eusebius, the governor of the imperial court, to death, from a suspicion he entertained that it was at his suggestion that Gallus his brother had been slain.[23]

Translation for p. 81

> [Photius says] that Basil [bishop of Ancyra], rallying to himself Eustathius of Sebaste and other leading men of the churches, made disparaging remarks to the emperor about Aetius in particular and Eudoxius [bishop of Germanicia], fashioning other stories about these two men to the effect that they were initiates and party to the insurrection involving Gallus, and including in the slanders against them Theophilus. And Constantius, won over through the women especially whom the men around Basil prepared beforehand to favor his opinion, imposed exile to Heracleia at Pontus on Theophilus and banishment from Antioch on Eudoxius; but Aetius as well as certain others with them Constantius gave over into the power of the men who were slandering him.[24]

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[21] Chester D. Hartranft, ed., The Ecclesiastical History of Sozomen, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 2 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., 1952).

[22] A.C. Zenos, ed., The Ecclesiastical History of Scorates Scholasticus, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 2 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., 1952).

[23] Chester D. Hartranft, ed., The Ecclesiastical History of Sozomen, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 2 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., 1952).

[24] The translation is my own.

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Translation for p. 82

> . . . Constantius designated as Caesar his cousin Gallus (brother by the same father of the future emperor Julian) and betrothed his sister Constantia to him. This he did, either that Gallus might withstand the Persians or that--which was the case--an excuse for his removal might be found. For he and his brother were, as it happened, the sole survivors of Constantius' family, all the others having been killed at Constantius' hands, as I have already narrated. Accordingly, he put upon Gallus the garb of a Caesar and, having entrusted to Lucilianus the conduct of the war against the Persians, he proceeded in person against Magnentius, joining with his own forces Vetranio's army.[25]

Translation for p. 83

> Thereafter, with the entire empire invested in Constantius alone, his arrogance increased because he could not stand prosperity. In addition there increased the role of the informers, who are accustomed to present themselves in such circumstances, plotting against the apparently well-to-do. . . . These took as their associates in wickedness some of the court eunuchs and, standing round about Constantius, persuaded him that Gallus, his own first cousin, adorned with the rank of Caesar, was not content with this honor but was attempting to envelop himself in the imperium. And, having convinced Constantius that such was the case, they drove him on to plotting the murder of Gallus, which was devised by Dynamius and Picentius, vile men, zealous to better their own lot through evils of this kind. Furthermore, there joined them in this project Lampadius the praetorian prefect, a man always eager to be more powerful than the rest around the emperor. Accordingly, Constantius, lending an ear to such calumnies, summoned Gallus, who was ignorant of what had been designed against him. Upon his arrival Constantius stripped him of the dignity of a Caesar, thereby reducing him to the rank of a private citizen, and then delivered him over to the executioners for slaughter. Nor was this the first abomination Constantius had committed against a blood relative, but it was added to several others.[26]

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[25]James J. Buchanan and Harold T. Davis, eds., Zosimus: Historia Nova, The Decline of Rome (San Antonio, Texas: Trinity University Press, 1967).

[26]Ibid.

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Translation for p. 95

> Constantius gave me three hundred and sixty soldiers, and in the middle of winter dispatched me into Gaul, which was then in a state of great disorder; . . . he allowed me to join the army and to carry about with me his dress and image. And indeed he had both said and written that he was not giving the Gauls a king but one who should convey to them his his image.[27]

Translations for p. 96

(1) . . . Well, Constantius, in sending him out to face the victorious foe, did so with no wish that he should win a battle, a campaign, or a triumph. For immediately an irrational change of mind affected him. . . . He was more alarmed at his partner's fame than at the insolence of the foe, and more pleased that Julian should fail to gain renown than that the enemy should escape defeat. I take no pleasure in accusing Constantius, but my narrative demands that I do so, for it is impossible to separate the praise from the blame.[28]

(2) . . . As Caesar he was dispatched to Gaul, not so much to rule there as with the intention that he should perish by violent means while holding his imperial office; . . .[29]

(3) Now, since Eusebia knew that the Emperor Constantius was suspicious of all his kinsmen, she deceived her husband with the following mode of speech: 'He's young and of artless character. His entire life he has devoted to the pursuits of knowledge and thus is totally unfamiliar with practical affairs--so much the better for our purposes hereafter. For in his administration of affairs he will either succeed or fail. In the former case the happy outcome will be publicly registered in the emperor's name, while in the latter he'll perish and Constantius thereafter

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[27]Wilmer Cave Wright, ed., The Works of the Emperor Julian, vol. 2, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1959).

[28]A.F. Norman, ed., Libanius: Selected Works, vol. 1, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1969).

[29]Wilmer Cave Wright, ed., Philostratus and Eunapius: The Lives of the Sophists, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1952).

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Translation for p. 96

> will have no one of the imperial family to be called to the imperium.' [30]

Translation for p. 102

> . . . Some have said that Constantius, with designed enmity, committed this campaign [in Gaul] to him; but this does not appear probable to me. For, as it rested with Constantius alone to nominate him Caesar, why did he confer that title upon him? Why did he give him his sister in marriage, or hear complaints against the inefficient generals, and send a competent one in their stead in order to complete the war, if he were not friendly to Julian? [31]

Translation for p. 104

> . . . the ostensible reason [for the troop recall] was the Persian war, and the fact that a now peaceful Gaul required no troops, . . . But I say Constantius clearly had no need of an army larger than the one he had already to deal with Persia, for a section of that was sufficient for the task, and however many times he raised a force like it, he would never have gone into battle, for he was bent on procrastination. [32]

Translation for p. 115

> Julian had no sooner become intimate with that most holy of hierophants and greedily absorbed his wisdom, than he was forcibly removed by Constantius to be his consort in the empire and elevated to the rank of Caesar, . . . Thus did Julian obtain what he did not desire, but had thrust upon him. As Caesar he was dispatched to Gaul, not so much to rule there as with the intention that he should perish by violent means while holding his imperial office; but contrary to all expectation, by the providence of the gods he emerged alive, . . . and he crossed the Rhine and subjugated

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[30] James J. Buchanan and Harold T. Davis, eds., Zosimus: Historia Nova, The Decline of Rome (San Antonio, Texas: Trinity University Press, 1967).

[31] Chester D. Hartranft, ed., The Ecclesiastical History of Sozomen, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol. 2 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., 1952).

[32] A.F. Norman, ed., Libanius: Selected Works, vol. 1, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1969).

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Translation for p. 115

> all the barbarian tribes beyond that river, and this in spite of numerous plots and schemes that were woven against him, as I have related in full in his Life. Then he summoned the hierophant from Greece, and having with his aid performed certain rites known to them alone, he mustered up courage to abolish the tyranny of Constantius. His accomplices were Oribasius of Pergamon and a certain Euhemerus, a native of Libya, which the Romans in their native tongue call Africa. But all this has been described in fuller detail in my work on Julian. When he had abolished the tyranny of Constantius, and sent back the hierophant to Greece, . . .[33]

Translation for pp. 115-16

> Tempora saepenumero visa sunt longis periodis ac conversionibus ad eosdem redire casus. Veluti qui cum Dario adversus magos conspiraverunt, septem numero erant: et post tempora multa hi, qui cum Arsace contra Macedonas rebellaverunt, pari numero fuerunt.[34]

Translation for p. 119

> (1) However, I have omitted a matter worthy of mention and of it I must now speak. Several envoys came and went on both sides, those from Julian proposing that he should retain his present status, but with no more actual power than he had had before, those from Constantius requiring the complete abdication of his new title and the return, in every particular, to his previous station. This involved the destruction of himself, of most of his army, and of his friends and intimates, and, though Julian had but slight regard for his own life, he was most reluctant to turn traitor to all that he held dear.[35]

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[33] Wilmer Cave Wright, ed., Philostratus and Eunapius: The Lives of the Sophists, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1952).

[34] The translation is Müller's.

[35] A.F. Norman, ed., Libanius: Selected Works, vol. 1, The Loeb Classical Library (Cambridge, Mass.: Harvard University Press, 1969).

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Translation for p. 120

> Nevertheless, Caesar wanted to make trial of Constantius' intentions. Therefore he sent envoys stating that the coronation had taken place against his own will and judgment and, begging pardon for the event, added that he was prepared to lay aside the diadem and hold the rank of Caesar. But Constantius got so carried away by anger and arrogance he told the envoys that Julian, in exchange for his life, should lay aside in addition to the imperium his Caesar's habit and, having made himself a private citizen, should wait upon the emperor's pleasure; for he would not suffer anything terrible or what his temerity deserved.[36]

Translations for p. 125

(1) . . . To what limit of impiety and audacity does Julian proceed? What a madman! He marches out against Constantius, leaving the West on the pretext that he was going to defend his acceptance of the imperial diadem.[37]

(2) As an invasion of Roman territory by the Persians was expected, and as Constantius had on this account repaired to Syria, Julian thought that he might without battle render himself master of Illyricum; he therefore set out on his journey to this province, under the pretense that he intended to present an explanation to Constantius for having, without his sanction, received the symbols of imperial power.[38]

Translation for p. 129

> . . . But as I conjecture, Constantius conferred on him the title of Caesar because he was well-disposed toward Julian; but after Julian had, without his approval, been proclaimed emperor, he plotted against him through the barbarians on the Rhine; and this, I think, resulted either from the dread that Julian would seek revenge for the ill-treatment he and his brother Gallus had experienced during their youth, or as

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[36]James J. Buchanan and Harold T. Davis, eds. Zosimus: Historia Nova, The Decline of Rome (San Antonio, Texas: Trinity University Press, 1967).

[37]The translation is my own.

[38]Chester D. Hartranft, ed., The Ecclesiastical History of Sozomen, The Nicene and Post-Nicene Fathers of the Christian Church, Second Series, vol 2 (Grand Rapids, Michigan: Wm. B. Eerdmans Publishing Co., 1952).

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Translation for p. 129

would be natural, from jealousy of his attaining similar honor. But a great variety of opinions are entertained on this subject.[39]

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[39]Ibid.

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APPENDIX C

Owing chiefly to Ammianus Marcellinus, the sole reign of Constantius (353-361)[1] has long been typified by an alleged resurgence of imperial litigation for laesa maiestas accompanied by the torture of persons involved in these same trials, and by a higher incidence of more stringent legislation prohibiting magical practices aimed at divining the fate of the ruling Augustus (or, worse still, the identity of his successor, e.g., see Amm. 15.3.7). To these measures must be added one more item: the attribution to Constantius of a much-expanded imperial secret service or professional bureaucracy for espionage in the form of the scholae agentium in rebus (also called curiosi and curagendarii cursus publici, for which see Cod. Th. VI.29.11) and the more prestigious scholae notariorum.[2] All of these forces together with the powers behind the throne (for example, eunuchs, adulatores, royal wives, and delatores) have been cited by scholars as the basis of Constantius' traditional reputation for egomania, cruelty, and an exaggerated fear for his throne.[3]

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[1]Some scholars date the sole reign from 350 (i.e., the death of Constans); the majority, however, opt for the year 353 (i.e., the death of the usurper Magnentius). See Stein-Palanque, p. 141; LRE, 1, pp. 113 and 115; and Piganiol, p. 101.

[2]Much-expanded secret service: see LRE, 1, n. 11, p. 485 and Bowder, p. 48.

[3]See Maurice, pp. 111 and 113; Di Spigno, "libro XIV," pp. 142-43; Barb, pp. 108-9; Tassi, pp. 158-60, 168, and 173-78; Blockley, Ammianus Marcellinus, pp. 104, 107, 113, and 117; and Bowder, pp. 82-84. See especially Eutrop. 10.15: ad severitatem tamen propensior, si suspicio imperii moveretur; Lib. Or. 18.131; and Amm. 22.16.8.

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Ammianus has documented for his readers four major periods of investigations for treason under Constantius, often interspersing these proceedings with other, and occasionally rather bizarre, cases of note as follows: first, the trial of the usurper Magnentius' partisans in the winter of 353/54 (Britain and Arles, 14.5.6f.); secondly, the hearings of Gallus (Histria, 14.11.20-23) and his associates near the end of 354 (Aquileia, 15.3.1-6), followed by proceedings against Ursicinus, Julian, and Gallus' own eunuch chamberlain Gorgonius which lasted from December of 354 until early 355 (Milan, 15.2.1-3), as well as proceedings against Africanus and his dinner guests in 355 (Milan, 15.3.7-11). In September of 355 a third major investigation (15.6.1-4) was conducted against the supporters of the usurper Silvanus, most notably Proclus, and this was followed by the trials of Arbitio the consul and former magister equitum (16.6.1-3), Rufinus and a certain slave Danus in 356/57 (Milan? 16.8.3-9), and Barbatio,[4] his wife Assyria, and one Valentinus in 359 (18.3.1-6). Finally, there is the inquisition conducted at Scythopolis in the latter part of 359 during which two ex-prefects, Simplicius and Parnasius, one Andronicus, a philosopher named Demetrius, and allegedly countless civilians were brought to trial on suspicion of sorcery (19.12.1-15). Although Ammianus is antiquity's most vocal anti-Constantian propagandist after Julian, the victims enumerated above fared accordingly: Gorgonius and Arbitio, both of whom undoubtedly merited capital punishment, evaded justice and seem to have gotten off without a scratch. In spite of Ammianus' repeated protestations as well as grim prognostications of doom

[4]See PLRE, 1, pp. 146-47. See also Amm. 16.11.12.

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(e.g., those of 15.5.19), Ursicinus and Julian, and apparently even Danus, a mere slave, ultimately were acquitted.[5] As for the partisans of Silvanus, Constantius was very lenient: "any of the usurper's friends who could prove non-complicity in the rebellion were spared, as was Silvanus' infant son."[6] Ammianus leaves the destinies of Africanus and his associates tendentiously ambiguous, painting as ominous and depressing a scene at 15.3.11 as possible: iussi sunt attineri poenalibus claustris sub absolutionis aliqua spe licet incerta (Seyfarth, 1). The incineration of Rufinus, Barbatio, and Assyria is not to be regretted given the genuinely treasonable circumstances which resulted in their downfall. Finally, Proclus and Valentinus were condemned altogether unjustly, whereas Gallus and his supporters hardly deserved the death sentences meted out to them for the sins.

This is not to say that Constantius was the mildest of emperors, but only that as in the case of Gallus Caesar (see pp. 56-57 above) Ammianus' highly negative portrayal of the Augustus is somewhat unfair and overstated. In response to those who argue for a marked increase in trials and interrogation by torture under Constantius, we must point out that a comparison of the frequency of these phenomena under Constantius with similar occurrences from the reigns of other emperors shows that Constantius (353-361) condemned and executed far fewer victims, according

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[5]See Thompson, Historical Work, pp. 45 and especially 54-55: "We hear of a great deal of the machinations of the court eunuchs against Ursicinus . . . yet is it not a little surprising that, although he turns aside no less than seven times to inveigh against them . . . they never succeeded in bringing anything upon the head of their intended victim except promotion, honor, and opportunity?"

[6]Nutt, p. 83. See also Tassi, p. 164. Cf. Julian Or. 1.48c-49a and Or. 2.99a-b (Bidez, 1.1).

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to Ammianus' tally, than did Valentinian I (364-375) or Valens (364-378).[7] Moreover, we lack detailed accounts of Constantius' activities in this same sphere for the first sixteen years of his imperial tenure. Finally, the evidence which we do possess is not especially compelling; a healthy majority of the victims listed in Ammianus' narrative, including an individual of lowly slave status, Danus, were released. The commander Ursicinus, one discovers at 20.2.4-5, insulted the emperor and lived to tell about it:

> "Etsi me," inquit, "despicit imperator, negotii tamen ea est magnitudo, ut non nisi iudicio principis nosci possit et vindicari; sciat tamen velut quodam praesagio, quod, dum maeret super his, quae apud Amidam gesta amendata didicit fide dumque ad spadonum arbitrium trahitur, defrustandae Mesopotamiae proximo vere ne ipse quidem cum exercitus robore omni opitulari poterit praesens." Relatis adiectisque cum interpretatione maligna compluribus iratus ultra modum Constantius, . . . appetitum calumniis deposita militia digredi iussit ad otium . . . (Seyfarth, 1)

So much for Constantius' purported mania for inquisitions in matters pertaining to the impairment of, or injury to his majesty (see 14.5.9 and 21.16.8). Furthermore, inasmuch as the majority of the accused were persons of considerable means both socially and financially, when Ammianus complains about the emperor's excessive delight in quaestionibus vel cruentis at 19.12.17-18 (and see also 21.16.9), he is not objecting to the practice of interrogation by torture for its own sake or even to the alleged imperial injustice in its capricious application; rather, Ammianus deplores these developments because for the most part it is his own social peers and betters who are the targets of the tribunals' sadistic rulings

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[7]See especially Blockley, Ammianus Marcellinus, pp. 117 and 189-90.

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as a result of Constantius' edict of July 357/58 (Cod. Th. IX.16.6 [Meyer and Mommsen]).[8] In other words, "we need not suppose that the tortures which the lesser folk had to endure troubled him in the least."[9]

Constantius' preoccupation with curtailing divinandi curiositas (to utilize his own words at Cod. Th. IX.16.4 [Meyer and Mommsen]) is alluded to twice by Ammianus at 16.8.2 and 19.12.14. In this respect too (see pp. 56-57 above) the emperor and Gallus resemble each other insofar as the Caesar persecuted on the basis of artium nefandarum calumnia (14.1.2, and see 14.7.7). There is no denying that Constantius signed into effect a number of "draconic measures"[10] against magical practices and against clandestine private devotions entailing astrology, necromancy, soothsaying, and divination--Cod. Th. IX.16.4-6 (Meyer and Mommsen) for the years 357/58 testifies to that reality clearly enough. But Constantius certainly was neither the first (see Suet. Tib. 63 and Cod. Th. IX.16.7-8, 10-12 [Meyer and Mommsen]), nor the most severe Roman

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[8]By this legal measure even persons of the highest rank were deprived of their exemption from torture (cruciatus et tormenta non fugiat) in cases involving magic or sorcery. See Barb, pp. 108-9 and Bowder, p. 84.

[9]Alföldi, p. 41. See, for example, Amm. 28.1.15: et quoniam existimo forsitan aliquos haec lecturos exquisite scrutando notare strepente id actum esse prius, non illud aut ea, quae viderint, praetermissa, hactenus faciendum est satis, quod non omnia narratu sunt digna, quae per squalidas transiere personas, nec, si fieri fuisset necesse, instructiones vel ipsis tabulariis suppeterent publicis tot calentibus malis et novo furore sine retinaculis imis summa miscente, . . . (Seyfarth, 2). See also Blockley, Ammianus Marcellinus, pp. 117-19. Even more horrific tortures and trials for magic are documented by Amm. 29.1, and see especially 29.1.28-42, 2.4, 2.26-28, and 3.5 under Valentinian I and Valens. Apropos of the notarius Paulus, however, Ammianus does point out at 14.6.1 that he exceeded Constantius' instructions (iussa licentius supergressus). See also Alföldi, p. 42 and Barb, pp. 110-11.

[10]Barb, p. 108. See also ibid., pp. 105-9; Maurice, p. 113; and Bowder, p. 84.

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sovereign to hand down such legislation, and it is worth repeating here that of the four men already known to us above from Amm. 19.12.9-12 (see p. 154), the two ex-magistrates Simplicius and Parnasius received verdicts of banishment rather than the prescribed execution, while Andronicus and Demetrius were acquitted by their judge, the comes Orientis Domitius Modestus.[11]

The three proclamations cited earlier from the Codex Theodosianus (IX.16.4-6) and issued by Constantius against magic are clustered within roughly an eighteen-month period, that is, from 25 January 357 to 5 July 358, and precede the trials at Scythopolis in Palestine in late 359. According to Lib. Or. 14.17, the inquistion at Scythopolis lasted continuously for three years, and there appears to be a connection between the sudden spate of rigorist repressive anti-sorcery laws enacted and the treason trials conducted between 356 and 357 as well as in 359 by Modestus. Nevertheless, it is somewhat unfair to evaluate Constantius' entire policy in this regard (as Ammianus does) on the basis of this five-year period, particularly since there is relatively little additional evidence, apart from that already rehearsed above, of treason trials of this kind or magnitude for the balance of Constantius' rule.[12]

Modern scholars commonly and correctly attribute to Constantius the

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[11]Modestus: see Lib. Or. 14.19 and also PLRE, 1, pp. 606-7. Parnasius: see Lib. Or. 14.15-17. See also Maurice, pp. 112-14 and PLRE, 1, pp. 667-68. For the severity of Valentinian I and Valens, see Maurice, p. 115f.; Barb, p. 110; and Blockley, "Gallus and Julian," pp. 41-52.

[12]See Cod. Th. XVI.10.5 (dated 353) and IX.42.2-4 from the years 356, 357, and 358. See also Maurice, pp. 111-12. Tassi, p. 176, assigns the Scythopolis hearings to 359/60, but I have followed Libanius' chronology.

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enlargement of the schola agentium in rebus, a corps of state couriers, postal inspectors, and controllers of maritime traffic established by Diocletian or Constantine I, who also functioned as spies. Under Constatnius, it is purported that these officials "became virtually secret police, and were probably the worst and most hated feature of his reign":[13]

> Neque minore studio pacis officia vincta legibus aequissimis ac remoto pestilenti frumentariorum genere, quorum nunc agentes rerum simillimi sunt. Qui cum ad explorandum annuntiandumque, ecqui forte in provinciis motus exsisterent, instituti viderentur, compositis nefarie criminationibus, iniecto passim metu, praecipue remotissimo cuique, cuncta foede diripiebant. (Aur. Victor Caes. 39.44-45 [Pichlmayr])

A similar phenomenon is generally agreed to have occurred in the case of a related and even more prestigious governmental agency, the schola notariorum, or secretariat of the imperial consistory.[14] It is difficult to determine whether Libanius was more troubled by the agentes' reputation for cruelty and intrigue (e.g., Or. 18.48ff. and 131-34) or by the fact that these notarii often were the sons of low-skilled workers such as sausage-makers and bath-attendants (Or. 42.23-25). Ammianus, however, stresses exclusively the intelligence, i.e., secret service aspect of these bureaucrats (particularly at 14.5.4-8, 9.3, 11.19, 11.23, 15.3.3-4, 3.7ff., 5.8, 6.1, 16.8.9, 17.9.7),[15] and although there is surely no palliating, much less denying, the sinister deeds of the agentes or notarii encountered in the pages of Ammianus' History, it is only

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[13] Bowder, p. 48. See also Sinnigen, "Late Roman Secret Service," pp. 238-39 and 250; Sinnigen, "Three Administrative Changes," pp. 375 and n. 17, p. 375, and 376; LRE, 1, pp. 485 and 581-82; and Nutt, p. 84.

[14] See especially Sinnigen, "Late Roman Secret Service," pp. 240-41 and 244. See also Sinnigen, "Three Administrative Changes," p. 375 and LRE, 1, pp. 572-73.

[15] See Sinnigen, "Late Roman Secret Service," pp. 245-48 passim.

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fair that three additional factors be taken into consideration. To begin with, of the forty-seven combined notarii and agentes in rebus known to us by name from the years 335-360 (which number, admittedly, is disproportionately higher than any other for a comparable twenty-five year period in the PLRE, 1),[16] only five notaries (i.e., Palladius, Domitianus, Paulus, Pentadius, and Gaudentius) and two agentes (the same Gaudentius and one Apodemius) fit the unrelenting secret police stereotype left to us by Aurelius Victor (quoted above on p. 159) and Lib. Or. 18.131-34. There is little evidence or occasion to believe that the remaining forty-one members of either corps were as a routine matter of course, if ever, as ruthless as the six officials whose nefarious careers have been re-created for us by Ammianus Marcellinus. On the contrary, five individuals who were not members of the scholae possess equally dismaying track records in Ammianus' narrative: Eusebius the palatine eunuch, the praetorian prefect of Italy Lampadius, the magister peditum Barbatio, Dynamius the actuarius, and Serenianus who was an ex-general. In the second place, inasmuch as on at least two occasions (see Amm. 14.5.6, 5.8, and 5.18) Paulus and Apodemius exceeded the orders of Constantius, perhaps withholding information from him in the process, without being punished or reprimanded for insubordination,[17] the likelihood remains that the emperor

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[16] See pp. 1070-72.

[17] Suppression of information: see CMH, 1, p. 76 and Nutt, pp. 84-86 passim: "How can Constantius' apparent indifference to the situation [i.e., the events leading up to Silvanus' coup in 355] be explained? . . . A quite simple solution can be found, namely, that in this case Constantius was kept in ignorance, essentially by Arbitrio, of what Apodemius was doing in Gaul. . . . What is proposed here is that the basis of the whole affair is a rather serious breakdown between the emperor and his field commander, and between the emperor and his consistorium. That the latter breakdown is a conspiracy of silence is an attractive proposition." For Apodemius' career as an agens in rebus and his role in the downfall of Gallus Caesar (Amm. 14.11.19 and 11.23), see PLRE, 1, p. 82.

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may have been the victim of the extensive intelligence network intended to serve him, but which, in the hands of unscrupulous functionaries, could manipulate selectively communiqués to and from the court without Constantius' knowledge or consent. Finally, the innovation whereby ex agentes in rebus were dispatched by the magister officiorum to serve as principes officii in the offices of the urban and praetorian prefectures dates not to Constantius' reign but more likely to that of his father. This fact is significant because it serves as a corrective to the prevailing ancient and modern caricature of Constantius as having been a monarch fanatically devoted to increased imperial administrative centralization, particularly in the military sphere.[18]

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[18]See Sinnigen, "Three Administrative Changes," pp. 369-77 and 382. See also LRE, 1, p. 579.

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SELECT BIBLIOGRAPHY

Collections and Periodicals Cited, with Abbreviations

AC	L'Antiquité Classique
AClass	Acta Classica
AJPh	American Journal of Philology
Am. Hist. Rev.	American Historical Review
Antichthon	Antichthon. Journal of the Australian Society for Classical Studies.
Athenaeum	Athenaeum. Studi periodici di Letteratura e Storia dell' Antichità.
BAGB	Bulletin de l'Association Guillaume Budé
Byzantion	Byzantion. Revue internationale des Études byzantines.
CMH	Cambridge Medieval History, eds. H.M. Gwatkin and J.P. Whitney
CPh	Classical Philology
CS	Critica storia
CSEL	Corpus Scriptorum Ecclesiasticorum Latinorum
CW	Classical World
Epigraphica	Epigraphica. Rivista italiana di Epigrafia.
FHG	Fragmenta Historicorum Graecorum, ed. C. Müller
GCS	Die Griechischen Christlichen Schriftsteller der ersten drei Jahrhunderte, herausgegeben im auftrage der Kirchenväter-Commission der Preussichen Akademie der Wissenschaften
Ha	Hermathena. A Series of Papers by Members of Trinity College, Dublin.
Helikon	Helikon. Rivista di tradizione e cultura classica.

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Historia	Historia. Revue d'histoire ancienne.
HZ	Historische Zeitschrift
JRS	Journal of Roman Studies
Latomus	Latomus. Revue d'Études latines.
LRE	The Later Roman Empire, A.H.M.Jones
LSJ	A Greek-English Lexicon, eds. H.G. Liddell, R.S. Scott, and H.S. Jones
JbAC	Jahrbuch für Antike und Christentum
NPFC	The Nicene and Post-Nicene Fathers of the Christian Church
OCD	Oxford Classical Dictionary, eds. N.G.L. Hammond and H.H. Scullard
OLD	Oxford Latin Dictionary, ed. P.G.W. Glare
Orpheus	Orpheus. Rivista di umanità classica e cristiana.
PCPhS	Proceedings of the Cambridge Philological Society
PG	Patrologia Graeca, ed. J.P. Migne
Philologus	Philologus. Zeitschrift für klassische Philologie.
Phoenix	The Phoenix. The Journal of the Classical Association of Canada.
PLRE, 1	The Prosopography of the Later Roman Empire, vol. 1, eds. A.H.M. Jones, J.R. Martindale, and J. Morris
PW	Pauly-Wissowa (-Kroll) Real-Encyclopädie der classichen Altertumswissenschaft
RH	Revue Historique de Droit français et étranger
RhM	Rheinisches Museum für Philologie
Thought	Thought: A Review of Culture and Idea.
TLL	Thesaurus Linguae Latinae
Traditio	Traditio: Studies in Ancient and Medieval History, Thought and Religion.

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Three Historiographical Problems in the Ancient Sources for the Reign of Constantius II (337-361).

Dissertation directed by Robert J. Penella, Ph.D.

Constantius has no ancient biographers, and detailed studies of the emperor by modern historians are few. This dissertation is a partial response to the need for both. It examines the evidence and predominantly anti-Constantian (i.e., pro-Julianic) Tendenz in the sources, both eastern and western, from the fourth through the sixth centuries beginning with Eusebius Pamphili and finishing with the pagan Zosimus, for three crucial unresolved issues of Constantius' reign which pertain to the larger problem of the imperial succession.

In the first chapter, judging from Eusebius' silence and the Arian Philostorgius' fictional version of Constantine's will, one may conclude that Constantius participated in, or permitted the army's murders of his relatives and/or co-heirs, most of which probably occurred at Constantinople immediately after his father's funeral in 337. It is difficult to determine if all four of the Caesars appointed by Constantine were to become Augusti, but the sources do not attempt to explain why the emperor's succession plan of 335 was disregarded by his sons following his decease.

In chapter two Gallus Caesar's downfall in 354 must be attributed largely to his own character (even his half-brother Julian concedes as much) and to the bureaucracy of imperial courtiers which surrounded the emperor rather than to Constantius' deliberate ill-will. Ammianus Marcellinus' highly negative portrayal of Constantius and Gallus is extreme

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because the author focuses only on Gallus' disastrous final year at Antioch and on the trials conducted under Constantius for laesa maiestas.

The third chapter demonstrates, by way of inconsistencies within the pro-Julianic tradition, that Caesar Julian in fact did usurp in 360 owing to his own imperial aspirations and not because of alleged intolerable conditions imposed on him by Constantius, who refused to recognize his cousin as co-Augustus in the West.

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